



Theodore Roosevelt

**PRESIDENTIAL ADDRESSES
AND STATE PAPERS**

BY

THEODORE ROOSEVELT

Volume II

December 3, 1901, to January 4, 1904



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Title: Presidential addresses and state papers, Volume 2 (of 7)

Author: Theodore Roosevelt

Release date: November 5, 2024 [eBook #74680]

Language: English

Original publication: New York: The Review of Reviews Company,
1910

Other information and formats: www.gutenberg.org/ebooks/74680

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THE FOURTH OF MARCH, 1901

*A photograph taken on the day when
Theodore Roosevelt was sworn in as
Vice-President of the United States*

Homeward Bound Edition

**PRESIDENTIAL
ADDRESSES
AND STATE PAPERS**

December 3, 1901, to January 4, 1904

BY

THEODORE ROOSEVELT



[INDEX FIRST ADMINISTRATION]

PUBLISHED WITH THE PERMISSION OF THE
AUTHOR THROUGH SPECIAL ARRANGEMENT

VOLUME II

NEW YORK

THE REVIEW OF REVIEWS COMPANY

MCMX

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PRESIDENTIAL ADDRESSES
AND STATE PAPERS

DECEMBER 3, 1901
TO
JANUARY 4, 1904

PRESIDENTIAL ADDRESSES AND STATE PAPERS

AT DEDICATION OF NAVY MEMORIAL MONUMENT, SAN
FRANCISCO, CAL., MAY 14, 1903

Mr. Mayor; My Fellow-Citizens:

The ground for this monument was first turned by President McKinley, and I am glad to have the chance of saying a few words in dedication of the completed monument. There is no branch of our government in which all our people are so deeply interested as the Navy of the United States. It is not merely San Francisco, not merely New York, or Boston, or Charleston, or New Orleans, not merely the seacoast cities of the Nation; every individual in the Nation who is proud of America and jealous of her good name must feel a thrill of generous emotion at the erection of a monument to the navy, a monument to the fleet which was victorious under Admiral Dewey on the first of May five years ago, a fleet which then added a new page to the long honor roll of American achievement. It is eminently fitting that there should be here in this great city on the Pacific Ocean a monument to commemorate the deed which showed once for all that America had taken her position on the Pacific. I want you all to draw a practical lesson from this commemoration. We to-day dedicate this monument because those who went before us had the wisdom to make ready for the victory. If we wish our children to have the chance of dedicating monuments of this kind in the event of war we must see that the navy is made ready in advance. To dedicate the monument would be an empty and foolish thing if we accompanied it by an abandonment of our national policy of building up the navy. And good though it is to erect this monument, it is better still to go on with the building up of the navy which gave the monument to us, and which, if we ever give it a fair chance, can be relied upon to rise level to our needs.

Remember that after the war has begun it is too late to improvise a navy. A naval war is two-thirds settled in advance, at least two-thirds, because it is mainly settled by the preparation which has gone on for years preceding its outbreak. We won at Manila because the shipbuilders of the country, including those here at San Francisco, under the wise provisions of Congress, had for fifteen years before been preparing the navy. In 1882 our navy was a shame and a disgrace to the country in point of material. The personnel contained as fine material as there was to be found in the world but the ships and the guns were antiquated, and it would have been a wicked absurdity to have sent them against the ships of any good power. Then we began to build up the navy. Every ship that fought under Dewey had been built between 1883 and 1896.

We come here as patriots remembering that our party lines stop at the water's edge. That fleet was successful in 1898 because under the previous administrations of both political parties, under the previous Congresses controlled by both political parties, for the previous fifteen years there had been a resolute effort to build adequate ships. The ships that went in under Dewey had been constructed under different successive Secretaries of the Navy and had been provided for by different successive Congresses of the United States. Not one of them had been built less than two years, some of them fourteen years. We could not have begun to fight that battle if we had not been for so many years making ready the navy.

The last Congress has taken greater strides than any previous Congress in making ready the navy, but it will be two or three years before the effects are seen. In no branch of the government are foresight and the carrying out of a steady and continuous policy so necessary as in the navy; and you, citizens of San Francisco, of California, and all our citizens should make it a matter of prime duty to see that there is no halt in that work, that the next Congress, and the Congress after that, and the Congress after that, go right on providing formidable warcraft, providing officers, providing men, and providing the means of training them in peace to be effective in war. The best ships and the best guns do not count unless they are handled aright and aimed aright, and the best men can not thus handle the one nor aim the other if they do not have ample practice. Our people must be trained in handling our ships in squadrons on the high seas. Our people on the ships must be trained by actual practice to do their duty in conning tower, in the

engine-rooms, in the gun-turrets. The shots that count in battle are the shots that hit.

We have reason to be satisfied with the rapid increase in accuracy in marksmanship of the navy in recent years, and I congratulate Admiral Glass and those under him and all our naval officers who are taking their part so well in perfecting that work, and I congratulate the enlisted men of the navy upon the extraordinary improvement in marksmanship shown by the gun pointers.

Applaud the navy and what it has done. That is first-class. But make your applause count by seeing that the good work goes on. Besides applauding now see to it that the navy is so built up that the men of the next generation will have something to applaud also.

AT THE UNIVERSITY OF CALIFORNIA, BERKELEY, CAL., MAY
14, 1903

President Wheeler; Fellow-Members of the University:

Last night, in speaking to one of my new friends in California, he told me that he thought enough had been said to me about the fruits and flowers; that enough had been said to me about California being an Eden, and that he wished I would pay some attention to Adam as well. Much though I have been interested in the wonderful physical beauty of this wonderful State, I have been infinitely more interested in its citizenship, and perhaps most in its citizenship in the making.

When I come to the University of California and am greeted by its President I am greeted by an old and valued friend, a friend whom I have not merely known socially but upon whom, while I was Governor of New York, I leaned often for advice and assistance in the problems with which I had to deal. When he accepted your offer I grudged him to you. And it was not until I came here, not until I have seen you, that I have been fully reconciled to the loss. But now I am, for I can conceive of no happier life for any man to lead to whom life means what it should mean, than the life of the President of this great University.

This same friend last night suggested to me a thought that I intend to work out in speaking to you to-day. We were talking over the University of

California, and from that we spoke of the general educational system of our country. Facts tend to become commonplace, and we tend to lose sight of their importance when once they are ingrained into the life of the Nation. Although we talk a good deal about what the widespread education of this country means, I question if many of us deeply consider its meaning. From the lowest grade of the public school to the highest form of university training, education in this country is at the disposal of every man, every woman, who chooses to work for and obtain it. The State has done much, very much; witness this university. Private benefaction has done very much; witness also this university. And each one of us who has obtained an education has obtained something for which he or she has not personally paid. No matter what the school, what the university, every American who has a school training, a university training, has obtained something given to him outright by the State, or given to him by those dead or those living who were able to make provision for that training because of the protection of the State, because of existence within its borders. Each one of us then who has an education, school or college, has obtained something from the community at large for which he or she has not paid, and no self-respecting man or woman is content to rest permanently under such an obligation. Where the State has bestowed education the man who accepts it must be content to accept it merely as a charity unless he returns it to the State in full, in the shape of good citizenship. I do not ask of you, men and women here to-day, good citizenship as a favor to the State. I demand it of you as a right, and hold you recreant to your duty if you fail to give it.

Here you are in this university, in this State with its wonderful climate, which is permitting people of a northern stock for the first time in the history of that northern stock to gain education in physical surroundings somewhat akin to those which surrounded the early Greeks. Here you have all those advantages and you are not to be excused if you do not show in tangible fashion your appreciation of them and your power to give practical effect to that appreciation. From all our citizens we have a right to expect good citizenship; but most of all from those who have received most; most of all from those who have had the training of body, of mind, of soul, which comes from association in and with a great university. From those to whom much has been given we have Biblical authority to expect and demand much in return; and the most that can be given to any man is education. I expect and demand in the name of the Nation much more from you who

have had training of the mind than from those of mere wealth. To the man of means much has been given, too, and much will be expected from him, and ought to be, but not as much as from you, because your possession is more valuable than his. If you envy him I think poorly of you. Envy is merely the meanest form of admiration, and a man who envies another admits thereby his own inferiority. We have a right to expect from the college bred man, the college bred woman, a proper sense of proportion, a proper sense of perspective, which will enable him or her to see things in their right relation one to another, and when thus seen while wealth will have a proper place, a just place, as an instrument for achieving happiness and power, for conferring happiness and power, it will not stand as high as much else in our national life. I ask you to take that not as a conventional statement from the university platform, but to test it by thinking of the men whom you admire in our past history and seeing what are the qualities which have made you admire them, what are the services they have rendered. For as President Wheeler said to-day, it is true now as it ever has been true that the greatest good fortune, the greatest honor, that can befall any man is that he shall serve, that he shall serve the Nation, serve his people, serve mankind; and looking back in history the names that come up before us, the names to which we turn, the names of the men of our own people which stand as shining honor marks in our annals, the names of those men typifying qualities which rightly we should hold in reverence, are the names of the statesmen, of the soldiers, of the poets—and after them, not abreast of them, the names of the architects of our material prosperity also.

Of recent years I have been thrown in contact with a number of college graduates doing good service to the country, and as I wish to make it perfectly evident what I mean by the kind of service which I should hope to have from you and which it seems to me worth while to render, I want to say just a word about two college graduates who have during the last five years rendered and are now rendering such services: Governor Taft in the Philippines, and Brigadier-General Leonard Wood, lately Governor of Cuba. When we acquired the Philippines and took possession for the time being of Cuba to train its people in citizenship, we assumed heavy responsibilities; so heavy that some very excellent persons thought we ought to shirk them. I hold that a great and masterful people forfeits its title to greatness if it shirks any work because that work is difficult and

responsible. The difficulty and responsibility impose upon us the high duty of doing the work well, but they in no way excuse us for refusing to do it. We had to do the work and the question came of the choice of instruments in doing it. The most important and most difficult task after the establishment of order by the army in the Philippines was the establishment of civil government therein; and second only in importance to that came the administration of Cuba, during the three years and over that elapsed before we were able to turn its government over to its own people and start it as a free Republic. When tasks are all-important the most important factor in doing them right is the choice of the agents; and among the many debts of gratitude which this Nation owes to President McKinley, no debt is greater than the debt we owe him for the choice of his instruments, such a choice as that of Taft, such a choice as that of Wood. We sent Taft to the Philippines; we sent Wood to Cuba; both of them as tested by the standard of our commercial life, poor men; each man with little more than his salary to keep himself and his family; each man to handle millions upon millions of dollars, to have the power by mere conniving at what was improper to acquire untold wealth—and sent them knowing that we did not ever have to consider whether such opportunities would be temptations toward them; sent them knowing that they had the ideals of the true American and that, therefore, we did not have to consider the chance of such a temptation appealing to them.

Taft went to the Philippines to stay there; not only forfeiting thereby the certainty of brilliant rise in his profession on the bench or at the bar here if he had stayed, but at imminent risk to his own health; because he felt that his duty as an American made him go; that, as President McKinley told me of him, he had been drafted into the service of the country and he could not honorably refuse. We have seen in consequence the Philippine Islands administered by the American official who is at the head of the government and by his colleagues in the interest primarily of their people, and seeking to obtain for the United States, for the dominant race, that spent its blood and its treasure in making firm and stable the government of those islands, the reward that comes from the consciousness of duty well done. Under Taft, by and through his efforts, not only have peace and material well-being come to those islands to a degree never before known in their recorded history, and to a degree infinitely greater than had ever been dreamed possible by those who knew them best, but more than that, a

greater measure of self-government has been given to them than is now given to any other Asiatic people under alien rule, than to any other Asiatic people under their own rulers, save Japan alone. That is an achievement of the past five years which I hold to be absolutely unparalleled in history; and when the debit and credit side of our national life is finally made up a long stroke shall be put to the credit side for what has been done in the Philippines under Taft and his associates.

In the same way Leonard Wood worked in Cuba. Put down there to do an absolutely new task, to take a people of a different race, a different speech, a different creed, a people just emerging from the hideous welter of a war, cruel and sanguinary beyond what we in this fortunate country can readily conceive, to take a people down in the depths of poverty and misery, just recovering from suffering which makes one shudder to think of, a people untrained utterly and absolutely in self-government, and fit them for it; and he did it. For three years he worked. He established a school system as good as the best that we have in any of our States. He cleaned cities which had never been cleaned in their existence before. He secured absolute safety for life and property. He did the kind of governmental work which should be the undying honor of our people forever. And he came home to what? He came home to be thanked by a few, to be attacked by others—not to their credit—and to have as his real reward the sense that though his work had been done at pecuniary sacrifice to him, that though the demands upon him had been such as to eat into his private means, yet he had worthily and well done his duty as an American citizen and reflected fresh honor upon the uniform of the United States Army.

I have chosen Taft and Wood simply as instances of what other men by the hundred have done, Americans who have graduated from no college, Americans who have graduated from our different colleges, and especially by practically all those Americans who have graduated from the two great typical American institutions of learning—West Point and Annapolis. Taft and Wood and their fellows are spending or have spent the best years of their prime in doing a work which means to them pecuniary loss, at the best a bare livelihood while they are doing it, and are doing it gladly because they realize the truth that the highest privilege that can be given to any American is the privilege of serving his country, his fellow-Americans. As I am speaking to an audience with proper ideals, when I say that Taft and

Wood have done all this service to their pecuniary loss I am holding them up not for pity but for admiration. Every man, every woman here should feel it incumbent upon him or her to welcome with joy the chance to render service to the country, service to our people at large, and to accept the rendering of the service as in itself ample repayment therefor. Do not misunderstand me. The average man, the average woman must earn his or her living in one way or another, and I most emphatically do not advise any one to decline to do the humdrum, every-day duties because there may come a chance for the display of heroism. I ask of you the straightforward, earnest, performance of duty in all the little things that come up day by day in business, in domestic life, in every way, and then when the opportunity comes, if you have thus done your duty in the lesser things, I know you will rise level to the heroic needs.

AT BANQUET OF THE UNION LEAGUE CLUB OF SAN FRANCISCO, CAL., MAY 14, 1903

Mr. Toastmaster, and you, my Fellow-Members of the Union League Club:

No one can too strongly insist upon the elementary fact that you can not build the superstructure of public virtue save on private virtue. The sum of the parts is the whole, and if we wish to make that whole, the State, the representative and exponent and symbol of decency, it must be so made through the decency, public and private, of the average citizen.

It is absolutely essential if we are to have the proper standard of public life that promise shall be square with performance. A lie is no more to be excused in politics than out of politics. A promise is as binding on the stump as off the stump; and there are two facets to that crystal. In the first place, the man who makes a promise which he does not intend to keep and does not try to keep should rightly be adjudged to have forfeited in some degree what should be every man's most precious possession—his honor. On the other hand, the public that exacts a promise which ought not to be kept, or which can not be kept, is by just so much forfeiting its right to self-government. There is no surer way of destroying the capacity for self-government in a people than to accustom that people to demanding the impossible or the improper from its public men. No man fit to be a public man will promise either the impossible or the improper; and if the demand

is made that he shall do so it means putting a premium upon the unfit in public life. There is the same sound reason for distrusting the man who promises too much in public that there is for distrusting the man who promises too much in private business.

The one indispensable thing for us to keep is a high standard of character for the average American citizen.

AT CARSON CITY, NEVADA, MAY 19, 1903

Mr. Governor, Mr. Mayor, and you, my Fellow-Citizens:

It has been a great pleasure to be introduced in the more than kind words the Governor has used, because the Governor has been a genuine pioneer.

Here in this great Western country, the country which is what it is purely because the pioneers who came here had iron in their veins, because they were able to conquer plain and mountain, and to make the wilderness blossom, we are not to be excused if we do not see to it that the generation that comes after us is trained to have the sum of the fundamental qualities which enabled their fathers to succeed.

I want to say one special word to-day here in Carson City on a subject in which all of our people from the Atlantic to the Pacific take an interest, but which affects in especial the people of the States of the great plains and mountains and affects no State more than it does Nevada—the question of irrigation. Now, as I say, I do not regard that as in any way merely a question of the Rocky Mountain States, of the great plains States, because anything which tends for the well-being of any portion of the Union is therefore for the well-being of all of it, and it was for that reason that I felt warranted in appealing to the people of the seaboard States on the Atlantic, to the people of the States of the Great Lakes and the Mississippi Valley, to say that it was their duty to help in bringing about a scheme of national irrigation, because the interest of any part of this country is the interest of all of it; and no man is a really good American who fails to grasp that fact.

The National Government is still, as you all well know, but as many Easterners do not know, the greatest land owner in the Western States, and among all those States Nevada holds the great proportion of vacant public

land, and the need of Nevada for Federal assistance was one of the strongest arguments used in the discussion which preceded the reclamation act of June, 1902, the irrigation act of a year ago. The great extent of the vacant public lands in the State, the fact that its water supply came chiefly from streams rising in the adjoining State of California, and the overwhelming difficulties which for these and other reasons prevented the people of Nevada from efficiently acting in their own interest, made, in my judgment, and, as it proved, in the judgment of the Congress, Federal interference absolutely imperative. It is a matter for the strongest congratulation, not only for the West, but for the whole Nation, that the policy went into effect. It is a matter of special congratulation to Nevada that the Secretary of the Interior, guided in his choice wholly by actual conditions on the ground, has been led to undertake one of the five sets of works which have been first undertaken, here in Nevada, particularly near Reno on the Truckee River, as one of the national projects for the starting and working of the methods of the law. Extensive surveys have already been made, and the projects for water storage and water distribution are at a point which warrants our belief that immediate action is in sight. There are vast tracts of excellent land still in the ownership of the general government here in Nevada and elsewhere to which the reclamation act will bring the flood waters that now annually go to waste. For Nevada most of these waters originate in the high mountains lying in sight of Reno, largely just across the State line in California. Some of these mountains have been included in the forest reserves, and your interests and the interests of the irrigators in California imperatively demand the extension of the forest reserve system so that the source of supply for the great reservoirs and irrigation works may be safe from fire, from over-grazing, and from destructive lumbering. I ask you to pay attention to what I say when I use the word destructive lumbering; no one can desire to prevent, or do anything but help, practical and conservative lumbering. In other words, my fellow-citizens, we have reached a condition in which it must be the object of the Nation and the State to favor the development of the home-maker, of the man who takes up the land intending to keep it for himself and for his children, so that it shall be even of better use to them than to him.

The opportunities for the development of Nevada are very great. Until recently Nevada was only thought of as a mineral and stock-raising State. Much can be done yet as regards both the mineral exploitation and the

raising of stock within the State; but now under the stimulus of irrigation it is probable that irrigated agriculture will come to the front, and when it does the population will increase with a rapidity and permanence never before known. The State of Nevada has led the way not only in the strength of its plea for national aid in irrigation, but also in its willingness to assist in the work. I wish to lay emphasis on the fact that in Nevada the authorities have been anxious in every way to help in working out the problem of irrigation; and to pay all acknowledgment to them now. The recent Legislature passed laws which in many respects should serve as models for the legislation of other States. The union of land and water under the national law has been recognized, and so has the fundamental proposition which necessarily underlies the prosperity of all communities in which irrigated agriculture is the chief industry, namely, that the water belongs to the people and can not be made a monopoly. The public appreciation of this fundamental truth that the water belongs to the people to be taken and put to beneficial use will wipe out many controversies which are at present so harmful to the development of the West. And the example of Nevada will be of material aid in bringing about this fortunate result.

As I said of the forests so it is even more true of the water supply. It should be our constant policy by national and by State legislation to see that the water is used for the benefit of the occupants of the soil, of those who till and use the soil, that it is not exploited by any one man or set of men in his or their interests as against the interests of those on the land who are to use it. It is a fundamental truth that the prosperity of any people is simply another term for the prosperity of the home-makers among that people. Our entire policy in irrigation, in forestry, in handling the public lands, should be in recognition of that truth, to favor in every way the man who wishes to take up a given area of soil and thereon to build a home in which he will rear his children as useful citizens of the State.

FROM ADDRESS AT THE LAYING OF THE CORNERSTONE OF
THE LEWIS AND CLARK MEMORIAL, PORTLAND, ORE.,
MAY 21, 1903

Mr. Mayor, and you, my Fellow-Citizens:

We come here to-day to lay a cornerstone of a monument that is to call to mind the greatest single pioneering feat on this continent, the voyage across the continent by Lewis and Clark, which rounded out the ripe statesmanship of Jefferson and his fellows by giving to the United States all of the domain between the Mississippi and the Pacific. Following their advent came the reign of the fur trade; and then some sixty years ago those entered in whose children and children's children were to possess the land. Across the continent in the early 40's came the ox-drawn white-topped wagons bearing the pioneers, the stalwart, sturdy, sunburned men, with their wives and their little ones, who entered into this country to possess it. You have built up here this wonderful commonwealth, a commonwealth great in its past, and infinitely greater in its future.

It was a pleasure to me to-day to have as part of my escort the men of the Second Oregon, who carried on the expansion of our people beyond the Pacific as your fathers had carried it on to the Pacific. Speaking to you here I do not have to ask you to face the future high of heart and confident of soul. You could not assume any other attitude and be true to your blood, true to the position in which you find yourselves on this continent. I speak to the men of the Pacific Slope, to the men whose predecessors gave us this region because they were not afraid, because they did not seek the life of ease and safety, because their life training was not to shrink from obstacles but to meet and overcome them; and now I ask that this Nation go forward as it has gone forward in the past; I ask that it shape its life in accordance with the highest ideals; I ask that our name be a synonym for truthful and fair dealing with all the nations of the world; and I ask two things in connection with our foreign policy—that we never wrong the weak and that we never flinch from the strong. Base is the man who inflicts a wrong, and base is the man who suffers a wrong to be done him.

We have met to commemorate a mighty pioneer feat, a feat of the old days, when men needed to call upon every ounce of courage and hardihood and manliness they possessed in order to make good our claim to this continent. Let us in our turn with equal courage, equal hardihood and manliness, carry on the task that our forefathers have intrusted to our hands; and let us resolve that we shall leave to our children and our children's children an even mightier heritage than we received in our turn.

REMARKS IN ACCEPTING SOUVENIR PRESENTED BY THE
WORKMEN OF THE NAVY YARD, BREMERTON, WASH.,
MAY 23, 1903

I want to thank you and through you your fellow workmen for this token. I also wish to repeat what I have said before, that the victories of Manila and Santiago reflect credit not merely upon those who fought, but upon every man who did his work in preparing the ships for battle. There is not a workman in any of our yards who did his duty in connection with the guns, the armor plate, the turrets, the hulls, or anything, who has not his full right to a share in the credit of those victories. You all did your part in winning them just as much as the men who actually fought. Nothing could have pleased me more than to have received this gift from the men of the yard, and I appreciate it.

TO THE ARCTIC BROTHERHOOD, SEATTLE, WASH., MAY 23,
1903

Mr. Chairman, and you, Men and Women of Alaska:

Let me thank you and the members of the Arctic Brotherhood for their greeting. I am happy to say that during the last year or two the National Legislature has begun to realize its responsibilities in reference to Alaska; and that even those of our people who do not live on the Pacific Slope are beginning to understand that in the not distant future Alaska will be not merely a regularly organized Territory, but a great and populous State.

Very few European races have exercised a more profound influence upon Europe, and none has had a more heroic history, than the race occupying the Scandinavian peninsula of the Old World. And Alaska lies in the same latitude as, and can and will in the lifetime of those I am addressing support as great a population as, the Scandinavian peninsula. It is curious how our fate as a Nation has often driven us forward toward greatness in spite of the protests of many of those esteeming themselves in point of training and culture best fitted to shape the Nation's destiny. In 1803, when we acquired the territory stretching from the Mississippi to the Pacific, there were plenty of wise men who announced that we were acquiring a mere desert, that it was a violation of the Constitution to acquire it, and that the acquisition was

fraught with the seeds of the dissolution of the Republic. And think how absolutely the event has falsified the predictions of those men. So when in the late 60's we by treaty acquired Alaska, this great territory with its infinite possibilities was taken by this Republic in spite of the bitter opposition of many men who were patriots according to their lights and who esteemed themselves far-sighted. And but five years ago there were excellent men who bemoaned the fact that we were obliged during the war with Spain to take possession of the Philippines and to show that we were hereafter to be one of the dominant powers of the Pacific. In every instance how the after events of history have falsified the predictions of the men of little faith! There are critics so feeble and so timid that they shrink back when this Nation asserts that it comes in the category of the nations who dare to be great, and they want to know, forsooth, the cost of greatness and what it means. We do not know the cost, but we know it will be more than repaid ten times over by the result; and what it may ultimately mean we do not know, but we know what the present holds, what the present need demands, and we take the present and hold ourselves ready to abide the result of whatever the future may bring.

When I speak to you of the Pacific Slope, to you of the new Northwest, whose cities are seated here by the Sound, I speak to people abounding in their youth and their virile manhood, who do not fear to grasp opportunity as the opportunity comes, and who weigh slight risk but lightly in the balance when on the other side of the scale comes the greatness of triumph, the greatness of acquisition. We took Alaska thirty-five years ago, and at last we have begun to wake up to the heritage that thereby we have handed over to our children. I speak to you, citizens of Alaska, people who have dwelt therein, to say how much all our people owe to you. During the last year many wise laws have been put upon the statute book in reference to Alaska; not as many as should have been put, but a good many. I earnestly hope that Congress will speedily provide for a delegate from Alaska, so that the people of the Territory may have some recognized exponent whose duty it shall be to place its needs before the National Legislature. Meanwhile, with the assistance of the Senators and Representatives in Congress from this section of the country, I shall do all that in me lies to see that the proper kinds of legislation are enacted for the Territory.

The immediate cause of the great development of Alaska of course is to be found in its mines; but most of the people of this country are wholly in error when they think of the mines as being the sole or even the chief permanent cause of Alaska's future greatness. Alaska has great possibilities of agricultural and pastoral development. Not only her mines, her fisheries, her forests, but her agriculture and her stock-raising will combine to make Alaska one of the great wealth-producing portions of our Republic. I am anxious that our laws should be framed in the interest of those who intend to go there and stay there and bring up their children there and make it in very fact as well as in name an integral part of this Republic. I ask your help and pledge you my help in the effort to secure such legislation. In the case of the mine you get the metal out of the earth, you can not leave any metal in there to produce other metal; but in the case of the salmon fishery, if you are wise you will insist upon its being carried on under conditions which will make the salmon fishery as valuable in that river thirty years hence as now. Do not take all the salmon out and go away and leave the empty river for your children and children's children; take it out under conditions—the conditions are ready to be created for you by the National Fish Commission, which has been so singularly successful in its work—which will secure the preservation of that river as a salmon river, which will secure the perpetuation of salmon canneries along its banks, so that it will be not an industry carried on only by Orientals in the employ of three or four alien capitalists, but carried on in such a way as to be a perpetual source of income to the actual settlers resident in the locality. Just in the same way I want to have you see that the lumber industry is exploited in a way which, while giving a great return to those engaged in it at the moment, shall also secure the preservation of the forests for the settlers and the settlers' children that are to come in and inherit the land. I wish to see such land laws enacted and to see them so administered as to be in the interest of the actual settler who goes to Alaska to live, who desires there to produce crops, to raise stock, to make a home for himself; subject to that condition I desire to see legislation shaped in the spirit of the broadest liberality that will secure the quickest possible development of the resources of Alaska; and with that aim in view to have all the encouragement possible given to those seeking to establish by steamship line and by railway quick and efficient transportation facilities in the Territory.

Few things have been more typical of our people and have been more full of promise for the future than the way in which the resources have been developed; and when one sees what has been done here during the last few years I think we have cause to feel abundantly justified in our belief that the qualities of the old-time pioneers who first penetrated the woody wilderness between the Alleghanies and the Mississippi, who then steered their way across vast seas of grass from the Mississippi to the Rockies, who penetrated the passes of the great barren mountains until they came to this, the greatest of all the oceans, still survive in their grandsons and successors. Nor must we forget in speaking of Alaska the immense importance that the Territory has from the standpoint of the needs of the Nation as a whole, as a dominant power in the Pacific. Exactly as with the building of the Isthmian Canal we shall make our Atlantic and our Pacific coasts in effect continuous, so the possession and peopling of the Alaskan seacoast puts us in a position of dominance as regards the Pacific which no other nations share or can share.

FROM ADDRESS AT EVERETT, WASH., MAY 23, 1903

There are few problems which so especially concern Washington, Oregon, and California as the problem of forestry. Nothing has been of better augury for the welfare and prosperity of these great States as well as for the other forest States than the way in which those actively engaged in the lumbering business have come of recent years to work hand in hand with those who have made forestry a study in the effort to preserve the forests. The whole question is a business, an economic question; an economic question for the Nation, a business question for the individual. East of your great mountain chains the question of water supply becomes vital and becomes inseparable from that of forestry. Here that question does not enter in. The lumbering interest is the fourth great business interest in point of importance in the United States. There is engaged in it a capital of over six hundred millions of dollars, and every year the wage-workers in that industry receive one hundred millions of dollars. Such an industry so vitally connected with many others in the country can not with wisdom be neglected, the interests depending upon it are too vast. I do not have to say here in Washington that fire is a great enemy of the forests. Here in

Washington it is probable that fire has destroyed more than the axe during the decade in which the axe has been at work.

Our aim should be to get the fullest use from the forest to-day, and yet to get that benefit in ways which will keep the forests for our children in the generations to come; so that, for instance, the country adjoining Puget Sound shall have the lumbering industry as a permanent industry. Recently the trade journals of that industry have been dwelling upon the fact that its very existence is actually at stake, and nowhere in the whole country can the question of forestry be handled better than in this region, because nowhere else is it so easy to produce a second crop. You are fortunate in having such climatic conditions, such conditions of soil, that here more than anywhere else the forest renews itself quickly, so as in a comparatively short number of years to be again a great mercantile and industrial asset. The preservation of our forests depends chiefly upon the wisdom with which the practical lumberman, the practical expert in dealing with the lumber industry, works with the men who have studied forestry under all conditions. I am glad indeed that such co-operation is more and more being accepted as a matter of course by both sides.

FROM ADDRESS AT SEATTLE, WASH., MAY 23, 1903

There is no other body of water in the world which confers upon the commonwealth possessing it quite the natural advantages that Puget Sound confers upon your State. There is no other State in the Union, and I include all of them, which has greater natural advantages and a more assured future of greatness than this State of Washington. Phenomenal though your growth has been, it has barely begun; and your growth in the half century now opening will dwarf absolutely even your growth in the immediate past.

I am speaking in the gateway to Alaska. All our people, even those from the locality whence I come, are beginning to appreciate a little of Alaska's future. The men of my own age whom I am addressing will not be old men before we see Alaska one of the rich and strong States of the Union. I thank fortune that the National Legislature has begun to wake up to the fact that Alaska has interests of vital importance not merely to her but to the entire Union. Alaska contains a territory which will within this century support as large a population as the combined Scandinavian countries of Europe; those

countries from which has sprung as wonderful a race as ever imprinted its characteristics upon the history of civilization. Exactly as the Scandinavian peoples have left their mark upon the entire history of Europe, so we shall see Alaska with its mines, its lumber, its fisheries, with its possibilities in agriculture and stock-raising, with its possibilities of commercial command, with the tremendous development that is going on within it even now, produce as hardy and vigorous a people as any portion of North America.

AT SPOKANE, WASH., MAY 26, 1903

Senator Turner, and you, my Fellow-Americans:

I am in a city at the eastern gateway of this State with the great railroad systems of the State running through it. On the western edge of this State in Puget Sound I have seen the homing places of the great steamship lines, which, in connection with these great railroads, are doing so much to develop the Oriental trade of this country and this State. Washington will owe no small part of its future greatness, and that greatness will be great indeed, to the fact that it is thus doing its share in acquiring for the United States the dominance of the Pacific. Those railroads, the men and the corporations that have built them, have rendered a very great service to the community. The men who are building, the corporations which are building the great steamship lines have likewise rendered a very great service to the community. Every man who has made wealth or used it in developing great legitimate business enterprises has been of benefit and not harm to the country at large. This city has grown by leaps and bounds only when the railroads came to it, when the railroads came to the State; and if the State were now cut off from its connection by rail and by steamship with the rest of the world its position would of course diminish incalculably. Great good has come from the development of our railroad system; great good has been done by the individuals and corporations that have made that development possible; and in return good is done to them, and not harm, when they are required to obey the law. Ours is a government of liberty by, through and under the law. No man is above it and no man is below it. The crime of cunning, the crime of greed, the crime of violence, are all equally crimes, and against them all alike the law must set its face. This is not and never shall be a government either of a plutocracy or of a mob. It is, it has been,

and it will be, a government of the people; including alike the people of great wealth and of moderate wealth, the people who employ others, the people who are employed, the wage-worker, the lawyer, the mechanic, the banker, the farmer; including them all, protecting each and every one if he acts decently and squarely, and discriminating against any one of them, no matter from what class he comes, if he does not act squarely and fairly, if he does not obey the law. While all people are foolish if they violate or rail against the law—wicked as well as foolish, but all foolish—yet the most foolish man in this Republic is the man of wealth who complains because the law is administered with impartial justice against or for him. His folly is greater than the folly of any other man who so complains; for he lives and moves and has his being because the law does in fact protect him and his property.

We have the right to ask every decent American citizen to rally to the support of the law if it is ever broken against the interest of the rich man; and we have the same right to ask that rich man cheerfully and gladly to acquiesce in the enforcement against his seeming interest of the law, if it is the law. Incidentally, whether he acquiesces or not, the law will be enforced, and this whoever he may be, great or small, and at whichever end of the social scale he may be.

I ask that we see to it in our country that the line of division in the deeper matters of our citizenship be drawn, never between section and section, never between creed and creed, never, thrice never, between class and class; but that the line be drawn on the line of conduct, cutting through sections, cutting through creeds, cutting through classes; the line that divides the honest from the dishonest, the line that divides good citizenship from bad citizenship, the line that declares a man a good citizen only if, and always if, he acts in accordance with the immutable law of righteousness, which has been the same from the beginning of history to the present moment, and which will be the same from now until the end of recorded time.

FROM ADDRESS AT COLUMBIA GARDENS, BUTTE, MONT.,
MAY 27, 1903

Mr. Chairman, and you, my Fellow-Citizens:

It would have been a great pleasure to come to Butte in any event; it is a double pleasure to come here at the invitation of the representatives of the wage-workers of Butte. I do not say merely workingmen, because I hold that every good American who does his duty must be a workingman. There are many different kinds of work to do; but so long as the work is honorable, is necessary, and is well done the man who does it well is entitled to the respect of his fellows.

I have come here to this meeting especially as the invited guest of the wage-workers, and I am happy to be able to say that the kind of speech I will make to you, I would make just in exactly the same language to any group of employers or any set of our citizens in any corner of this Republic. I do not think so far as I know that I have ever promised beforehand anything I did not make a strong effort to make good afterward. It is sometimes very attractive and very pleasant to make any kind of a promise without thinking whether or not you can fulfil it; but in the after event it is always unpleasant when the time for fulfilling comes; for in the long run the most disagreeable truth is a safer companion than the most pleasant falsehood.

To-night I have come hither looking on either hand at the results of the enterprises which have made Butte so great. The man who by the use of his capital develops a great mine, the man who by the use of his capital builds a great railroad, the man who by the use of his capital either individually or joined with others like him does any great legitimate business enterprise, confers a benefit, not a harm, upon the community, and is entitled to be so regarded. He is entitled to the protection of the law, and in return he is to be required himself to obey the law. The law is no respecter of persons. The law is to be administered neither for the rich man as such, nor for the poor man as such. It is to be administered for every man, rich or poor, if he is an honest and law-abiding citizen; and it is to be invoked against any man, rich or poor, who violates it, without regard to which end of the social scale he may stand at, without regard to whether his offence takes the form of greed and cunning, or the form of physical violence; in either case if he violates the law, the law is to be invoked against him; and in so invoking it I have the right to challenge the support of all good citizens and to demand the acquiescence of every good man. I hope I will have it; but once for all I wish it understood that even if I do not have it I shall enforce the law.

The soldiers who fought in the great Civil War fought for liberty under, by, and through the law; and they fought to put a stop once for all to any effort to sunder this country on the lines of sectional hatred; therefore their memory shall be forever precious to our people. We need to keep ever in mind that he is the worst enemy of this country who would strive to separate its people along the lines of section against section, of creed against creed, or of class against class. There are two sides to that. It is a base and an infamous thing for the man of means to act in a spirit of arrogant and brutal disregard of right toward his fellow who has less means; and it is no less infamous, no less base, to act in a spirit of rancor, envy, and hatred against the man of greater means, merely because of his greater means. If we are to preserve this Republic as it was founded, as it was handed down to us by the men of '61 to '65, and as it is and will be, we must draw the line never between section and section, never between creed and creed, thrice never between class and class; but along the line of conduct, the line that separates the good citizen wherever he may be found from the bad citizen wherever he may be found. This is not and never shall be a government of a plutocracy; it is not and never shall be a government by a mob. It is as it has been and as it will be, a government in which every honest man, every decent man, be he employer or employed, wage-worker, mechanic, banker, lawyer, farmer, be he who he may, if he acts squarely and fairly, if he does his duty by his neighbor and the State, receives the full protection of the law and is given the amplest chance to exercise the ability that there is within him, alone or in combination with his fellows as he desires. My friends, it is sometimes easier to preach a doctrine under which the millennium will be promised off-hand if you have a particular kind of law, or follow a particular kind of conduct—it is easier, but it is not better. The millennium is not here; it is some thousand years off yet. Meanwhile there must be a good deal of work and struggle, a good deal of injustice; we shall often see the tower of Siloam fall on the just as well as the unjust. We are bound in honor to try to remedy injustice, but if we are wise we will seek to remedy it in practical ways. Above all, remember this: that the most unsafe adviser to follow is the man who would advise us to do wrong in order that we may benefit by it. That man is never a safe man to follow; he is always the most dangerous of guides. The man who seeks to persuade any of us that our advantage comes in wronging or oppressing others can be depended upon, if the opportunity comes, to do wrong to us in his own

interest, just as he has endeavored to make us in our supposed interest do wrong to others.

AT THE TABERNACLE, SALT LAKE CITY, UTAH, MAY 29, 1903

Mr. Governor, Mr. Mayor, Senator Kearns, and you, my Fellow-Americans:

I am particularly glad to have the chance to speak to you here in this city, in Utah, this morning, because you have exemplified a doctrine which it seems to me all-essential for our people ever to keep fresh in their minds—the fact that though natural resources can do a good deal, though the law can do a good deal, the fundamental requisite in building up prosperity and civilization is the requisite of individual character in the individual man or woman. Here in this State the pioneers and those who came after them took not the land that would ordinarily be chosen as land that would yield return with little effort. You took territory which at the outset was called after the desert, and you literally—not figuratively—you literally made the wilderness blossom as the rose. The fundamental element in building up Utah has been the work of the citizens of Utah. And you did it because your people entered in to possess the land and to leave it after them to their children and their children's children. You here whom I am addressing and your predecessors did not come in to exploit the land and then go somewhere else. You came in, as the Governor has said, as home-makers, to make homes for yourselves and those who should come after you; and that is the only way in which a State can be built up, in which the Nation can be built up. You have built up this great community because you came here with the purpose of making this your abiding home, and of leaving to your children not an impoverished, but an enriched heritage; and I ask that all our people from one ocean to the other, but especially the people of the arid and the semi-arid regions, the people of the great plains, the people of the mountains, approach the problem of taking care of the physical resources of the country in the spirit which has made Utah what it is. You have developed your metal wealth wonderfully; and your growth is not a boom growth—it is a thoroughly healthy, normal growth. During the past decade the population has doubled and the wealth quadrupled; and labor is employed at as high a compensation as is paid elsewhere in the world. Although you are not essentially a mining State, in the last year you

marketed thirty millions' worth of ore; and again you showed your good sense in the way you handled it; for you paid five millions in dividends and you invested the balance in labor and surplus. The effort to make a big showing in dividends is not always healthy for the future. Here you have shown your wonderful capacity to develop the earth so as to make both irrigated agriculture and stock-raising in all its forms two great industries. When you deal with a mine you take the ore out of the earth and take it away, and in the end exhaust the mine. The time may be very long in coming before it is exhausted, or it may be a short time; but in any event, mining means the exhaustion of the mine. But that is exactly what agriculture does not and must not mean.

So far from agriculture properly exhausting the land, it is always the sign of a vicious system of agriculture if the land is rendered poorer by it. The direct contrary should be the fact. After the farmer has had the farm for his life he should be able to hand it to his children as a better farm than it was when he had it.

In these regions, in the Rocky Mountain regions, it is especially incumbent upon us to treat the question of the natural pasturage, the question of the forests, and the question of the use of the waters, all from the one standpoint—the standpoint of the far-seeing statesman, of the far-seeing citizen, who wishes to preserve and not to exhaust the resources of the country, who wishes to see those resources come into the hands not of a few men of great wealth, least of all into the hands of a few men who will speculate in them; but be distributed among many men, each of whom intends to make his home in the land.

This whole so-called arid and semi-arid region is by nature the stock range of the Nation. One of the questions which are rising to confront us is how this range may be made to produce the greatest number and best quality of horses, cattle, and sheep, not only this year, not only next year, but for this generation and the next generation. The old system of grazing the ranges so closely as to injure the whole crop of grass was a serious detriment to the development of the West, a serious detriment to the development of our people. The ranges must be treated as a great invested capital; and that old system tended to dissipate and partially to destroy that capital. That is something that we can not as a Nation of home-makers permit. The wise man, the wise industry, the wise nation, maintains such

capital unimpaired and tries to increase it; and more and more the range lands will be used in conjunction with the small irrigable areas which they include; so that the industry can take on a more stable character than ever before. It is impossible permanently, although it may be advisable for the time being, to move stock in a body from summer to winter ranges across country which can be made into homesteads, because when the country can itself be taken by actual settlers, in the long run it will only be possible to move the stock through hundreds of miles of dusty lanes where they can not graze, where they can not live. Our aim must be steadily to help develop the settler, the man who lives in the land and in growing up with it and raising his children to own it after him. More and more hereafter the stock owners will have the necessity forced upon them of providing green summer pasturage within the limits of their own ranges; and so the question of irrigation is wellnigh as important to the stockmen as to the agriculturist proper.

In the same way our mountain forests must be preserved from the harm done by over-grazing. Let all the grazing be done in them that can be done without injury to them, but do not let the mountain forests be despoiled by the man who will over-graze them and destroy them for the sake of three years' use, and then go somewhere else, and leave by so much diminished the heritage of those who remain permanently in the land. I believe that already the movement has begun which will make in the long run the stock-raisers,—of whom I have been one myself, whose business I know, and with whom I feel the heartiest sympathy,—through the enlightenment of their own self-interest, become the heartiest defenders and the chief beneficiaries of the wise and moderate use of forest ranges, both within and without the forest reserves. It is and it must be the definite policy of this government to consider the good of all its citizens—stockmen, lumbermen, irrigators, and all others—in dealing with the forest reserves; and for that reason I most earnestly desire in every way to bring about the heartiest co-operation between the men who are doing the actual business of stock-raising, the actual business of irrigated agriculture, the actual business of lumbering,—the closest and most intimate relations, the heartiest co-operation between them and the government at Washington through the Department of Agriculture. Of course I do not have to say to any audience of intelligent people that nothing is such an enemy to the stock industry as persistent over-grazing. We shall have not far hence to raise the problem of

the best method of making use of the public range. Our people have not as yet settled in their own minds what is that best method. In some way there will have to be formed such regulation as shall without undue restriction prevent the needless over-grazing, while keeping the public lands open to settlement through homestead entry. Such a policy would, of course, be of the most far-reaching benefit to the whole range industry. It is the same in dealing with our forest reserves. Almost every industry depends in some more or less vital way upon the preservation of the forests; and while citizens die, the government and the nation do not die, and we are bound in dealing with the forests to exercise the foresight necessary to use them now, but to use them in such a way as will also keep them for those who are to come after us.

The first great object of the forest reserves is, of course, the first great object of the whole land policy of the United States,—the creation of homes, the favoring of the home-maker. That is why we wish to provide for the home-makers of the present and the future the steady and continuous supply of timber, grass, and above all, of water. That is the object of the forest reserves, and that is why I bespeak your cordial co-operation in their preservation. Remember you must realize, what I thoroughly realize, that however wise a policy may be it can be enforced only if the people of the States believe in it. We can enforce the provisions of the forest reserve law or of any other law only so far as the best sentiment of the community or the State will permit that enforcement. Therefore it lies primarily not with the people at Washington, but with you, yourselves, to see that such policies are supported as will redound to the benefit of the home makers and therefore the sure and steady building up of the State as a whole.

One word as to the greatest question with which our people as a whole have to deal in the matter of internal development to-day—the question of irrigation. Not of recent years has any more important law been put upon the statute books of the Federal Government than the law a year ago providing for the first time that the National Government should interest itself in aiding and building up a system of irrigated agriculture in the Rocky Mountains and plains States. Here the government had to a large degree to sit at the feet of Gamaliel in the person of Utah; for what you had done and learned was of literally incalculable benefit to those engaged in framing and getting through the national irrigation law. Irrigation was first

practiced on a large scale in this State. The necessity of the pioneers here led to the development of irrigation to a degree absolutely unknown before on this continent. In no respect is the wisdom of the early pioneers made more evident than in the sedulous care they took to provide for small farms, carefully tilled by those who lived on and benefited from them; and hence it comes about that the average amount of land required to support a family in Utah is smaller than in any other part of the United States. We all know that when you once get irrigation applied rain is a very poor substitute for it. The Federal Government must co-operate with Utah and Utah people for a further extension of the irrigated area. Many of the simpler problems of obtaining and applying water have already been solved and so well solved that, as I have said, some of the most important provisions of the Federal act, such as the control of the irrigating works by the communities they serve, such as making the water appurtenant to the land and not a source of speculation apart from the land, were based upon the experience of Utah. Of course the control of the larger streams which flow through more than one State must come under the Federal Government. Many of the great tracts which will ultimately so enlarge the cultivated area of Utah, which will ultimately so increase its population and wealth, are surrounded with intricate complications because of the high development which irrigation has already reached in this State. Necessarily the Federal officers charged with the execution of the law must proceed with great caution so as not to disturb present vested rights; but subject to that, they will go forward as fast as they can. They realize, and all men who have actually done irrigating here will realize, that no man is more timid than the practical irrigator regarding any change in the water distribution. He wants to look well before he leaps. He has learned from bitter experience what damage can come from well meant changes hastily made. The government can do a good deal; the government will do a good deal; but your experience here in Utah has shown that the greatest results which are accomplishing most spring directly from the sturdy courage, the self-denial, the willingness with iron resolution to endure the risk and the suffering, of the pioneers; for they were the men who sought and found a livelihood in what was once a desert, and they must be protected in the legitimate fruits of their toil.

One of the tasks that the government must do here in Utah is to build reservoirs for the storage of the flood waters, to undertake works too great to be undertaken by private capital. Great as the task is, and great as its

benefits will become, the government must do still more. Besides the storage of the water there must be protection of the watersheds; and that is why I ask you to help the National Government protect the watersheds by protecting the forests upon them.

AT FREEPORT, ILL., JUNE 3, 1903

Congressman Hitt, and you, my Fellow-Countrymen:

Here where we meet to-day there occurred one of those memorable scenes in accordance with which the whole future history of nations is molded. Here were spoken winged words that flew through immediate time and that will fly through that portion of eternity recorded in the history of our race. Here was sounded the keynote of the struggle which after convulsing the Nation, made it in fact what it had only been in name,—at once united and free. It is eminently fitting that this monument, given by the women of this city in commemoration of the great debate that here took place, should be dedicated by the men whose deeds made good the words of Abraham Lincoln—the soldiers of the Civil War. The word was mighty. Had it not been for the word the deeds could not have taken place; but without the deeds the word would have been the idlest breath. It is forever to the honor of our nation that we brought forth the statesman who, with far-sighted vision, could pierce the clouds that obscured the sight of the keenest of his fellows, could see what the future inevitably held; and moreover that we had back of the statesman and behind him the men to whom it was given to fight in the greatest war ever waged for the good of mankind, for the betterment of the world.

I have literally but a moment here. I could not resist the chance that was offered me to stop and dedicate this monument, for great though we now regard Abraham Lincoln, my countrymen, the future will put him on an even higher pinnacle than we have put him. In all history I do not believe that there is to be found an orator whose speeches will last as enduringly as certain of the speeches of Lincoln; and in all history, with the sole exception of the man who founded this Republic, I do not think there will be found another statesman at once so great and so single-hearted in his devotion to the weal of his people. We can not too highly honor him; and the highest way in which we can honor him is to see that our homage is not only

homage of words; that to lip loyalty we join the loyalty of the heart; that we pay honor to the memory of Abraham Lincoln by so conducting ourselves, by so carrying ourselves as citizens of this Republic, that we shall hand on undiminished to our children and our children's children the heritage we received from the men who upheld the statesmanship of Lincoln in the council, who made good the soldiership of Grant in the field.

AT THE LINCOLN MONUMENT, SPRINGFIELD, ILL., JUNE 4,
1903

It is a good thing that the guard around the tomb of Lincoln should be composed of colored soldiers. It was my own good fortune at Santiago to serve beside colored troops. A man who is good enough to shed his blood for the country is good enough to be given a square deal afterward. More than that no man is entitled to, and less than that no man shall have.

AT THE CONSECRATION OF GRACE MEMORIAL REFORMED
CHURCH, WASHINGTON, D. C., JUNE 7, 1903

I shall ask your attention to three lines of the Dedication Canticle: "Serve the Lord with gladness: enter into His gates with thanksgiving, and into His courts with praise. Who shall ascend into the hill of the Lord? or who shall stand in His holy place? He that hath clean hands, and a pure heart; who hath not lifted up his soul with vanity, nor sworn deceitfully."

Better lines could surely not be brought into any dedication service of a church; and it is a happy thing that we should have repeated them this morning. This church is consecrated to the service of the Lord; and we can serve Him by the way we serve our fellow-men. This church is consecrated to service and duty. It was written of old that "by their fruits ye shall know them"; and we can show the faith that is in us, we can show the sincerity of our devotion, by the fruits we bring forth. The man who is not a tender and considerate husband, a loving and wise father, is not serving the Lord when he goes to church; so with the woman; so with all who come here. Our being in this church, our communion here with one another, our sitting

under the pastor and hearing from him the word of God, must, if we are sincere, show their effects in our lives outside.

We of the Dutch and German Reformed Churches, like our brethren of the Lutheran Church, have a peculiar duty to perform in this great country of ours, a country still in the making, for we have the duty peculiarly incumbent upon us to take care of our brethren who come each year from over seas to our shores. The man going to a new country is torn by the roots from all his old associations, and there is great danger to him in the time before he gets his roots down into the new country, before he brings himself into touch with his fellows in the new land. For that reason I always take a peculiar interest in the attitude of our churches toward the immigrants who come to these shores. I feel that we should be peculiarly watchful over them, because of our own history, because we or our fathers came here under like conditions. Now that we have established ourselves let us see to it that we stretch out the hand of help, the hand of brotherhood, toward the new-comers, and help them as speedily as possible to get into such relations that it will be easy for them to walk well in the new life. We are not to be excused if we selfishly sit down and enjoy gifts that have been given to us and do not try to share them with our poorer fellows coming from every part of the world, who many of them stand in such need of the helping hand; who often not only meet too many people anxious to associate with them for their detriment, but often too few anxious to associate with them for their good.

I trust that with the consecration of each new church of the Reformed creed in this our country there will be established a fresh centre of effort to get at and to help for their good the people that yearly come from over seas to us. No more important work can be done by our people; important to the cause of Christianity, important to the cause of true national life and greatness here in our own land.

Another thing: let us so far as strength is given us make it evident to those who look on and who are not of us that our faith is not one of words merely; that it finds expression in deeds. One sad, one lamentable phase of human history is that the very loftiest words, implying the loftiest ideas, have often been used as cloaks for the commission of dreadful deeds of iniquity. No more hideous crimes have ever been committed by men than those that have been committed in the name of liberty, of order, of

brotherhood, of religion. People have butchered one another under circumstances of dreadful atrocity, claiming all the time to be serving the object of the brotherhood of man or of the fatherhood of God. We must in our lives, in our efforts, endeavor to further the cause of brotherhood in the human family; and we must do it in such a way that the men anxious to find subject for complaint or derision in the churches of the United States, in our church, may not be able to find it by pointing out any contrast between our professions and our lives.

This church is consecrated to-day to duty and to service, to the worship of the Creator, and to an earnest effort on our part so to shape our lives among ourselves and in relation to the outside world that we may feel that we have done our part in bringing a little nearer the day when there shall be on this earth a genuine brotherhood of man.

AT THE SAENGERFEST, BALTIMORE, MD., JUNE 15, 1903

My Fellow-Citizens:

Let me in the first place congratulate the city of Baltimore upon what she has done and upon the way she has done it; and then let me welcome the members of the Saengerfest Association and all the guests of Baltimore this evening. Since the beginning of our country's history many different race strains have entered to make up the composite American. Out of and from each we have gained something for our national character; to each we owe something special for what it has contributed to us as a people.

It is almost exactly two hundred and twenty years ago that the first marked immigration from Germany to what were then the colonies in this Western Hemisphere began. As is inevitable with any pioneers those pioneers of the German race on this side of the ocean had to encounter bitter privation, had to struggle against want in many forms; had to meet and overcome hardship; for the people that go forth to seek their well-being in strange lands must inevitably be ready to pay as the price of success the expenditure of all that there is in them to overcome the obstacles in their way. It was some fifty years later that the great tide of German immigration in colonial times began to flow hither; one of the leaders in it being Muhlenburg, the founder of a family which has contributed to military and

civil life some of the worthiest figures in American history. The first of the famous speakers of the House of Representatives was Muhlenburg, of German ancestry.

Baltimore is a centre in that region of our land where from the earliest days there was that intermingling of ethnic strains which finally went to the making of the Americans who in '76 made this country a nation. Within the boundaries of this State was founded that colony which first of all on this western continent saw a government modeled upon these principles of religious freedom and toleration which we now regard as the birthrights of American citizens.

Throughout our career of development the German immigration to this country went steadily onward, and they who came here, and their sons and grandsons, played an ever-increasing part in the history of our people—a part that culminated in the Civil War; for every lover of the Union must ever bear in mind what was done in this commonwealth as in the commonwealth of Missouri, by the folk of German birth or origin who served so loyally the flag that was theirs by inheritance or adoption.

And here in this city I would be unwilling to let an occasion like this pass without recalling the part of incalculable importance played by the members of the Turn Verein of Baltimore in saving Baltimore to the Union. In congratulating every man here to whom it was given to fight in the great Civil War, in congratulating the men of Baltimore who in these dark days followed the lead of Sigel, Rapp, and Blumenberg in playing well and nobly their part in upholding the hands of Abraham Lincoln, I congratulate them thrice over because it was given to them to fight in a contest where the victors and the vanquished alike have bequeathed to us as a heritage the memory of the valor and the loyalty to the right as to each it was given to see the right, shown alike by the men who wore the blue and the men who wore the gray, in the great days of the Civil War. Terrible though that contest was, in which with blood and tears and sweat, with the suffering of men and the sorrow of women, the generation of Lincoln and Grant purchased for us peace and union, it paid for itself over and over again by what it left to us—not merely a reunited land, not merely a land in which freedom was a fact instead of only a boast, but above all the right as Americans to feel within us the lift toward lofty things which must come to

those who know that their fathers and forefathers have in the supreme crisis entirely shown themselves fit to rank among the men of all time.

I want to say just one thing more. I feel that the men of this Association and of kindred associations are not only adding to the common fund of pleasure, but are doing genuine missionary work of a needed kind when they hold such a festival as this. I wish that everywhere in our country we could see clubs and associations including all our citizens, similar in character to that Society which has furnished the reason for the assembling of this great audience to-night. No greater contribution to American social life could possibly be made than by instilling into it the capacity for *Gemüthlichkeit*. No greater good can come to our people than to encourage in them a capacity for enjoyment which shall discriminate sharply between what is vicious and what is pleasant. Nothing can add more to our capacity for healthy social enjoyment than, by force of example no less than by precept, to encourage the formation of societies which by their cultivation of music, vocal and instrumental, give great lift to the artistic side, the æsthetic side of our nature; and especially is that true when we remember that no man is going to go very far wrong if he belongs to a society where he can take his wife with him to enjoy it.

AT THE UNIVERSITY OF VIRGINIA, CHARLOTTESVILLE, VA.,
JUNE 16, 1903

Mr. Chairman; my Fellow-Americans:

It is to me to-day a double pleasure to be with you; in the first place, because the University of Virginia is one among that limited number of institutions of learning to which because of its historic association every American proud of his country and his country's history must turn; and in the next place, because I have just finished a trip to and fro across this continent, which at almost every step has reminded me of some great deed done by a Virginian or a descendant of a Virginian, in that wonderful formative period which has occupied more than half of this Republic's life; going across the Alleghanies in the path over the mountains which men of Virginia first crossed to found the commonwealth of Kentucky; beyond the Ohio, which was crossed by a military force carrying the American flag for the first time when a son of Virginia, George Rogers Clark, led his little

band of backwoods riflemen to conquer what is now the heart of this Republic, and that in the middle of the Revolutionary War. Then I crossed the Mississippi and went through that great region of prairie, plain, and mountain, now dotted with cities, each filled with the fruits of our material civilization, cities placed upon spots which were unknown to any map maker but a century ago; thence to the Pacific Ocean, I went through the regions which mark the two greatest territorial expansions of this Nation; the greatest of which, by the fact of its acquisition, is in itself a tribute most to that man who founded this University—President Thomas Jefferson—and which was explored by two Virginians born not far from this neighborhood—Lewis and Clark. When I got south of the limits of the old Louisiana Purchase I came into that region acquired as the result of the Mexican War—the region in territorial extent next to the Louisiana Purchase; and in that war the two foremost figures were men likewise born in Virginia—Zachary Taylor and Winfield Scott.

Virginia has always rightly prided herself upon the character of the men whom she has sent into public life. No more wonderful example of governmental ability, ability in statecraft and public administration, has ever been given than by the history of Virginia's sons in public life. I feel that this University, which so peculiarly embodies the ideal of Virginia, is in no small degree accountable for the happy keeping up of the spirit which sends into public life men of whom their constituents exact that they shall possess both courage and courtesy; and that is the reason why—as I am glad to say here in the presence of the two United States Senators from Virginia, both of them graduates of this University—whether one agrees or differs with them it is so genuine a pleasure to be brought into contact with them in handling public affairs.

In the very able address to which we have had the honor of listening it is pointed out that in mere years the history of this University is not long. Years count differently at different places and at different times. Fifty years of Europe are very much longer than a cycle of Cathay; and the period grows longer still when you take it across into the Western Hemisphere. To us of this Nation there must always be the charm of old historic associations inseparably connected with this institution, the birth of which will always recall the names of three of our greatest Presidents, and from which one can

wellnigh see the former abodes of all three of those Presidents—Jefferson, Madison, and Monroe.

Let me acknowledge a piece of personal indebtedness to this institution. When last year we sought at Washington to restore the White House, which ought to be always kept as the historic building of the Nation, to what it was planned to be by the founders of the Republic, we came here to study the building which represented in its existence the realization of the ideas of certain of those founders of the Republic, and gained from our study of a portion of this University an idea of the plan along which the restoration of the White House was to proceed.

The University is not old in years as years are counted in an older world, but there are very few institutions of learning in Europe which, however old, have such an honor roll of service to the State, in the council chambers of the State, and of service on the tented field, which have such an honor roll of statesmen and soldiers, as the roll that can be furnished by reading the list of the graduates of this University of Virginia. The University has been prolific of men who have gone into public life; but it is not only in public life that the record made by the University is imperishable. The strangest, in some ways the most brilliant name to be found in American letters, the name of the man who contributed something purely individual in poetry and in prose, not merely to the literature of this country, not merely to the literature of our tongue, but to the literature of mankind—the name of Edgar Allan Poe, is to be found upon your rolls. It is a pleasure to one who earnestly hopes to see the literary habit in American life kept up and who hopes to see a keeping up of productive scholarship and literature, to be able to number among his friends one of those younger literary men of whom it can be safely asserted that they have added something permanent to letters, in the person of one of your graduates—my friend, Mr. Thomas Nelson Page.

I owe you for other things. When I wished to choose the Surgeon-General of the Navy I had to go to Virginia and to the University of Virginia to find the man whom I esteem, not only because of his ability as a public servant, but because of those qualities which will render him ever one for whom I and mine feel the warmest and liveliest personal affection. Finally, when I had to choose an Ambassador to represent us at the court of Russia, I had to take another graduate of your University—Mr. McCormick. You

will pardon me one personal allusion; I shall never forget as long as I live certain of your graduates who served in my regiment during the Cuban War.

The University of Virginia has stood for much in our national life. It is something to stand merely for such beauty as your buildings and campus represent here. It is a good thing for any nation to have as beautiful an institution of learning as is this University. It is a good thing for the taste of a nation to have such an example of good taste ever before it. You stand for the production of scholarship; for the production of men who are to do well for the State if ever the need of calling upon them for their services may arise; but above all, as has been so well said in the address to which we have listened to-day, the University of Virginia stands for the production of men; of men who are to do each a man's duty in the world. A good American never owes anything that he does not seek to repay. The man who is content to go through life owing his alma mater for an education for which he has made no adequate return is not true to the ideals of American citizenship. He is in honor bound to make such return. He can make it in but one way; he can return what he owes to his alma mater only by making his alma mater proud of what he does in service rendered to his fellow-men. That is the type of return we have the right to expect of the University men in this country.

TO THE HOLY NAME SOCIETY AT OYSTER BAY, N. Y.,
AUGUST 16, 1903

Very Reverend Dean, Reverend Clergy, and you of the Holy Name Society:

I count myself fortunate in having the chance to say a word to you to-day; and at the outset let me, Father Power, on behalf of my neighbors, your congregation, welcome all your guests here to Oyster Bay. I have a partial right to join in that welcome myself, for it was my good fortune in the days of Father Power's predecessor, Father Belford, to be the first man to put down a small contribution for the erection of your church here. I am particularly glad to see such a society as this flourishing as your society has flourished, because the future welfare of our Nation depends upon the way in which we can combine in our men—in our young men—decency and strength. Just this morning when attending service on the great battleship *Kearsarge* I listened to a sermon addressed to the officers and enlisted men

of the navy, in which the central thought was that each American must be a good man or he could not be a good citizen. And one of the things dwelt upon in that sermon was the fact that a man must be clean of mouth as well as clean of life—must show by his words as well as by his actions his fealty to the Almighty if he was to be what we have a right to expect from men wearing the national uniform. We have good Scriptural authority for the statement that it is not what comes into a man's mouth but what goes out of it that counts. I am not addressing weaklings, or I should not take the trouble to come here. I am addressing strong, vigorous men, who are engaged in the active hard work of life; and life to be worth living must be a life of activity and hard work. I am speaking to men engaged in the hard, active work of life, and therefore to men who will count for good or for evil. It is peculiarly incumbent upon you who have strength to set a right example to others. I ask you to remember that you can not retain your self-respect if you are loose and foul of tongue, that a man who is to lead a clean and honorable life must inevitably suffer if his speech likewise is not clean and honorable. Every man here knows the temptations that beset all of us in this world. At times any man will slip. I do not expect perfection, but I do expect genuine and sincere effort toward being decent and cleanly in thought, in word, and in deed. As I said at the outset, I hail the work of this society as typifying one of those forces which tend to the betterment and uplifting of our social system. Our whole effort should be toward securing a combination of the strong qualities with those qualities which we term virtues. I expect you to be strong. I would not respect you if you were not. I do not want to see Christianity professed only by weaklings; I want to see it a moving spirit among men of strength. I do not expect you to lose one particle of your strength or courage by being decent. On the contrary, I should hope to see each man who is a member of this society, from his membership in it become all the fitter to do the rough work of the world; all the fitter to work in time of peace; and if, which may Heaven forbid, war should come, all the fitter to fight in time of war. I desire to see in this country the decent men strong and the strong men decent, and until we get that combination in pretty good shape we are not going to be by any means as successful as we should be. There is always a tendency among very young men and among boys who are not quite young men as yet to think that to be wicked is rather smart; to think it shows that they are men. Oh, how often you see some young fellow who boasts that he is going to “see

life,” meaning by that that he is going to see that part of life which it is a thousandfold better should remain unseen! I ask that every man here constitute himself his brother’s keeper by setting an example to that younger brother which will prevent him from getting such a false estimate of life. Example is the most potent of all things. If any one of you in the presence of younger boys, and especially the younger people of your own family, misbehave yourself, if you use coarse and blasphemous language before them, you can be sure that these younger people will follow your example and not your precept. It is no use to preach to them if you do not act decently yourself. You must feel that the most effective way in which you can preach is by your practice.

As I was driving up here a friend who was with us said that in his experience the boy who went out into life with a foul tongue was apt so to go because his kinsfolk, at least his intimate associates, themselves had foul tongues. The father, the elder brothers, the friends, can do much toward seeing that the boys as they become men become clean and honorable men.

I have told you that I wanted you not only to be decent, but to be strong. These boys will not admire virtue of a merely anæmic type. They believe in courage, in manliness. They admire those who have the quality of being brave, the quality of facing life as life should be faced, the quality that must stand at the root of good citizenship in peace or in war. If you are to be effective as good Christians you must possess strength and courage, or your example will count for little with the young, who admire strength and courage. I want to see you, the men of the Holy Name Society, you who embody the qualities which the younger people admire, by your example give those young people the tendency, the trend, in the right direction; and remember that this example counts in many other ways besides cleanliness of speech. I want to see every man able to hold his own with the strong, and also ashamed to oppress the weak. I want to see each young fellow able to do a man’s work in the world, and of a type which will not permit imposition to be practiced upon him. I want to see him too strong of spirit to submit to wrong, and, on the other hand, ashamed to do wrong to others. I want to see each man able to hold his own in the rough work of actual life outside, and also, when he is at home, a good man, unselfish in dealing with wife, or mother, or children. Remember that the preaching does not count if it is not backed up by practice. There is no good in your preaching to your

boys to be brave, if you run away. There is no good in your preaching to them to tell the truth if you do not. There is no good in your preaching to them to be unselfish if they see you selfish with your wife, disregarding of others. We have a right to expect that you will come together in meetings like this; that you will march in processions; that you will join in building up such a great and useful association as this; and, even more, we have a right to expect that in your own homes and among your own associates you will prove by your deeds that yours is not a lip loyalty merely; that you show in actual practice the faith that is in you.

ON BOARD THE *KEARSARGE*, DURING THE REVIEW OF THE
FLEET, AUGUST 17, 1903

Officers and Enlisted Men:

I wish to say a word of thanks to you on behalf of the people of the United States. There are many public servants whom I hold in high esteem, but there are no others whom as a class I hold in quite the esteem I do the officers and enlisted men of the navy and the army of the United States.

In doing your work here it should all be done with an eye toward the day when upon every man, from the admiral to the lowest in rank, may rest the responsibility as to whether or not a new page of honor in American history shall be turned. As I passed the *Olympia* I remembered her victory of May 1, 1898, which made her name forever one of renown in our history. But all aboard her had been equipped for the work by days and months, usually by years, of what must have often been irksome duty. In speaking to all of you I want a chance to say a word of special recognition to the gun pointers. The shots that hit are the shots that tell. They are what make the navy prove itself equal to any need. I am happy to say that the American seamen have never been found deficient in the fighting edge—the first requisite of the fighting man. I do not praise you for being brave; that is expected. The coward is to be condemned rather than the brave man to be praised. I expect every one to show a perfect willingness to die rather than to see the slightest stain put upon the American flag. But in addition you must know how to use to the utmost advantage the gear and the weapons. You must know how to fight as well as know how to die; only thus can you become the most efficient fighting force in the world. I again thank you for what you are. A peculiar responsibility attaches to each and every one of you. It has been a pleasure to see the ship and the guns, but, above all, the men behind the guns.

ON BOARD THE *OLYMPIA* DURING THE REVIEW OF THE
FLEET, AUGUST 17, 1903

As President of the United States, I wish, on behalf of the entire country, to greet you as representatives of the officers and enlisted men of the United States Navy. Every man aboard the *Olympia* must feel that on him rests a double duty, to see to it that the ship's name shall be for evermore a symbol of victory and of glory to all the people of our country. Nothing pleases me more than to see to-day for myself how high is the standard of the enlisted men of the United States Navy. I do not believe that our navy has ever been at a higher point of efficiency. Month by month the already high standard is being raised even higher. All alike share in the duty, and share in the honor which comes if the duty is well done. Whether the service is rendered in the conning tower, or in the gun-turrets, or in the engine-room, it matters not, so long as the service itself is of the highest possible kind. This ship commemorates forever the name of Admiral Dewey, as the *Hartford* commemorates that of Admiral Farragut. And I ask you all, as Americans proud of your country, from the admiral down to the last enlisted landsman, or the youngest apprentice, to appreciate alike the high honor and heavy responsibility of your positions.

AT THE STATE FAIR, SYRACUSE, N. Y., SEPTEMBER 7, 1903

Governor Higgins; my Fellow-Citizens:

In speaking on Labor Day at the annual fair of the New York State Agricultural Association, it is natural to keep especially in mind the two bodies who compose the majority of our people and upon whose welfare depends the welfare of the entire State. If circumstances are such that thrift, energy, industry, and forethought enable the farmer, the tiller of the soil, on the one hand, and the wage-worker, on the other, to keep themselves, their wives, and their children in reasonable comfort, then the State is well off, and we can be assured that the other classes in the community will likewise prosper. On the other hand, if there is in the long run a lack of prosperity among the two classes named, then all other prosperity is sure to be more seeming than real. It has been our profound good fortune as a Nation that hitherto, disregarding exceptional periods of depression and the normal and inevitable fluctuations, there has been on the whole from the beginning of our government to the present day a progressive betterment alike in the condition of the tiller of the soil and in the condition of the man who, by his manual skill and labor, supports himself and his family, and endeavors to bring up his children so that they may be at least as well off as, and if possible better off than, he himself has been. There are, of course, exceptions, but as a whole the standard of living among the farmers of our country has risen from generation to generation, and the wealth represented on the farms has steadily increased, while the wages of labor have likewise risen, both as regards the actual money paid and as regards the purchasing power which that money represents.

Side by side with this increase in the prosperity of the wage-worker and the tiller of the soil has gone on a great increase in prosperity among the business men and among certain classes of professional men; and the prosperity of these men has been partly the cause and partly the consequence of the prosperity of farmer and wage-worker. It can not be too often repeated that in this country, in the long run, we all of us tend to go up or go down together. If the average of well-being is high, it means that the

average wage-worker, the average farmer, and the average business man are all alike well off. If the average shrinks, there is not one of these classes which will not feel the shrinkage. Of course there are always some men who are not affected by good times, just as there are some men who are not affected by bad times. But speaking broadly, it is true that if prosperity comes all of us tend to share more or less therein, and that if adversity comes each of us, to a greater or less extent, feels the tension. Unfortunately, in this world the innocent frequently find themselves obliged to pay some of the penalty for the misdeeds of the guilty; and so if hard times come, whether they be due to our own fault or to our misfortune, whether they be due to some burst of speculative frenzy that has caused a portion of the business world to lose its head—a loss which no legislation can possibly supply—or whether they be due to any lack of wisdom in a portion of the world of labor—in each case the trouble once started is felt more or less in every walk of life.

It is all-essential to the continuance of our healthy national life that we should recognize this community of interest among our people. The welfare of each of us is dependent fundamentally upon the welfare of all of us, and therefore in public life that man is the best representative of each of us who seeks to do good to each by doing good to all; in other words, whose endeavor it is, not to represent any special class and promote merely that class's selfish interests, but to represent all true and honest men of all sections and all classes and to work for their interests by working for our common country.

We can keep our government on a sane and healthy basis, we can make and keep our social system what it should be, only on condition of judging each man, not as a member of a class, but on his worth as a man. It is an infamous thing in our American life, and fundamentally treacherous to our institutions, to apply to any man any test save that of his personal worth, or to draw between two sets of men any distinction save the distinction of conduct, the distinction that marks off those who do well and wisely from those who do ill and foolishly. There are good citizens and bad citizens in every class as in every locality, and the attitude of decent people toward great public and social questions should be determined, not by the accidental questions of employment or locality, but by those deep-set principles which represent the innermost souls of men.

The failure in public and in private life thus to treat each man on his own merits, the recognition of this government as being either for the poor as such or for the rich as such, would prove fatal to our Republic, as such failure and such recognition have always proved fatal in the past to other republics. A healthy republican government must rest upon individuals, not upon classes or sections. As soon as it becomes government by a class or by a section it departs from the old American ideal.

It is, of course, the merest truism to say that free institutions are of avail only to people who possess the high and peculiar characteristics needed to take advantage of such institutions. The century that has just closed has witnessed many and lamentable instances in which people have seized a government free in form, or have had it bestowed upon them, and yet have permitted it under the forms of liberty to become some species of despotism or anarchy, because they did not have in them the power to make this seeming liberty one of deed instead of one merely of word. Under such circumstances the seeming liberty may be supplanted by a tyranny or despotism in the first place, or it may reach the road of despotism by the path of license and anarchy. It matters but little which road is taken. In either case the same goal is reached. People show themselves just as unfit for liberty whether they submit to anarchy or to tyranny; and class government, whether it be the government of a plutocracy or the government of a mob, is equally incompatible with the principles established in the days of Washington and perpetuated in the days of Lincoln.

Many qualities are needed by a people which would preserve the power of self-government in fact as well as in name. Among these qualities are forethought, shrewdness, self-restraint, the courage which refuses to abandon one's own rights, and the disinterested and kindly good sense which enables one to do justice to the rights of others. Lack of strength and lack of courage unfit men for self-government on the one hand; and on the other, brutal arrogance, envy, in short, any manifestation of the spirit of selfish disregard, whether of one's own duties or of the rights of others, are equally fatal.

In the history of mankind many republics have risen, have flourished for a less or greater time, and then have fallen because their citizens lost the power of governing themselves and thereby of governing their state; and in

no way has this loss of power been so often and so clearly shown as in the tendency to turn the government into a government primarily for the benefit of one class instead of a government for the benefit of the people as a whole.

Again and again in the republics of ancient Greece, in those of mediæval Italy and mediæval Flanders, this tendency was shown, and wherever the tendency became a habit it invariably and inevitably proved fatal to the state. In the final result it mattered not one whit whether the movement was in favor of one class or of another. The outcome was equally fatal, whether the country fell into the hands of a wealthy oligarchy which exploited the poor or whether it fell under the domination of a turbulent mob which plundered the rich. In both cases there resulted violent alternations between tyranny and disorder, and a final complete loss of liberty to all citizens—destruction in the end overtaking the class which had for the moment been victorious as well as that which had momentarily been defeated. The death knell of the Republic had rung as soon as the active power became lodged in the hands of those who sought, not to do justice to all citizens, rich and poor alike, but to stand for one special class and for its interests as opposed to the interests of others.

The reason why our future is assured lies in the fact that our people are genuinely skilled in and fitted for self-government and therefore will spurn the leadership of those who seek to excite this ferocious and foolish class antagonism. The average American knows not only that he himself intends to do about what is right, but that his average fellow-countryman has the same intention and the same power to make his intention effective. He knows, whether he be business man, professional man, farmer, mechanic, employer, or wage-worker, that the welfare of each of these men is bound up with the welfare of all the others; that each is neighbor to the other, is actuated by the same hopes and fears, has fundamentally the same ideals, and that all alike have much the same virtues and the same faults. Our average fellow-citizen is a sane and healthy man, who believes in decency and has a wholesome mind. He therefore feels an equal scorn alike for the man of wealth guilty of the mean and base spirit of arrogance toward those who are less well off, and for the man of small means who in his turn either feels, or seeks to excite in others the feeling of mean and base envy for those who are better off. The two feelings, envy and arrogance, are but

opposite sides of the same shield, but different developments of the same spirit. Fundamentally, the unscrupulous rich man who seeks to exploit and oppress those who are less well off is in spirit not opposed to, but identical with, the unscrupulous poor man who desires to plunder and oppress those who are better off. The courtier and the demagogue are but developments of the same type under different conditions, each manifesting the same servile spirit, the same desire to rise by pandering to base passions; though one panders to power in the shape of a single man and the other to power in the shape of a multitude. So likewise the man who wishes to rise by wronging others must by right be contrasted, not with the man who likewise wishes to do wrong, though to a different set of people, but with the man who wishes to do justice to all people and to wrong none.

The line of cleavage between good and bad citizenship lies, not between the man of wealth who acts squarely by his fellows and the man who seeks each day's wage by that day's work, wronging no one and doing his duty by his neighbor; nor yet does this line of cleavage divide the unscrupulous wealthy man who exploits others in his own interest, from the demagogue, or from the sullen and envious being who wishes to attack all men of property, whether they do well or ill. On the contrary, the line of cleavage between good citizenship and bad citizenship separates the rich man who does well from the rich man who does ill, the poor man of good conduct from the poor man of bad conduct. This line of cleavage lies at right angles to any such arbitrary line of division as that separating one class from another, one locality from another, or men with a certain degree of property from those of a less degree of property.

The good citizen is the man who, whatever his wealth or his poverty, strives manfully to do his duty to himself, to his family, to his neighbor, to the State; who is incapable of the baseness which manifests itself either in arrogance or in envy, but who while demanding justice for himself is no less scrupulous to do justice to others. It is because the average American citizen, rich or poor, is of just this type that we have cause for our profound faith in the future of the Republic.

Ours is a government of liberty, by, through, and under the law. Lawlessness and connivance at law-breaking—whether the law-breaking take the form of a crime of greed and cunning or of a crime of violence—are destructive not only of order, but of the true liberties which can only

come through order. If alive to their true interests rich and poor alike will set their faces like flint against the spirit which seeks personal advantage by overriding the laws, without regard to whether this spirit shows itself in the form of bodily violence by one set of men or in the form of vulpine cunning by another set of men.

Let the watchwords of all our people be the old familiar watchwords of honesty, decency, fair dealing and common-sense. The qualities denoted by these words are essential to all of us, as we deal with the complex industrial problems of to-day, the problems affecting not merely the accumulation but even more the wise distribution of wealth. We ask no man's permission when we require him to obey the law; neither the permission of the poor man nor yet of the rich man. Least of all can the man of great wealth afford to break the law, even for his own financial advantage; for the law is his prop and support, and it is both foolish and profoundly unpatriotic for him to fail in giving hearty support to those who show that there is in very fact one law, and one law only, alike for the rich and the poor, for the great and the small.

Men sincerely interested in the due protection of property, and men sincerely interested in seeing that the just rights of labor are guaranteed, should alike remember not only that in the long run neither the capitalist nor the wage-worker can be helped in healthy fashion save by helping the other; but also that to require either side to obey the law and do its full duty toward the community is emphatically to that side's real interest.

There is no worse enemy of the wage-worker than the man who condones mob violence in any shape or who preaches class hatred; and surely the slightest acquaintance with our industrial history should teach even the most shortsighted that the times of most suffering for our people as a whole, the times when business is stagnant, and capital suffers from shrinkage and gets no return from its investments, are exactly the times of hardship, and want, and grim disaster among the poor. If all the existing instrumentalities of wealth could be abolished, the first and severest suffering would come among those of us who are least well off at present. The wage-worker is well off only when the rest of the country is well off; and he can best contribute to this general well-being by showing sanity and a firm purpose to do justice to others.

In his turn the capitalist who is really a conservative, the man who has forethought as well as patriotism, should heartily welcome every effort, legislative or otherwise, which has for its object to secure fair dealing by capital, corporate or individual, toward the public and toward the employee. Such laws as the franchise tax law in this State, which the Court of Appeals recently unanimously decided constitutional—such a law as that passed in Congress last year for the purpose of establishing a Department of Commerce and Labor, under which there should be a bureau to oversee and secure publicity from the great corporations which do an interstate business—such a law as that passed at the same time for the regulation of the great highways of commerce so as to keep these roads clear on fair terms to all producers in getting their goods to market—these laws are in the interest not merely of the people as a whole, but of the propertied classes. For in no way is the stability of property better assured than by making it patent to our people that property bears its proper share of the burdens of the State; that property is handled not only in the interest of the owner, but in the interest of the whole community.

In other words, legislation to be permanently good for any class must also be good for the Nation as a whole, and legislation which does injustice to any class is certain to work harm to the Nation. Take our currency system for example. This Nation is on a gold basis. The treasury of the public is in excellent condition. Never before has the per capita of circulation been as large as it is this day; and this circulation, moreover, is of money every dollar of which is at par with gold. Now, our having this sound currency system is of benefit to banks, of course, but it is of infinitely more benefit to the people as a whole, because of the healthy effect on business conditions.

In the same way, whatever is advisable in the way of remedial or corrective currency legislation—and nothing revolutionary is advisable under present conditions—must be undertaken only from the standpoint of the business community as a whole, that is, of the American body politic as a whole. Whatever is done, we can not afford to take any step backward or to cast any doubt upon the certain redemption in standard coin of every circulating note.

Among ourselves we differ in many qualities of body, head and heart; we are unequally developed, mentally as well as physically. But each of us has the right to ask that he shall be protected from wrongdoing as he does his

work and carries his burden through life. No man needs sympathy because he has to work, because he has a burden to carry. Far and away the best prize that life offers is the chance to work hard at work worth doing; and this is a prize open to every man, for there can be no work better worth doing than that done to keep in health and comfort and with reasonable advantages those immediately dependent upon the husband, the father, or the son.

There is no room in our healthy American life for the mere idler, for the man or the woman whose object it is throughout life to shirk the duties which life ought to bring. Life can mean nothing worth meaning, unless its prime aim is the doing of duty, the achievement of results worth achieving. A recent writer has finely said: "After all, the saddest thing that can happen to a man is to carry no burdens. To be bent under too great a load is bad; to be crushed by it is lamentable; but even in that there are possibilities that are glorious. But to carry no load at all—there is nothing in that. No one seems to arrive at any goal really worth reaching in this world who does not come to it heavy laden."

Surely from our own experience each one of us knows that this is true. From the greatest to the smallest, happiness and usefulness are largely found in the same soul, and the joy of life is won in its deepest and truest sense only by those who have not shirked life's burdens. The men whom we most delight to honor in all this land are those who, in the iron years from '61 to '65, bore on their shoulders the burden of saving the Union. They did not choose the easy task. They did not shirk the difficult duty. Deliberately and of their own free will they strove for an ideal, upward and onward across the stony slopes of greatness. They did the hardest work that was then to be done; they bore the heaviest burden that any generation of Americans ever had to bear; and because they did this they have won such proud joy as it has fallen to the lot of no other men to win, and have written their names for evermore on the golden honor roll of the Nation. As it is with the soldier, so it is with the civilian. To win success in the business world, to become a first-class mechanic, a successful farmer, an able lawyer or doctor, means that the man has devoted his best energy and power through long years to the achievement of his ends. So it is in the life of the family, upon which in the last analysis the whole welfare of the Nation rests. The man or woman who as bread-winner and home-maker, or as wife

and mother, has done all that he or she can do, patiently and uncomplainingly, is to be honored; and is to be envied by all those who have never had the good fortune to feel the need and duty of doing such work. The woman who has borne, and who has reared as they should be reared, a family of children, has in the most emphatic manner deserved well of the Republic. Her burden has been heavy, and she has been able to bear it worthily only by the possession of resolution, of good sense, of conscience, and of unselfishness. But if she has borne it well, then to her shall come the supreme blessing, for in the words of the oldest and greatest of books, "Her children shall rise up and call her blessed;" and among the benefactors of the land her place must be with those who have done the best and the hardest work, whether as law-givers or as soldiers, whether in public or private life.

This is not a soft and easy creed to preach. It is a creed willingly learned only by men and women who, together with the softer virtues, possess also the stronger; who can do, and dare, and die at need, but who while life lasts will never flinch from their allotted task. You farmers, and wage-workers, and business men of this great State, of this mighty and wonderful Nation, are gathered together to-day, proud of your State and still prouder of your Nation, because your forefathers and predecessors have lived up to just this creed. You have received from their hands a great inheritance, and you will leave an even greater inheritance to your children, and your children's children, provided only that you practice alike in your private and your public lives the strong virtues that have given us as a people greatness in the past. It is not enough to be well-meaning and kindly, but weak; neither is it enough to be strong, unless morality and decency go hand in hand with strength. We must possess the qualities which make us do our duty in our homes and among our neighbors, and in addition we must possess the qualities which are indispensable to the make-up of every great and masterful nation—the qualities of courage and hardihood, of individual initiative and yet of power to combine for a common end, and above all, the resolute determination to permit no man and no set of men to sunder us one from the other by lines of caste or creed or section. We must act upon the motto of all for each and each for all. There must be ever present in our minds the fundamental truth that in a republic such as ours the only safety is to stand neither for nor against any man because he is rich or because he is poor, because he is engaged in one occupation or another, because he works

with his brains or because he works with his hands. We must treat each man on his worth and merits as a man. We must see that each is given a square deal, because he is entitled to no more and should receive no less. Finally we must keep ever in mind that a republic such as ours can exist only by virtue of the orderly liberty which comes through the equal domination of the law over all men alike, and through its administration in such resolute and fearless fashion as shall teach all that no man is above it and no man below it.

AT RICHMOND HILL, N. Y., SEPTEMBER 8, 1903

Dr. Kimball, and you, Men, Women, and Children of Richmond Hill:

I wish I could talk better to all of you; but I will ask you to have a little patience for one moment while I thank you for having come out to greet me, I am glad to see all of you, and allow me to say that I am most glad to see those who carry small folks in their arms.

You know I am very fond of Mr. Riis; and the reason why is because when I preach about decent citizenship I can turn to him and think he has practiced just what I have been preaching. The worth of any sermon lies in the way in which that sermon can be and is applied in practice. Of course I am glad to have the chance of being with a man who shows by his life that he knows how practically to apply the spirit of decency unaccompanied by mournfulness or false pretences of any kind, or by weakness. I want to see men decent; I want to see them act squarely; I want to see them work. That does not mean that I want to see them have sour faces. I want to see all enjoy themselves, men, women, and children. I believe in play; I believe in happiness, and in the joy of living; and I do not believe in the life that is nothing but play. I believe that you have a thousandfold more enjoyment if work comes first; but get time to play also. I believe in cheerfulness as well as in decency and honesty. Finally, I believe in always combining strength with the sweetness. I want to say how deeply touched I am at your coming out to greet me, and I want you to understand that you give me strength of heart when you come in this way. I greet you all; I am glad to see the grown up people of Richmond Hill, and I am even more glad to see the children.

AT ANTIETAM, MD., SEPTEMBER 17, 1903

Governor Murphy, Veterans of New Jersey, Men of the Grand Army:

I thank you of New Jersey for the monument to the troops of New Jersey who fought at Antietam, and on behalf of the Nation I accept the gift. We meet to-day upon one of the great battle-fields of the Civil War. No other battle of the Civil War lasting but one day shows as great a percentage of loss as that which occurred here upon the day on which Antietam was fought. Moreover, in its ultimate effects this battle was of momentous and even decisive importance, for when it had ended and Lee had retreated south of the Potomac, Lincoln forthwith published that immortal paper, the preliminary declaration of emancipation; the paper which decided that the Civil War, besides being a war for the preservation of the Union, should be a war for the emancipation of the slave, so that from that time onward the cause of Union and of Freedom, of national greatness and individual liberty, were one and the same.

Men of New Jersey, I congratulate your State because she has the right to claim her full share in the honor and glory of that memorable day; and I congratulate you, Governor Murphy, because on that day you had the high good fortune to serve as a lad with credit and honor in one of the five regiments which your State sent to the battle. Four of those regiments, by the way, served in the division commanded by that gallant soldier, Henry W. Slocum, whom we of New York can claim as our own. The other regiment, that in which Governor Murphy served, although practically an entirely new regiment, did work as good as that of any veteran organization upon the field, and suffered a proportional loss. This regiment was at one time ordered to the support of a division commanded by another New York soldier, the gallant General Greene, whose son himself served as a major-general in the war with Spain and is now, as Police Commissioner of New York, rendering as signal service in civil life as he had already rendered in military life.

If the issue of Antietam had been other than it was, it is probable that at least two great European powers would have recognized the independence of the Confederacy; so that you who fought here forty-one years ago have the profound satisfaction of feeling that you played well your part in one of those crises big with the fate of all mankind. You men of the Grand Army

by your victory not only rendered all Americans your debtors for evermore, but you rendered all humanity your debtors. If the Union had been dissolved, if the great edifice built with blood and sweat and tears by mighty Washington and his compeers had gone down in wreck and ruin, the result would have been an incalculable calamity, not only for our people—and most of all for those who, in such event would have seemingly triumphed—but for all mankind. The great American Republic would have become a memory of derision; and the failure of the experiment of self-government by a great people on a great scale would have delighted the heart of every foe of republican institutions. Our country, now so great and so wonderful, would have been split into little jangling rival nationalities, each with a history both bloody and contemptible. It was because you, the men who wear the button of the Grand Army, triumphed in those dark years, that every American now holds his head high, proud in the knowledge that he belongs to a Nation whose glorious past and great present will be succeeded by an even mightier future; whereas had you failed we would all of us, North and South, East and West, be now treated by other nations at the best with contemptuous tolerance; at the worst with overbearing insolence.

Moreover, every friend of liberty, every believer in self-government, every idealist who wished to see his ideals take practical shape, wherever he might be in the world, knew that the success of all in which he most believed was bound up with the success of the Union armies in this great struggle. I confidently predict that when the final judgment of history is recorded it will be said that in no other war of which we have written record was it more vitally essential for the welfare of mankind that victory should rest where it finally rested. There have been other wars for individual freedom. There have been other wars for national greatness. But there has never been another war in which the issues at stake were so large, looked at from either standpoint. We take just pride in the great deeds of the men of 1776, but we must keep in mind that the Revolutionary War would have been shorn of wellnigh all its results had the side of union and liberty been defeated in the Civil War. In such case we should merely have added another to the lamentably long list of cases in which peoples have shown that after winning their liberty they are wholly unable to make good use of it.

It now rests with us in civil life to make good by our deeds the deeds which you who wore the blue did in the great years from '61 to '65. The patriotism, the courage, the unflinching resolution and steadfast endurance of the soldiers whose triumph was crowned at Appomattox must be supplemented on our part by civic courage, civic honesty, cool sanity, and steadfast adherence to the immutable laws of righteousness. You left us a reunited country; reunited in fact as well as in name. You left us the right of brotherhood with your gallant foes who wore the gray; the right to feel pride in their courage and their high fealty to an ideal, even though they warred against the stars in their courses. You left us also the most splendid example of what brotherhood really means; for in your careers you showed in practical fashion that the only safety in our American life lies in spurning the accidental distinctions which sunder one man from another, and in paying homage to each man only because of what he essentially is; in stripping off the husks of occupation, of position, of accident, until the soul stands forth revealed, and we know the man only because of his worth as a man.

There was no patent device for securing victory by force of arms forty years ago; and there is no patent device for securing victory for the forces of righteousness in civil life now. In each case the all-important factor was and is the character of the individual man. Good laws in the State, like a good organization in an army, are the expressions of national character. Leaders will be developed in military and in civil life alike; and weapons and tactics change from generation to generation, as methods of achieving good government change in civic affairs; but the fundamental qualities which make for good citizenship do not change any more than the fundamental qualities which make good soldiers. In the long run in the Civil War the thing that counted for more than aught else was the fact that the average American had the fighting edge; had within him the spirit which spurred him on through toil and danger, fatigue and hardship, to the goal of the splendid ultimate triumph. So in achieving good government the fundamental factor must be the character of the average citizen; that average citizen's power of hatred for what is mean and base and unlovely; his fearless scorn of cowardice and his determination to war unyieldingly against the dark and sordid forces of evil.

The Continental troops who followed Washington were clad in blue and buff, and were armed with clumsy, flintlock muskets. You, who followed Grant, wore the famous old blue uniform, and your weapons had changed as had your uniform; and now the men of the American Army who uphold the honor of the flag in the far tropic lands are yet differently armed and differently clad and differently trained; but the spirit that has driven you all to victory has remained forever unchanged. So it is in civil life. As you did not win in a month or a year, but only after long years of hard and dangerous work, so the fight for governmental honesty and efficiency can be won only by the display of similar patience and similar resolution and power of endurance. We need the same type of character now that was needed by the men who with Washington first inaugurated the system of free popular government, the system of combined liberty and order here on this Continent; that was needed by the men who under Lincoln perpetuated the government which had thus been inaugurated in the days of Washington. The qualities essential to good citizenship and to good public service now are in all their essentials exactly the same as in the days when the first Congresses met to provide for the establishment of the Union; as in the days seventy years later, when the Congresses met which had to provide for its salvation.

There are many qualities which we need alike in private citizen and in public man, but three above all—three for the lack of which no brilliancy and no genius can atone—and those three are courage, honesty, and common-sense.

AT THE UNVEILING OF THE SHERMAN STATUE, WASHINGTON,
D. C., OCTOBER 15, 1903

General Dodge, Veterans of the Four Great Armies, and you, my Fellow-Citizens:

To-day we meet together to do honor to the memory of one of the great men whom, in the hour of her agony, our Nation brought forth for her preservation. The Civil War was not only in the importance of the issues at stake and of the outcome the greatest of modern times, but it was also, taking into account its duration, the severity of the fighting, and the size of the armies engaged, the greatest since the close of the Napoleonic struggles.

Among the generals who rose to high position as leaders of the various armies in the field are many who will be remembered in our history as long as this history itself is remembered. Sheridan, the incarnation of fiery energy and prowess; Thomas, far-sighted, cool-headed, whose steadfast courage burned ever highest in the supreme moment of the crisis; McClellan, with his extraordinary gift for organization; Meade, victor in one of the decisive battles of all time; Hancock, type of the true fighting man among the regulars; Logan, type of the true fighting man among the volunteers—the names of these and of many others will endure so long as our people hold sacred the memory of the fight for union and for liberty. High among these chiefs rise the figures of Grant and of Grant's great lieutenant, Sherman, whose statue here in the national capital is to-day to be unveiled. It is not necessary here to go over the long roll of Sherman's mighty feats. They are written large throughout the history of the Civil War. Our memories would be poor indeed if we did not recall them now, as we look along Pennsylvania Avenue and think of the great triumphal march which surged down its length when at the close of the war the victorious armies of the East and of the West met here in the capital of the Nation they had saved.

There is a peculiar fitness in commemorating the great deeds of the soldiers who preserved this Nation, by suitable monuments at the National Capital. I trust we shall soon have a proper statue of Abraham Lincoln, to whom more than to any other one man this Nation owes its salvation. Meanwhile, on behalf of the people of the Nation, I wish to congratulate all of you who have been instrumental in securing the erection of this statue to General Sherman.

The living can best show their respect for the memory of the great dead by the way in which they take to heart and act upon the lessons taught by the lives which made these dead men great. Our homage to-day to the memory of Sherman comes from the depths of our being. We would be unworthy citizens did we not feel profound gratitude toward him, and those like him and under him, who, when the country called in her dire need, sprang forward with such gallant eagerness to answer that call. Their blood and their toil, their endurance and patriotism, have made us and all who come after us forever their debtors. They left us not merely a reunited country, but a country incalculably greater because of its rich heritage in the

deeds which thus left it reunited. As a Nation we are the greater, not only for the valor and devotion to duty displayed by the men in blue, who won in the great struggle for the Union, but also for the valor and the loyalty toward what they regarded as right of the men in gray; for this war, thrice fortunate above all other recent wars in its outcome, left to all of us the right of brotherhood alike with valiant victor and valiant vanquished.

Moreover, our homage must not only find expression on our lips; it must also show itself forth in our deeds. It is a great and glorious thing for a nation to be stirred to present triumph by the splendid memories of triumphs in the past. But it is a shameful thing for a nation, if these memories stir it only to empty boastings, to a pride that does not shrink from present abasement, to that self-satisfaction which accepts the high resolve and unbending effort of the father as an excuse for effortless ease or wrongly directed effort in the son. We of the present, if we are true to the past, must show by our lives that we have learned aright the lessons taught by the men who did the mighty deeds of the past. We must have in us the spirit which made the men of the Civil War what they were; the spirit which produced leaders such as Sherman; the spirit which gave to the average soldier the grim tenacity and resourcefulness that made the armies of Grant and Sherman as formidable fighting machines as this world has ever seen. We need their ruggedness of body, their keen and vigorous minds, and above all their dominant quality of forceful character. Their lives teach us in our own lives to strive after, not the thing which is merely pleasant, but the thing which it is our duty to do. The life of duty, not the life of mere ease or mere pleasure—that is the kind of life which makes the great man as it makes the great nation.

We can not afford to lose the virtues which made the men of '61 to '65 great in war. No man is warranted in feeling pride in the deeds of the Army and Navy of the past if he does not back up the Army and the Navy of the present. If we are far-sighted in our patriotism, there will be no let-up in the work of building, and of keeping at the highest point of efficiency, a navy suited to the part the United States must hereafter play in the world, and of making and keeping our small Regular Army, which in the event of a great war can never be anything but the nucleus around which our volunteer armies must form themselves, the best army of its size to be found among the nations.

So much for our duties in keeping unstained the honor roll our fathers made in war. It is of even more instant need that we should show their spirit of patriotism in the affairs of peace. The duties of peace are with us always; those of war are but occasional; and with a nation as with a man, the worthiness of life depends upon the way in which the every-day duties are done. The home duties are the vital duties. The nation is nothing but the aggregate of the families within its border; and if the average man is not hard-working, just, and fearless in his dealings with those about him, then our average of public life will in the end be low; for the stream can rise no higher than its source. But in addition we need to remember that a peculiar responsibility rests upon the man in public life. We meet in the capital of the Nation, in the city which owes its existence to the fact that it is the seat of the National Government. It is well for us in this place, and at this time, to remember that exactly as there are certain homely qualities the lack of which will prevent the most brilliant man alive from being a useful soldier to his country, so there are certain homely qualities for the lack of which in the public servant no shrewdness or ability can atone. The greatest leaders, whether in war or in peace, must of course show a peculiar quality of genius; but the most redoubtable armies that have ever existed have been redoubtable because the average soldier, the average officer, possessed to a high degree such comparatively simple qualities as loyalty, courage, and hardihood. And so the most successful governments are those in which the average public servant possesses that variant of loyalty which we call patriotism, together with common-sense and honesty. We can as little afford to tolerate

a dishonest man in the public service as a coward in the army. The murderer takes a single life; the corruptionist in public life, whether he be bribe giver or bribe taker, strikes at the heart of the commonwealth. In every public service, as in every army, there will be wrongdoers, there will occur misdeeds. This can not be avoided; but vigilant watch must be kept, and as soon as discovered the wrongdoing must be stopped and the wrongdoers punished. Remember that in popular government we must rely on the people themselves, alike for the punishment and the reformation. Those upon whom our institutions cast the initial duty of bringing malefactors to the bar of justice must be diligent in its discharge; yet in the last resort the success of their efforts to purge the public service of corruption must depend upon the attitude of the courts and of the juries drawn from the

people. Leadership is of avail only so far as there is wise and resolute public sentiment behind it.

In the long run, then, it depends upon us ourselves, upon us the people as a whole, whether this Government is or is not to stand in the future as it has stood in the past; and my faith that it will show no falling off is based upon my faith in the character of our average citizenship. The one supreme duty is to try to keep this average high. To this end it is well to keep alive the memory of those men who are fit to serve as examples of what is loftiest and best in American citizenship. Such a man was General Sherman. To very few in any generation is it given to render such services as he rendered; but each of us in his degree can try to show something of those qualities of character upon which, in their sum, the high worth of Sherman rested—his courage, his kindliness, his clean and simple living, his sturdy good sense, his manliness and tenderness in the intimate relations of life, and finally, his inflexible rectitude of soul and his loyalty to all that in this free Republic is hallowed and symbolized by the national flag.

AT THE PAN-AMERICAN MISSIONARY SERVICE, CATHEDRAL
OF ST. PETER AND ST. PAUL, MOUNT ST. ALBAN,
WASHINGTON, D. C., OCTOBER 25, 1903

*Bishop Satterlee; and to you representatives of the Church both at home
and abroad; and to all of you, my friends and fellow-citizens:*

I extend greeting, and in your name I especially welcome those who are in a sense the guests of the nation to-day. In what I am about to say to you, I wish to dwell upon certain thoughts suggested by three different quotations: In the first place, "Thou shalt serve the Lord with all thy heart, with all thy soul, and with all thy mind;" the next, "Be ye therefore wise as serpents and harmless as doves;" and finally, in the Collect which you, Bishop Doane, just read, that "we being ready both in body and soul may cheerfully accomplish those things which thou commandest."

To an audience such as this I do not have to say anything as to serving the cause of decency with heart and with soul. I want to dwell, however, upon the fact that we have the right to claim from you not merely that you shall have heart in your work, not merely that you shall put your souls into it, but

that you shall give the best that your minds have to it also. In the eternal, the unending warfare for righteousness and against evil, the friends of what is good need to remember that in addition to being decent they must be efficient; that good intentions, high purposes, can not be in themselves effective, that they are in no sense a substitute for power to make those purposes, those intentions felt in action. Of course we must first have the purpose and the intention. If our powers are not guided aright it is better that we should not have them at all; but we must have the power itself before we can guide it aright.

In the second text we are told not merely to be harmless as doves, but also to be wise as serpents. One of our American humorists who veils under jocular phrases much deep wisdom—one of those men has remarked that it is much easier to be a harmless dove than a wise serpent. Now, we are not to be excused if we do not show both qualities. It is not very much praise to give a man to say that he is harmless. We have a right to ask that in addition to the fact that he does no harm to any one he shall possess the wisdom and the strength to do good to his neighbor; that together with innocence, together with purity of motive, shall be joined the wisdom and strength to make that purity effective, that motive translated into substantial result.

Finally, in the quotation from the Collect, we ask that we may be made ready both in body and in soul, that we may cheerfully accomplish those things that we are commanded to do. Ready both in body and in soul; that means that we must fit ourselves physically and mentally, fit ourselves to work with the weapons necessary for dealing with this life no less than with the higher, spiritual weapons; fit ourselves thus to do the work commanded; and moreover, to do it cheerfully. Small is our use for the man who individually helps any of us and shows that he does it grudgingly. We had rather not be helped than be helped in such fashion. A favor extended in a manner which shows that the man is sorry that he has to grant it is robbed, sometimes of all, and sometimes of more than all, its benefit. So, in serving the Lord, if we serve him, if we serve the cause of decency, the cause of righteousness, in a way that impresses others with the fact that we are sad in doing it, our service is robbed of an immense proportion of its efficacy. We have a right to ask a cheerful heart, a right to ask a buoyant and cheerful spirit among those to whom is granted the inestimable privilege of doing the Lord's work in this world. The chance to do work, the duty to do work

is not a penalty; it is a privilege. Let me quote a sentence that I have quoted once before: "In this life the man who wins to any goal worth winning almost always comes to that goal with a burden bound on his shoulders." The man who does best in this world, the woman who does best, almost inevitably does it because he or she carries some burden. Life is so constituted that the man or the woman who has not some responsibility is thereby deprived of the deepest happiness that can come to mankind, because each and every one of us, if he or she is fit to live in the world must be conscious that responsibility always rests on him or on her—the responsibility of duty toward those dependent upon us; the responsibility of duty toward our families, toward our friends, toward our fellow-citizens; the responsibility of duty to wife and child, to the state, to the church. Not only can no man shirk some or all of those responsibilities, but no man worth his salt will wish to shirk them. On the contrary, he will welcome thrice over the fortune that puts them upon him.

In closing, I want to call your attention to something that is especially my business for the time being, and that is measurably your business all the time, or else you are unfit to be citizens of this Republic. In the seventh hymn which we sung, in the last line, you all joined in singing "God save the State!" Do you intend merely to sing that, or to try to do it? If you intend merely to sing it, your part in doing it will be but small. The State will be saved, if the Lord puts it into the heart of the average man so to shape his life that the State shall be worth saving, and only on those terms. We need civic righteousness. The best constitution that the wit of man has ever devised, the best institutions that the ablest statesmen in the world have ever reduced to practice by law or by custom, all these shall be of no avail if they are not vivified by the spirit which makes a State great by making its citizens honest, just, and brave. I do not ask you as practical believers in applied Christianity to take part one way or the other in matters that are merely partisan. There are plenty of questions about which honest men can and do differ very greatly and very intensely, but as to which the triumph of either side may be compatible with the welfare of the State—a lesser degree of welfare or a greater degree of welfare—but compatible with the welfare of the State. But there are certain great principles, such as those which Cromwell would have called "fundamentals," concerning which no man has a right to have more than one opinion. Such a question is honesty. If you have not honesty in the average private citizen, in the average public

servant, then all else goes for nothing. The abler a man is, the more dexterous, the shrewder, the bolder, why the more dangerous he is if he has not the root of right living and right thinking in him—and that in private life, and even more in public life. Exactly as in time of war, although you need in each fighting man far more than courage, yet all else counts for nothing if there is not that courage upon which to base it, so in our civil life, although we need that the average man in private life, that the average public servant, shall have far more than honesty, yet all other qualities go for nothing or for worse than nothing unless honesty underlies them—honesty in public life and honesty in private life; not only the honesty that keeps its skirts technically clear, but the honesty that is such according to the spirit as well as the letter of the law; the honesty that is aggressive, the honesty that not merely deplores corruption—it is easy enough to deplore corruption—but that wars against it and tramples it under foot. I ask for that type of honesty, I ask for militant honesty, for the honesty of the kind that makes those who have it discontented with themselves as long as they have failed to do everything that in them lies to stamp out dishonesty wherever it can be found, in high place or in low. And let us not flatter ourselves, we who live in countries where the people rule that it is ultimately possible for the people to cast upon any but themselves the responsibilities for the shape the government and the social and political life of the community assumes. I ask then that our people feel quickened within them burning indignation against wrong in every shape, and condemnation of that wrong, whether found in private or in public life. We have a right to demand courage of every man who wears the uniform; it is not so much a credit to him to have it as it is shame unutterable to him if he lacks it. So when we demand honesty, we demand it not as entitling the possessor to praise, but as warranting the heartiest condemnation possible if he lacks it. Surely in every movement for the betterment of our life, our life social in the truest and deepest sense, our life political, we have a special right to ask not merely support but leadership from those of the Church. We ask that you here to whom much has been given will remember that from you rightly much will be expected in return. For all of us here the lines have been cast in pleasant places. Each of us has been given one talent, or five, or ten talents, and each of us is in honor bound to use that talent or those talents aright, and to show at the end that he is entitled to the praise of having done well as a faithful servant.

I greet you this afternoon, and am glad to see you here, and I trust and believe that after this service every one of us will go home feeling that he or she has been warranted in coming here by the way in which he or she, after going home, takes up with fresh heart, with fresh courage, and with fresh and higher purpose the burden of life as that burden has been given to him or to her to carry.

AT THE CENTENNIAL EXERCISES IN THE N. Y. AVENUE
PRESBYTERIAN CHURCH, WASHINGTON, D. C., NOV. 16,
1903

Mr. Justice:

Let me first express the appreciation that all of us feel to Professor McMaster for his exceedingly interesting address; and the address showed why he can justly claim to be the historian of the people of the United States, for what he has told us was what the people did, not merely what the outward forms and observances were, but what the life of the people was a century ago. And, Mr. Justice, I think that the recital has left in the minds of all of us the feeling that while we revere our ancestors, we are not wholly discontented that we live in the present day.

To each generation comes its allotted task; and no generation is to be excused for failure to perform that task. No generation can claim as an excuse for such failure the fact that it is not guilty of the sins of the preceding generation. It was a surprise to me, I suppose it was a surprise to many of us, to realize that a hundred years ago, in the days of the fathers, the lot of the poor debtor was so hard. It seems incredible to us now that there should have been such callousness to the undeserved human suffering then. I hope sincerely that a century hence it will seem equally incredible to the American of that generation that there should be corruption and venality in public life. We can divide, and must divide, on party lines as regards certain questions; as regards the deepest, as regards the vital questions, we can not afford to divide, and I have the right to challenge the best effort of every American worthy of the name to putting down by every means in his power corruption in private life, and above all corruption in public life. And, remember, you, the people of this government by the people, that while the public servant, the legislator, the executive officer, the judge, are

not to be excused if they fall short of their duty, yet that their doing their duty can not avail unless you do yours. In the last resort we have to depend upon the jury drawn from the people to convict the scoundrel who has tainted our public life; and unless that jury does its duty, unless it is backed by the public sentiment of the people, all the work of legislator, of executive officer, of judicial officer, are for naught.

Mr. Justice, a man would be a poor citizen of this country if he could sit in Abraham Lincoln's pew and not feel the solemn sense of the associations borne in upon him; and I wish to thank the people of this church for that reverence for the historic past, for the sense of historic continuity, which has made them keep this pew unchanged. I hope it will remain unchanged in this church as long as our country endures. We have not too many monuments of the past; let us keep every little bit of association with that which is highest and best of the past as a reminder to us, equally of what we owe to those who have gone before and of how we should show our appreciation. This evening I sit in this pew of Abraham Lincoln's, together with Abraham Lincoln's private secretary, who, for my good fortune, now serves as Secretary of State in my Cabinet.

If ever there lived a President who during his term of service needed all of the consolation and of the strength that he could draw from the unseen powers above him, it was Abraham Lincoln, who worked and suffered for the people, and when he had lived for them to good end gave his life at the end. If ever there was a man who practically applied what was taught in our churches, it was Abraham Lincoln. The other day I was rereading—on the suggestion of Mr. Hay—a little speech not often quoted of his, yet which seems to me one of the most remarkable that he ever made; delivered right after his re-election, I think, to a body of serenaders who had come, if my memory is correct, from Maryland, and called for an address from him from the White House. It is extraordinary to read that speech, and to realize that the man who made it had just come successfully through a great political contest in which he felt that so much was at stake for the Nation that he had no time to think whether or not anything was at stake for himself. The speech is devoid of the least shade of bitterness. There is not a word of unseemly triumph over those who have been defeated. There is not a word of glorification of himself, or in any improper sense of his party. There is an earnest appeal, now that the election is over, now that the civic strife has

been completed, for all decent men who love the country to join together in service to the country; and in the speech he uses a thoroughly Lincoln-like phrase when he says “I have not willingly planted a thorn in the breast of any man,” thus trying to make clear that he has nothing to say against any opponent, no bitterness toward any opponent; that all he wishes is that those who opposed him should join with those who favored him in working toward a common end. In reading his works and addresses, one is struck by the fact that as he went higher and higher all personal bitterness seemed to die out of him. In the Lincoln-Douglas debates one can still catch now and then a note of personal antagonism; the man was in the arena, and as the blows were given and taken you can see that now and then he had a feeling against his antagonist. When he became President and faced the crisis that he had to face, from that time on I do not think that you can find an expression, a speech, a word of Lincoln’s, written or spoken, in which bitterness is shown to any man. His devotion to the cause was so great that he neither could nor would have feeling against any individual.

In closing, Mr. Justice, in thanking you of this church, the church so closely kindred to my own Dutch Reformed Church, in thanking you for asking me here, let me say how peculiarly glad I am that in the chair sits one man, a Justice of the Supreme Court, and that I could be escorted here by another man, who has just severed his connection with one of the highest places in the United States Army, both of whom—you, Justice Harlan, you, General Breckinridge—had enjoyed the wonderful privilege of proving by their deeds the faith that was in them in the days that tried men’s souls; both of whom did their part in holding up the hands of mighty Lincoln, and both of whom were born in the State of Lincoln’s birth.

REMARKS TO THE DELEGATES OF THE GERMAN SOCIETIES
RECEIVED AT THE WHITE HOUSE, THURSDAY,
NOVEMBER 19, 1903

Mr. Voelckner, and Gentlemen:

It gives me peculiar pleasure to greet you to-day; and it is a matter of real regret to me that I can not attend formally your celebration.

You are quite right, Mr. Chairman, when you speak of the stand that the German element in our citizenship has always taken in all crises of our national life. In the first place, from the beginning of our colonial history to this day, the German strain has been constantly increasing in importance among the many strains that go to make up our composite national character. I do not have to repeat to you the story of the early German immigration to this country—the German immigration that began in a mass toward the end of the seventeenth century, but before that time had been represented among the very first settlers. Allow me to give you one bit of ancestral experience of mine. The first head of the New York City Government who was of German birth was Leisler, about the year 1680. He was the representative of the popular faction in the New York colony of that day, and among the Leislerian aldermen was a forbear of mine named Roosevelt. You are entirely familiar, of course, with the German immigration that went to the formation of Pennsylvania from the beginning. That element was equally strong in the Mohawk Valley in New York; it was equally strong in Middle and Western Maryland. For instance, in the Revolutionary War, one of the distinguished figures contributed by New York to the cause of independence was that of the German Herkimer, whose fight in the Mohawk Valley represented one of the turning points in the struggle for independence; and one of the New York counties is now named after him. The other day I went out to the battlefield of Antietam, here in Maryland. There the Memorial Church is the German Lutheran Church, which was founded in 1768, the settlement in the neighborhood of Antietam being originally exclusively a German settlement. There is a list of its pastors, and curiously enough a series of memorial windows of men with German names—men who belonged to the Maryland regiment recruited largely from that region for the Civil War, which Maryland regiment was mainly composed of men of German extraction. In the Civil War it would be difficult to paint in too strong colors what I may wellnigh call the all-importance of the attitude of the American citizens of German birth and extraction toward the cause of Union and Liberty, especially in what were then known as the border States. It would have been out of the question to have kept Missouri loyal had it not been for the German element therein. It was the German portion of the city of St. Louis which formed the core of the Union cause in Missouri. And but little less important was the part

played by the Germans in Maryland, and also in Louisville and other portions of Kentucky.

Each body of immigrants, each element that has thus been added to our national strain, has contributed something of value to the national character; and to no element do we owe more than we owe to that element represented by those whom I have the honor this day of addressing.

WHITE HOUSE, WASHINGTON,
October 18, 1902

MY DEAR MRS. VAN VORST:

I must write you a line to say how much I have appreciated your article, "The Woman who Toils." But to me there is a most melancholy side to it, when you touch upon what is fundamentally infinitely more important than any other question in this country—that is, the question of race suicide, complete or partial.

An easy, good-natured kindness, and a desire to be "independent," that is, to live one's life purely according to one's own desires, are in no sense substitutes for the fundamental virtues, for the practice of the strong racial qualities without which there can be no strong races—the qualities of courage and resolution in both men and women, of scorn of what is mean, base, and selfish, of eager desire to work or fight or suffer as the case may be, provided the end to be gained is great enough, and the contemptuous putting aside of mere ease, mere vapid pleasure, mere avoidance of toil and worry. I do not know whether I most pity or despise the foolish and selfish man or woman who does not understand that the only things really worth having in life are those the acquirement of which normally means cost and effort. If a man or woman, through no fault of his or hers, goes throughout life denied those highest of all joys which spring only from home life, from the having and bringing up of many healthy children, I feel for them deep and respectful sympathy; the sympathy one extends to the gallant fellow killed at the beginning of a campaign, or the man who toils hard and is brought to ruin by the fault of others. But the man or woman who deliberately avoids marriage and has a heart so cold as to know no passion and a brain so shallow and selfish as to dislike having children, is in effect a criminal against the race and should be an object of contemptuous abhorrence by all healthy people.

Of course no one quality makes a good citizen, and no one quality will save a nation. But there are certain great qualities for the lack of which no amount of intellectual brilliancy or of material prosperity or of easiness of

life can atone, and which show decadence and corruption in the nation, just as much if they are produced by selfishness and coldness and ease-loving laziness among comparatively poor people as if they are produced by vicious or frivolous luxury in the rich. If the men of the nation are not anxious to work in many different ways, with all their might and strength, and ready and able to fight at need, and anxious to be fathers of families, and if the women do not recognize that the greatest thing for any woman is to be a good wife and mother, why, that nation has cause to be alarmed about its future.

There is no physical trouble among us Americans. The trouble with the situation you set forth is one of character, and therefore we can conquer it if we only will.

Very sincerely yours,
THEODORE ROOSEVELT

MRS. BESSIE VAN VORST,
Philadelphia, Pa.

Personal.

WHITE HOUSE, WASHINGTON,
November 26, 1902

MY DEAR SIR:

I am in receipt of your letter of November 10 and of one from Mr. —— under date of November 11, in reference to the appointment of Dr. Crum as collector of the Port of Charleston.

In your letter you make certain specific charges against Dr. Crum, tending to show his unfitness in several respects for the office sought. These charges are entitled to the utmost consideration from me and I shall go over them carefully before taking any action. After making these charges you add, as a further reason for opposition to him, that he is a colored man, and after reciting the misdeeds that followed carpet-bag rule and negro domination in South Carolina, you say that “we have sworn never again to

submit to the rule of the African, and such an appointment as that of Dr. Crum to any such office forces us to protest unanimously against this insult to the white blood”; and you add that you understood me to say that I would never force a negro on such a community as yours. Mr. ——— puts the objection of color first, saying: “First, he is a colored man, and that of itself ought to bar him from the office.” In view of these last statements, I think I ought to make clear to you why I am concerned and pained by your making them and what my attitude is as regards all such appointments. How any one could have gained the idea that I had said I would not appoint reputable and upright colored men to office, when objection was made to them solely on account of their color, I confess I am wholly unable to understand. At the time of my visit to Charleston last spring, I had made, and since that time I have made, a number of such appointments from several States in which there is a considerable colored population. For example, I made one such appointment in Mississippi, and another in Alabama, shortly before my visit to Charleston. I had at that time appointed two colored men as judicial magistrates in the District of Columbia. I have recently announced another such appointment for New Orleans, and have just made one from Pennsylvania. The great majority of my appointments in every State have been of white men. North and South alike it has been my sedulous endeavor to appoint only men of high character and good capacity, whether white or black. But it has been my consistent policy in every State where their numbers warranted it to recognize colored men of good repute and standing in making appointments to office. These appointments of colored men have in no State made more than a small proportion of the total number of appointments. I am unable to see how I can legitimately be asked to make an exception for South Carolina. In South Carolina, to the four most important positions in the State I have appointed three men and continued in office a fourth, all of them white men—three of them originally Gold Democrats—two of them, as I am informed, the sons of Confederate soldiers. I have been informed by the citizens of Charleston whom I have met that these four men represent a high grade of public service.

I do not intend to appoint any unfit man to office. So far as I legitimately can I shall always endeavor to pay regard to the wishes and feelings of the people of each locality; but I can not consent to take the position that the door of hope—the door of opportunity—is to be shut upon any man, no matter how worthy, purely upon the grounds of race or color. Such an

attitude would, according to my convictions, be fundamentally wrong. If, as you hold, the great bulk of the colored people are not yet fit in point of character and influence to hold such positions, it seems to me that it is worth while putting a premium upon the effort among them to achieve the character and standing which will fit them.

The question of “negro domination” does not enter into the matter at all. It might as well be asserted that when I was Governor of New York I sought to bring about negro domination in that State because I appointed two colored men of good character and standing to responsible positions—one of them to a position paying a salary twice as large as that paid in the office now under consideration—one of them as a director of the Buffalo exposition. The question raised by you and Mr. —— in the statements to which I refer, is simply whether it is to be declared that under no circumstances shall any man of color, no matter how upright and honest, no matter how good a citizen, no matter how fair in his dealings with his fellows, be permitted to hold any office under our government. I certainly can not assume such an attitude, and you must permit me to say that in my view it is an attitude no man should assume, whether he looks at it from the standpoint of the true interest of the white men of the South or of the colored men of the South—not to speak of any other section of the Union. It seems to me that it is a good thing from every standpoint to let the colored man know that if he shows in marked degree the qualities of good citizenship—the qualities which in a white man we feel are entitled to reward—then he will not be cut off from all hope of similar reward.

Without any regard to what my decision may be on the merits of this particular applicant for this particular place, I feel that I ought to let you know clearly my attitude on the far broader question raised by you and Mr. ——; an attitude from which I have not varied during my term of office.

Faithfully yours,
THEODORE ROOSEVELT.

HON. ——
Charleston, S. C.

WHITE HOUSE, WASHINGTON,
February 24, 1903

MY DEAR MR. HOWELL:

I have a high opinion of the gentleman you mention and if the opportunity occurs I shall be glad to do anything I can for him.

Now as to what you say concerning Federal appointments in the South. Frankly, it seems to me that my appointments speak for themselves and that my policy is self-explanatory. So far from feeling that they need the slightest apology or justification, my position is that on the strength of what I have done I have the right to claim the support of all good citizens who wish not only a high standard of Federal service but fair and equitable dealing to the South as well as to the North, and a policy of consistent justice and good-will toward all men. In making appointments I have sought to consider the feelings of the people of each locality so far as I could consistently do so without sacrificing principle. The prime tests I have applied have been those of character, fitness and ability, and when I have been dissatisfied with what has been offered within my own party lines I have without hesitation gone to the opposite party—and you are of course aware that I have repeatedly done this in your own State of Georgia. I certainly can not treat mere color as a permanent bar to holding office, any more than I could so treat creed or birthplace—always provided that in other respects the applicant or incumbent is a worthy and well-behaved American citizen. Just as little will I treat it as conferring a right to hold office. I have scant sympathy with the mere doctrinaire, with the man of mere theory who refuses to face facts; but do you not think that in the long run it is safer for everybody if we act on the motto “All men up,” rather than that of “Some men down”?

I ask you to judge not by what I say but by what during the last seventeen months I have actually done. In your own State of Georgia you are competent to judge from your own experience. In the great bulk of the cases I have reappointed President McKinley’s appointees. The changes I have made, such as that in the postmastership at Athens and in the surveyorship at Atlanta, were, as I think you will agree, changes for the better and not for the worse. It happens that in each of these offices I have appointed a white man to succeed a colored man. In South Carolina I have similarly appointed

a white postmaster to succeed a colored postmaster. Again, in South Carolina I have nominated a colored man to fill a vacancy in the position of collector of the port of Charleston, just as in Georgia I have reappointed the colored man who is now serving as collector of the port of Savannah. Both are fit men. Why the appointment of one should cause any more excitement than the appointment of the other, I am wholly at a loss to imagine. As I am writing to a man of keen and trained intelligence I need hardly say that to connect either of these appointments, or any or all of my other appointments, or my actions in upholding the law at Indianola, with such questions as “social equality” and “negro domination” is as absurd as to connect them with the nebular hypothesis or the theory of atoms.

I have consulted freely with your own Senators and Congressmen as to the character and capacity of any appointee in Georgia concerning whom there was question. My party advisers in the State have been Major Hanson of Macon, Mr. Walter Johnson of Atlanta—both of them ex-Confederate soldiers—and Mr. Harry Stillwell Edwards, also of Macon. I believe you will agree with me that in no State would it be possible to find gentlemen abler and more upright or better qualified to fill the positions they have filled with reference to me. In every instance where these gentlemen have united in making a recommendation I have been able to follow their advice. Am I not right in saying that the Federal office-holders whom I have appointed throughout your State are, as a body, men and women of a high order of efficiency and integrity? If you know of any Federal office-holder in Georgia of whom this is not true pray let me know at once. I will welcome testimony from you or from any other reputable citizen which will tend to show that a given public officer is unworthy; and, most emphatically, short will be the shrift of any one whose lack of worth is proven. Incidentally I may mention that a large percentage of the incumbents of Federal offices in Georgia under me are, as I understand it, of your own political faith. But they are supported by me in every way as long as they continue to render good and faithful service to the public.

This is true of your own State; and by applying to Mr. Thomas Nelson Page of Virginia, to General Basil Duke of Kentucky, to Mr. George Crawford of Tennessee, to Mr. John McIlhenny of Louisiana, to Judge Jones of Alabama, and Mr. Edgar L. Wilson of Mississippi, all of them Democrats and all of them men of the highest standing in their respective

communities, you will find that what I have done in Georgia stands not as the exception but as the rule for what I have done throughout the South. I have good reason to believe that my appointees in the different States mentioned—and as the sum of the parts is the whole, necessarily in the South at large—represent not merely an improvement upon those whose places they took, but upon the whole a higher standard of Federal service than has hitherto been attained in the communities in question. I may add that the proportion of colored men among these new appointees is only about one in a hundred.

In view of all these facts I have been surprised, and somewhat pained, at what seems to me the incomprehensible outcry in the South about my actions—an outcry apparently started in New York for reasons wholly unconnected with the question nominally at issue. I am concerned at the attitude thus taken by so many of the Southern people; but I am not in the least angry; and still less will this attitude have the effect of making me swerve one hair's breadth, to one side or the other, from the course I have marked out—the course I have consistently followed in the past and shall consistently follow in the future.

With regard,

Sincerely yours,

THEODORE ROOSEVELT.

HON. CLARK HOWELL

Editor, "The Constitution,"

Atlanta, Ga.

ON May 18, 1903, William A. Miller was removed by the Public Printer from his position of Assistant Foreman at the Government Printing Office. Mr. Miller filed a complaint with the Civil Service Commission alleging that his removal had been made in violation of the civil service law and rules. After an investigation of the complaint, and upon July 6th, the Civil Service Commission advised the Public Printer of its decision as follows:

"Section 2 of Civil Service Rule XII, governing removals, provides that no person shall be removed from a competitive

position except for such cause as will promote the efficiency of the public service. The Commission does not consider expulsion from a labor union, being the action of a body is no way connected with the public service nor having authority over public employees, to be such a cause as will promote the efficiency of the public service.

“As the only reason given by you for your removal of Mr. Miller is that he was expelled from Local Union No. 4, International Brotherhood of Bookbinders, you are advised that the Commission can not recognize his removal and must request that he be reassigned to duty in his position.”

Mr. Miller's complaint had also been filed with the President, under whose direction it was being investigated by the Secretary of Commerce and Labor simultaneously with the investigation by the Civil Service Commission. As a result of such investigations, the following letters, under dates of July 13th and 14th, 1903, were written by the President:

OYSTER BAY, N. Y.
July 13, 1903

MY DEAR SECRETARY CORTELYOU:

In accordance with the letter of the Civil Service Commission of July 6th, the Public Printer will reinstate Mr. W. A. Miller in his position. Meanwhile I will withhold my final decision of the whole case until I have received the report of the investigation on Miller's second communication, which you notify me has been begun to-day, July 13th.

On the face of the papers presented, Miller would appear to have been removed in violation of law. There is no objection to the employees of the Government Printing Office constituting themselves into a union if they so desire; but no rules or resolutions of that union can be permitted to override the laws of the United States, which it is my sworn duty to enforce.

Please communicate a copy of this letter to the Public Printer for his information and that of his subordinates.

Very truly yours,
THEODORE ROOSEVELT.

HON. GEORGE B. CORTELYOU,
Secretary of Commerce and Labor.

OYSTER BAY, N. Y.
July 14, 1903

MY DEAR MR. CORTELYOU:

In connection with my letter of yesterday I call attention to this judgment and award by the Anthracite Coal Strike Commission in its report to me of March 18th last:

It is adjudged and awarded that no person shall be refused employment or in any way discriminated against on account of membership or non-membership in any labor organization, and that there shall be no discrimination against or interference with any employee who is not a member of any labor organization by members of such organization.

I heartily approve of this award and judgment by the commission appointed by me, which itself included a member of a labor union. This commission was dealing with labor organizations working for private employers. It is of course mere elementary decency to require that all the Government departments shall be handled in accordance with the principle thus clearly and fearlessly enunciated.

Please furnish a copy of this letter both to Mr. Palmer and to the Civil Service Commission for their guidance.

Sincerely yours,
THEODORE ROOSEVELT.

HON. GEO. B. CORTELYOU,
Secretary of Commerce and Labor.

September 29, 1903

PURSUANT to the request of Samuel Gompers, President of the American Federation of Labor, the President granted an interview this evening to the following members of the executive council of that body: Mr. Samuel Gompers, Mr. James Duncan, Mr. John Mitchell, Mr. James O'Connell and Mr. Frank Morrison, at which various subjects of legislation in the interest of labor, as well as executive action, were discussed. Concerning the case of William A. Miller the President made the following statement:

I thank you and your committee for your courtesy, and I appreciate the opportunity to meet with you. It will always be a pleasure to see you or any representatives of your organizations or of your Federation as a whole.

As regards the Miller case, I have little to add to what I have already said. In dealing with it I ask you to remember that I am dealing purely with the relation of the Government to its employees. I must govern my action by the laws of the land, which I am sworn to administer, and which differentiate any case in which the Government of the United States is a party from all other cases whatsoever. These laws are enacted for the benefit of the whole people, and can not and must not be construed as permitting discrimination against some of the people. I am President of all the people of the United States, without regard to creed, color, birthplace, occupation, or social condition. My aim is to do equal and exact justice as among them all. In the employment and dismissal of men in the Government service I can no more recognize the fact that a man does or does not belong to a union as being for or against him than I can recognize the fact that he is a Protestant or a Catholic, a Jew or a Gentile, as being for or against him.

In the communications sent me by various labor organizations protesting against the retention of Miller in the Government Printing Office, the grounds alleged are twofold: 1, that he is a non-union man; 2, that he is not personally fit. The question of his personal fitness is one to be settled in the routine of administrative detail, and can not be allowed to conflict with or to

complicate the larger question of governmental discrimination for or against him or any other man because he is or is not a member of a union. This is the only question now before me for decision; and as to this my decision is final.

OYSTER BAY, N. Y.
August 6, 1903

MY DEAR GOVERNOR DURBIN:

Permit me to thank you as an American citizen for the admirable way in which you have vindicated the majesty of the law by your recent action in reference to lynching. I feel, my dear sir, that you have made all men your debtors who believe, as all far-seeing men must, that the well-being, indeed the very existence, of the Republic depends upon that spirit of orderly liberty under the law which is as incompatible with mob violence as with any form of despotism. Of course mob violence is simply one form of anarchy; and anarchy is now, as it always has been, the handmaiden and forerunner of tyranny.

I feel that you have not only reflected honor upon the State which for its good fortune has you as its Chief Executive, but upon the whole nation. It is incumbent upon every man throughout this country not only to hold up your hands in the course you have been following, but to show his realization that the matter is one which is of vital concern to us all.

All thoughtful men must feel the gravest alarm over the growth of lynching in this country, and especially over the peculiarly hideous forms so often taken by mob violence when colored men are the victims—on which occasions the mob seems to lay most weight, not on the crime, but on the color of the criminal. In a certain proportion of these cases the man lynched has been guilty of a crime horrible beyond description; a crime so horrible that as far as he himself is concerned he has forfeited the right to any kind of sympathy whatsoever. The feeling of all good citizens that such a hideous crime shall not be hideously punished by mob violence is due not in the least to sympathy for the criminal, but to a very lively sense of the train of dreadful consequences which follows the course taken by the mob

in exacting inhuman vengeance for an inhuman wrong. In such cases, moreover, it is well to remember that the criminal not merely sins against humanity in inexpiable and unpardonable fashion, but sins particularly against his own race, and does them a wrong far greater than any white man can possibly do them. Therefore, in such cases the colored people throughout the land should in every possible way show their belief that they, more than all others in the community, are horrified at the commission of such a crime and are peculiarly concerned in taking every possible measure to prevent its recurrence and to bring the criminal to immediate justice. The slightest lack of vigor either in denunciation of the crime or in bringing the criminal to justice is itself unpardonable.

Moreover, every effort should be made under the law to expedite the proceedings of justice in the case of such an awful crime. But it can not be necessary in order to accomplish this to deprive any citizen of those fundamental rights to be heard in his own defence which are so dear to us all and which lie at the root of our liberty. It certainly ought to be possible by the proper administration of the laws to secure swift vengeance upon the criminal; and the best and immediate efforts of all legislators, judges, and citizens should be addressed to securing such reforms in our legal procedure as to leave no vestige of excuse for those misguided men who undertake to reap vengeance through violent methods.

Men who have been guilty of a crime like rape or murder should be visited with swift and certain punishment, and the just effort made by the courts to protect them in their rights should under no circumstances be perverted into permitting any mere technicality to avert or delay their punishment. The substantial rights of the prisoner to a fair trial must of course be guaranteed, as you have so justly insisted that they should be; but, subject to this guarantee, the law must work swiftly and surely, and all the agents of the law should realize the wrong they do when they permit justice to be delayed or thwarted for technical or insufficient reasons. We must show that the law is adequate to deal with crime by freeing it from every vestige of technicality and delay.

But the fullest recognition of the horror of the crime and the most complete lack of sympathy with the criminal can not in the least diminish our horror at the way in which it has become customary to avenge these crimes and at the consequences that are already proceeding therefrom. It is

of course inevitable that where vengeance is taken by a mob it should frequently light on innocent people; and the wrong done in such a case to the individual is one for which there is no remedy. But even where the real criminal is reached, the wrong done by the mob to the community itself is wellnigh as great. Especially is this true where the lynching is accompanied with torture. There are certain hideous sights which when once seen can never be wholly erased from the mental retina. The mere fact of having seen them implies degradation. This is a thousandfold stronger when instead of merely seeing the deed the man has participated in it. Whoever in any part of our country has ever taken part in lawlessly putting to death a criminal by the dreadful torture of fire must forever after have the awful spectacle of his own handiwork seared into his brain and soul. He can never again be the same man.

This matter of lynching would be a terrible thing even if it stopped with the lynching of men guilty of the inhuman and hideous crime of rape; but as a matter of fact, lawlessness of this type never does stop and never can stop in such fashion. Every violent man in the community is encouraged by every case of lynching in which the lynchers go unpunished to himself take the law into his own hands whenever it suits his own convenience. In the same way the use of torture by the mob in certain cases is sure to spread until it is applied more or less indiscriminately in other cases. The spirit of lawlessness grows with what it feeds on, and when mobs with impunity lynch criminals for one cause, they are certain to begin to lynch real or alleged criminals for other causes. In the recent cases of lynching, over three-fourths were not for rape at all, but for murder, attempted murder, and even less heinous offences. Moreover, the history of these recent cases shows the awful fact that when the minds of men are habituated to the use of torture by lawless bodies to avenge crimes of a peculiarly revolting description, other lawless bodies will use torture in order to punish crimes of an ordinary type. Surely no patriot can fail to see the fearful brutalization and debasement which the indulgence of such a spirit and such practices inevitably portends. Surely all public men, all writers for the daily press, all clergymen, all teachers, all who in any way have a right to address the public, should with every energy unite to denounce such crimes and to support those engaged in putting them down. As a people we claim the right to speak with peculiar emphasis for freedom and for fair treatment of all men without regard to differences of race, fortune, creed, or color. We

forfeit the right so to speak when we commit or condone such crimes as these of which I speak.

The nation, like the individual, can not commit a crime with impunity. If we are guilty of lawlessness and brutal violence, whether our guilt consists in active participation therein or in mere connivance and encouragement, we shall assuredly suffer later on because of what we have done. The cornerstone of this Republic, as of all free government, is respect for and obedience to the law. Where we permit the law to be defied or evaded, whether by rich man or poor man, by black man or white, we are by just so much weakening the bonds of our civilization and increasing the chances of its overthrow, and of the substitution therefor of a system in which there shall be violent alternations of anarchy and tyranny.

Sincerely yours,
THEODORE ROOSEVELT.

HON. WINFIELD T. DURBIN,
Governor of Indiana,
Indianapolis, Ind.

MESSAGE OF THE PRESIDENT OF
THE UNITED STATES,
COMMUNICATED TO THE TWO
HOUSES OF CONGRESS, AT THE
BEGINNING OF THE FIRST
SESSION OF THE FIFTY-SEVENTH
CONGRESS

MESSAGE

To the Senate and House of Representatives:

The Congress assembles this year under the shadow of a great calamity. On the sixth of September, President McKinley was shot by an anarchist while attending the Pan-American Exposition at Buffalo, and died in that city on the fourteenth of that month.

Of the last seven elected Presidents, he is the third who has been murdered, and the bare recital of this fact is sufficient to justify grave alarm among all loyal American citizens. Moreover, the circumstances of this, the third assassination of an American President, have a peculiarity sinister significance. Both President Lincoln and President Garfield were killed by assassins of types unfortunately not uncommon in history; President Lincoln falling a victim to the terrible passions aroused by four years of civil war, and President Garfield to the revengeful vanity of a disappointed office-seeker. President McKinley was killed by an utterly depraved criminal belonging to that body of criminals who object to all governments, good and bad alike, who are against any form of popular liberty if it is guaranteed by even the most just and liberal laws, and who are as hostile to the upright exponent of a free people's sober will as to the tyrannical and irresponsible despot.

It is not too much to say that at the time of President McKinley's death he was the most widely loved man in all the United States; while we have never had any public man of his position who has been so wholly free from the bitter animosities incident to public life. His political opponents were the first to bear the heartiest and most generous tribute to the broad kindness of nature, the sweetness and gentleness of character which so endeared him to his close associates. To a standard of lofty integrity in public life he united the tender affections and home virtues which are all-important in the make-up of national character. A gallant soldier in the great war for the Union, he also shone as an example to all our people because of his conduct in the most sacred and intimate of home relations. There could be no personal hatred of him, for he never acted with aught but consideration for the welfare of others. No one could fail to respect him who knew him in public or private life. The defenders of those murderous criminals who seek to excuse their criminality by asserting that it is exercised for political ends, inveigh against wealth and irresponsible power. But for this assassination even this base apology can not be urged.

President McKinley was a man of moderate means, a man whose stock sprang from the sturdy tillers of the soil, who had himself belonged among the wage-workers, who had entered the Army as a private soldier. Wealth was not struck at when the President was assassinated, but the honest toil which is content with moderate gains after a lifetime of unremitting labor, largely in the service of the public. Still less was power struck at in the sense that power is irresponsible or centred in the hands of any one individual. The blow was not aimed at tyranny or wealth. It was aimed at one of the strongest champions the wage-worker has ever had; at one of the most faithful representatives of the system of public rights and representative government who has ever risen to public office. President McKinley filled that political office for which the entire people vote, and no President—not even Lincoln himself—was ever more earnestly anxious to represent the well thought out wishes of the people; his one anxiety in every crisis was to keep in closest touch with the people—to find out what they thought and to endeavor to give expression to their thought, after having endeavored to guide that thought aright. He had just been re-elected to the Presidency because the majority of our citizens, the majority of our farmers and wage-workers, believed that he had faithfully upheld their interests for four years. They felt themselves in close and intimate touch with him. They

felt that he represented so well and so honorably all their ideals and aspirations that they wished him to continue for another four years to represent them.

And this was the man at whom the assassin struck! That there might be nothing lacking to complete the Judas-like infamy of his act, he took advantage of an occasion when the President was meeting the people generally; and advancing as if to take the hand outstretched to him in kindly and brotherly fellowship, he turned the noble and generous confidence of the victim into an opportunity to strike the fatal blow. There is no baser deed in all the annals of crime.

The shock, the grief of the country, are bitter in the minds of all who saw the dark days while the President yet hovered between life and death. At last the light was stilled in the kindly eyes and the breath went from the lips that even in mortal agony uttered no words save of forgiveness to his murderer, of love for his friends, and of unfaltering trust in the will of the Most High. Such a death, crowning the glory of such a life, leaves us with infinite sorrow, but with such pride in what he had accomplished and in his own personal character, that we feel the blow not as struck at him, but as struck at the nation. We mourn a good and great President who is dead; but while we mourn we are lifted up by the splendid achievements of his life and the grand heroism with which he met his death.

When we turn from the man to the nation, the harm done is so great as to excite our gravest apprehensions and to demand our wisest and most resolute action. This criminal was a professed anarchist, inflamed by the teachings of professed anarchists, and probably also by the reckless utterances of those who, on the stump and in the public press, appeal to the dark and evil spirits of malice and greed, envy and sullen hatred. The wind is sowed by the men who preach such doctrines, and they can not escape their share of responsibility for the whirlwind that is reaped. This applies alike to the deliberate demagogue, to the exploiter of sensationalism, and to the crude and foolish visionary who, for whatever reason, apologizes for crime or excites aimless discontent.

The blow was aimed not at this President, but at all Presidents; at every symbol of government. President McKinley was as emphatically the embodiment of the popular will of the nation expressed through the forms

of law as a New England town meeting is in similar fashion the embodiment of the law-abiding purpose and practice of the people of the town. On no conceivable theory could the murder of the President be accepted as due to protest against "inequalities in the social order," save as the murder of all the freemen engaged in a town meeting could be accepted as a protest against that social inequality which puts a malefactor in jail. Anarchy is no more an expression of "social discontent" than picking pockets or wife-beating.

The anarchist, and especially the anarchist in the United States, is merely one type of criminal, more dangerous than any other because he represents the same depravity in a greater degree. The man who advocates anarchy directly or indirectly, in any shape or fashion, or the man who apologizes for anarchists and their deeds, makes himself morally accessory to murder before the fact. The anarchist is a criminal whose perverted instincts lead him to prefer confusion and chaos to the most beneficent form of social order. His protest of concern for workingmen is outrageous in its impudent falsity; for if the political institutions of this country do not afford opportunity to every honest and intelligent son of toil, then the door of hope is forever closed against him. The anarchist is everywhere not merely the enemy of system and of progress, but the deadly foe of liberty. If ever anarchy is triumphant, its triumph will last for but one red moment, to be succeeded for ages by the gloomy night of despotism.

For the anarchist himself, whether he preaches or practices his doctrines, we need not have one particle more concern than for any ordinary murderer. He is not the victim of social or political injustice. There are no wrongs to remedy in his case. The cause of his criminality is to be found in his own evil passions and in the evil conduct of those who urge him on, not in any failure by others or by the State to do justice to him or his. He is a malefactor and nothing else. He is in no sense, in no shape or way, a "product of social conditions," save as a highwayman is "produced" by the fact that an unarmed man happens to have a purse. It is a travesty upon the great and holy names of liberty and freedom to permit them to be invoked in such a cause. No man or body of men preaching anarchistic doctrines should be allowed at large any more than if preaching the murder of some specified private individual. Anarchistic speeches, writings, and meetings are essentially seditious and treasonable.

I earnestly recommend to the Congress that in the exercise of its wise discretion it should take into consideration the coming to this country of anarchists or persons professing principles hostile to all government and justifying the murder of those placed in authority. Such individuals as those who not long ago gathered in open meeting to glorify the murder of King Humbert of Italy perpetrate a crime, and the law should ensure their rigorous punishment. They and those like them should be kept out of this country; and if found here they should be promptly deported to the country whence they came; and far-reaching provisions should be made for the punishment of those who stay. No matter calls more urgently for the wisest thought of the Congress.

The Federal courts should be given jurisdiction over any man who kills or attempts to kill the President or any man who by the Constitution or by law is in line of succession for the Presidency, while the punishment for an unsuccessful attempt should be proportioned to the enormity of the offence against our institutions.

Anarchy is a crime against the whole human race; and all mankind should band against the anarchist. His crime should be made an offence against the law of nations, like piracy and that form of man-stealing known as the slave trade; for it is of far blacker infamy than either. It should be so declared by treaties among all civilized powers. Such treaties would give to the Federal Government the power of dealing with the crime.

A grim commentary upon the folly of the anarchist position was afforded by the attitude of the law toward this very criminal who had just taken the life of the President. The people would have torn him limb from limb if it had not been that the law he defied was at once invoked in his behalf. So far from his deed being committed on behalf of the people against the government, the government was obliged at once to exert its full police power to save him from instant death at the hands of the people. Moreover, his deed worked not the slightest dislocation in our governmental system, and the danger of a recurrence of such deeds, no matter how great it might grow, would work only in the direction of strengthening and giving harshness to the forces of order. No man will ever be restrained from becoming President by any fear as to his personal safety. If the risk to the President's life became great, it would mean that the office would more and more come to be filled by men of a spirit which would make them resolute

and merciless in dealing with every friend of disorder. This great country will not fall into anarchy, and if anarchists should ever become a serious menace to its institutions, they would not merely be stamped out, but would involve in their own ruin every active or passive sympathizer with their doctrines. The American people are slow to wrath, but when their wrath is once kindled it burns like a consuming flame.

During the last five years business confidence has been restored and the nation is to be congratulated because of its present abounding prosperity. Such prosperity can never be created by law alone, although it is easy enough to destroy it by mischievous laws. If the hand of the Lord is heavy upon any country, if flood or drought comes, human wisdom is powerless to avert the calamity. Moreover, no law can guard us against the consequences of our own folly. The men who are idle or credulous, the men who seek gains not by genuine work with head or hand but by gambling in any form, are always a source of menace not only to themselves but to others. If the business world loses its head, it loses what legislation can not supply. Fundamentally the welfare of each citizen, and therefore the welfare of the aggregate of citizens which makes the nation, must rest upon individual thrift and energy, resolution and intelligence. Nothing can take the place of this individual capacity; but wise legislation and honest and intelligent administration can give it the fullest scope, the largest opportunity to work to good effect.

The tremendous and highly complex industrial development which went on with ever accelerated rapidity during the latter half of the nineteenth century brings us face to face, at the beginning of the twentieth, with very serious social problems. The old laws, and the old customs which had almost the binding force of law, were once quite sufficient to regulate the accumulation and distribution of wealth. Since the industrial changes which have so enormously increased the productive power of mankind, they are no longer sufficient.

The growth of cities has gone on beyond comparison faster than the growth of the country, and the upbuilding of the great industrial centres has meant a startling increase, not merely in the aggregate of wealth, but in the number of very large individual, and especially of very large corporate, fortunes. The creation of these great corporate fortunes has not been due to

the tariff nor to any other governmental action, but to natural causes in the business world, operating in other countries as they operate in our own.

The process has aroused much antagonism, a great part of which is wholly without warrant. It is not true that as the rich have grown richer the poor have grown poorer. On the contrary, never before has the average man, the wage-worker, the farmer, the small trader, been so well off as in this country and at the present time. There have been abuses connected with the accumulation of wealth; yet it remains true that a fortune accumulated in legitimate business can be accumulated by the person specially benefited only on condition of conferring immense incidental benefits upon others. Successful enterprise, of the type which benefits all mankind, can only exist if the conditions are such as to offer great prizes as the rewards of success.

The captains of industry who have driven the railway systems across this continent, who have built up our commerce, who have developed our manufactures, have on the whole done great good to our people. Without them the material development of which we are so justly proud could never have taken place. Moreover, we should recognize the immense importance to this material development of leaving as unhampered as is compatible with the public good the strong and forceful men upon whom the success of business operations inevitably rests. The slightest study of business conditions will satisfy any one capable of forming a judgment that the personal equation is the most important factor in a business operation; that the business ability of the man at the head of any business concern, big or little, is usually the factor which fixes the gulf between striking success and hopeless failure.

An additional reason for caution in dealing with corporations is to be found in the international commercial conditions of to-day. The same business conditions which have produced the great aggregations of corporate and individual wealth have made them very potent factors in international commercial competition. Business concerns which have the largest means at their disposal and are managed by the ablest men are naturally those which take the lead in the strife for commercial supremacy among the nations of the world. America has only just begun to assume that commanding position in the international business world which we believe will more and more be hers. It is of the utmost importance that this position be not jeopardized, especially at a time when the overflowing abundance of

our own natural resources and the skill, business energy, and mechanical aptitude of our people make foreign markets essential. Under such conditions it would be most unwise to cramp or to fetter the youthful strength of our nation.

Moreover, it can not too often be pointed out that to strike with ignorant violence at the interests of one set of men almost inevitably endangers the interests of all. The fundamental rule in our national life—the rule which underlies all others—is that, on the whole, and in the long run, we shall go up or down together. There are exceptions; and in times of prosperity some will prosper far more, and in times of adversity some will suffer far more, than others; but speaking generally, a period of good times means that all share more or less in them, and in a period of hard times all feel the stress to a greater or less degree. It surely ought not to be necessary to enter into any proof of this statement; the memory of the lean years which began in 1893 is still vivid, and we can contrast them with the conditions in this very year which is now closing. Disaster to great business enterprises can never have its effects limited to the men at the top. It spreads throughout, and while it is bad for everybody, it is worst for those furthest down. The capitalist may be shorn of his luxuries; but the wage-worker may be deprived of even bare necessities.

The mechanism of modern business is so delicate that extreme care must be taken not to interfere with it in a spirit of rashness or ignorance. Many of those who have made it their vocation to denounce the great industrial combinations which are popularly, although with technical inaccuracy, known as “trusts,” appeal especially to hatred and fear. These are precisely the two emotions, particularly when combined with ignorance, which unfit men for the exercise of cool and steady judgment. In facing new industrial conditions, the whole history of the world shows that legislation will generally be both unwise and ineffective unless undertaken after calm inquiry and with sober self-restraint. Much of the legislation directed at the trusts would have been exceedingly mischievous had it not also been entirely ineffective. In accordance with a well-known sociological law, the ignorant or reckless agitator has been the really effective friend of the evils which he has been nominally opposing. In dealing with business interests, for the government to undertake by crude and ill-considered legislation to do what may turn out to be bad, would be to incur the risk of such far-

reaching national disaster that it would be preferable to undertake nothing at all. The men who demand the impossible or the undesirable serve as the allies of the forces with which they are nominally at war, for they hamper those who would endeavor to find out in rational fashion what the wrongs really are and to what extent and in what manner it is practicable to apply remedies.

All this is true; and yet it is also true that there are real and grave evils, one of the chief being overcapitalization because of its many baleful consequences; and a resolute and practical effort must be made to correct these evils.

There is widespread conviction in the minds of the American people that the great corporations known as trusts are in certain of their features and tendencies hurtful to the general welfare. This springs from no spirit of envy or uncharitableness, nor lack of pride in the great industrial achievements that have placed this country at the head of the nations struggling for commercial supremacy. It does not rest upon a lack of intelligent appreciation of the necessity of meeting changing and changed conditions of trade with new methods, nor upon ignorance of the fact that combination of capital in the effort to accomplish great things is necessary when the world's progress demands that great things be done. It is based upon sincere conviction that combination and concentration should be, not prohibited, but supervised and within reasonable limits controlled; and in my judgment this conviction is right.

It is no limitation upon property rights or freedom of contract to require that when men receive from government the privilege of doing business under corporate form, which frees them from individual responsibility, and enables them to call into their enterprises the capital of the public, they shall do so upon absolutely truthful representations as to the value of the property in which the capital is to be invested. Corporations engaged in interstate commerce should be regulated if they are found to exercise a license working to the public injury. It should be as much the aim of those who seek for social betterment to rid the business world of crimes of cunning as to rid the entire body politic of crimes of violence. Great corporations exist only because they are created and safeguarded by our institutions; and it is therefore our right and our duty to see that they work in harmony with these institutions.

The first essential in determining how to deal with the great industrial combinations is knowledge of the facts—publicity. In the interest of the public, the government should have the right to inspect and examine the workings of the great corporations engaged in interstate business. Publicity is the only sure remedy which we can now invoke. What further remedies are needed in the way of governmental regulation, or taxation, can only be determined after publicity has been obtained, by process of law, and in the course of administration. The first requisite is knowledge, full and complete—knowledge which may be made public to the world.

Artificial bodies, such as corporations and joint stock or other associations, depending upon any statutory law for their existence or privileges, should be subject to proper governmental supervision, and full and accurate information as to their operations should be made public regularly at reasonable intervals.

The large corporations, commonly called trusts, though organized in one State, always do business in many States, often doing very little business in the State where they are incorporated. There is utter lack of uniformity in the State laws about them; and as no State has any exclusive interest in or power over their acts, it has in practice proved impossible to get adequate regulation through State action. Therefore, in the interest of the whole people, the Nation should, without interfering with the power of the States in the matter itself, also assume power of supervision and regulation over all corporations doing an interstate business. This is especially true where the corporation derives a portion of its wealth from the existence of some monopolistic element or tendency in its business. There would be no hardship in such supervision; banks are subject to it, and in their case it is now accepted as a simple matter of course. Indeed, it is probable that supervision of corporations by the National Government need not go so far as is now the case with the supervision exercised over them by so conservative a State as Massachusetts, in order to produce excellent results.

When the Constitution was adopted, at the end of the eighteenth century, no human wisdom could foretell the sweeping changes, alike in industrial and political conditions, which were to take place by the beginning of the twentieth century. At that time it was accepted as a matter of course that the several States were the proper authorities to regulate, so far as was then necessary, the comparatively insignificant and strictly localized corporate

bodies of the day. The conditions are now wholly different and wholly different action is called for. I believe that a law can be framed which will enable the National Government to exercise control along the lines above indicated, profiting by the experience gained through the passage and administration of the Interstate Commerce Act. If, however, the judgment of the Congress is that it lacks the constitutional power to pass such an act, then a constitutional amendment should be submitted to confer the power.

There should be created a Cabinet officer, to be known as Secretary of Commerce and Industries, as provided in the bill introduced at the last session of the Congress. It should be his province to deal with commerce in its broadest sense; including among many other things whatever concerns labor and all matters affecting the great business corporations and our merchant marine.

The course proposed is one phase of what should be a comprehensive and far-reaching scheme of constructive statesmanship for the purpose of broadening our markets, securing our business interests on a safe basis, and making firm our new position in the international industrial world, while scrupulously safeguarding the rights of wage-worker and capitalist, of investor and private citizen, so as to secure equity as between man and man in this Republic.

With the sole exception of the farming interest, no one matter is of such vital moment to our whole people as the welfare of the wage-workers. If the farmer and the wage-worker are well off, it is absolutely certain that all others will be well off too. It is therefore a matter for hearty congratulation that on the whole wages are higher to-day in the United States than ever before in our history, and far higher than in any other country. The standard of living is also higher than ever before. Every effort of legislator and administrator should be bent to secure the permanency of this condition of things and its improvement wherever possible. Not only must our labor be protected by the tariff, but it should also be protected so far as it is possible from the presence in this country of any laborers brought over by contract, or of those who, coming freely, yet represent a standard of living so depressed that they can undersell our men in the labor market and drag them to a lower level. I regard it as necessary, with this end in view, to re-enact immediately the law excluding Chinese laborers and to strengthen it wherever necessary in order to make its enforcement entirely effective.

The National Government should demand the highest quality of service from its employees; and in return it should be a good employer. If possible legislation should be passed, in connection with the Interstate Commerce Law, which will render effective the efforts of different States to do away with the competition of convict contract labor in the open labor market. So far as practicable under the conditions of government work, provision should be made to render the enforcement of the eight-hour law easy and certain. In all industries carried on directly or indirectly for the United States Government women and children should be protected from excessive hours of labor, from night work, and from work under unsanitary conditions. The government should provide in its contracts that all work should be done under “fair” conditions, and in addition to setting a high standard should uphold it by proper inspection, extending if necessary to the subcontractors. The government should forbid all night work for women and children, as well as excessive overtime. For the District of Columbia a good factory law should be passed; and, as a powerful indirect aid to such laws, provision should be made to turn the inhabited alleys, the existence of which is a reproach to our Capital City, into minor streets, where the inhabitants can live under conditions favorable to health and morals.

American wage-workers work with their heads as well as their hands. Moreover, they take a keen pride in what they are doing; so that, independent of the reward, they wish to turn out a perfect job. This is the great secret of our success in competition with the labor of foreign countries.

The most vital problem with which this country, and for that matter the whole civilized world, has to deal, is the problem which has for one side the betterment of social conditions, moral and physical, in large cities, and for another side the effort to deal with that tangle of far-reaching questions which we group together when we speak of “labor.” The chief factor in the success of each man—wage-worker, farmer, and capitalist alike—must ever be the sum total of his own individual qualities and abilities. Second only to this comes the power of acting in combination or association with others. Very great good has been and will be accomplished by associations or unions of wage-workers, when managed with forethought, and when they combine insistence upon their own rights with law-abiding respect for the rights of others. The display of these qualities in such bodies is a duty to the

nation no less than to the associations themselves. Finally, there must also in many cases be action by the government in order to safeguard the rights and interests of all. Under our Constitution there is much more scope for such action by the State and the municipality than by the nation. But on points such as those touched on above the National Government can act.

When all is said and done, the rule of brotherhood remains as the indispensable prerequisite to success in the kind of national life for which we strive. Each man must work for himself, and unless he so works no outside help can avail him; but each man must remember also that he is indeed his brother's keeper, and that while no man who refuses to walk can be carried with advantage to himself or any one else, yet that each at times stumbles or halts, that each at times needs to have the helping hand outstretched to him. To be permanently effective, aid must always take the form of helping a man to help himself; and we can all best help ourselves by joining together in the work that is of common interest to all.

Our present immigration laws are unsatisfactory. We need every honest and efficient immigrant fitted to become an American citizen, every immigrant who comes here to stay, who brings here a strong body, a stout heart, a good head, and a resolute purpose to do his duty well in every way and to bring up his children as law-abiding and God-fearing members of the community. But there should be a comprehensive law enacted with the object of working a threefold improvement over our present system. First, we should aim to exclude absolutely not only all persons who are known to be believers in anarchistic principles or members of anarchistic societies, but also all persons who are of a low moral tendency or of unsavory reputation. This means that we should require a more thorough system of inspection abroad and a more rigid system of examination at our immigration ports, the former being especially necessary.

The second object of a proper immigration law ought to be to secure by a careful and not merely perfunctory educational test some intelligent capacity to appreciate American institutions and act sanely as American citizens. This would not keep out all anarchists, for many of them belong to the intelligent criminal class. But it would do what is also in point, that is, tend to decrease the sum of ignorance, so potent in producing the envy, suspicion, malignant passion, and hatred of order, out of which anarchistic sentiment inevitably springs. Finally, all persons should be excluded who

are below a certain standard of economic fitness to enter our industrial field as competitors with American labor. There should be proper proof of personal capacity to earn an American living and enough money to ensure a decent start under American conditions. This would stop the influx of cheap labor, and the resulting competition which gives rise to so much of bitterness in American industrial life; and it would dry up the springs of the pestilential social conditions in our great cities, where anarchistic organizations have their greatest possibility of growth.

Both the educational and economic tests in a wise immigration law should be designed to protect and elevate the general body politic and social. A very close supervision should be exercised over the steamship companies which mainly bring over the immigrants, and they should be held to a strict accountability for any infraction of the law.

There is general acquiescence in our present tariff system as a national policy. The first requisite to our prosperity is the continuity and stability of this economic policy. Nothing could be more unwise than to disturb the business interests of the country by any general tariff change at this time. Doubt, apprehension, uncertainty are exactly what we most wish to avoid in the interest of our commercial and material well-being. Our experience in the past has shown that sweeping revisions of the tariff are apt to produce conditions closely approaching panic in the business world. Yet it is not only possible, but eminently desirable, to combine with the stability of our economic system a supplementary system of reciprocal benefit and obligation with other nations. Such reciprocity is an incident and result of the firm establishment and preservation of our present economic policy. It was specially provided for in the present tariff law.

Reciprocity must be treated as the handmaiden of protection. Our first duty is to see that the protection granted by the tariff in every case where it is needed is maintained, and that reciprocity be sought for so far as it can safely be done without injury to our home industries. Just how far this is must be determined according to the individual case, remembering always that every application of our tariff policy to meet our shifting national needs must be conditioned upon the cardinal fact that the duties must never be

reduced below the point that will cover the difference between the labor cost here and abroad. The well-being of the wage-worker is a prime consideration of our entire policy of economic legislation.

Subject to this proviso of the proper protection necessary to our industrial well-being at home, the principle of reciprocity must command our hearty support. The phenomenal growth of our export trade emphasizes the urgency of the need for wider markets and for a liberal policy in dealing with foreign nations. Whatever is merely petty and vexatious in the way of trade restrictions should be avoided. The customers to whom we dispose of our surplus products in the long run, directly or indirectly, purchase those surplus products by giving us something in return. Their ability to purchase our products should as far as possible be secured by so arranging our tariff as to enable us to take from them those products which we can use without harm to our own industries and labor, or the use of which will be of marked benefit to us.

It is most important that we should maintain the high level of our present prosperity. We have now reached the point in the development of our interests where we are not only able to supply our own markets but to produce a constantly growing surplus for which we must find markets abroad. To secure these markets we can utilize existing duties in any case where they are no longer needed for the purpose of protection, or in any case where the article is not produced here and the duty is no longer necessary for revenue, as giving us something to offer in exchange for what we ask. The cordial relations with other nations which are so desirable will naturally be promoted by the course thus required by our own interests.

The natural line of development for a policy of reciprocity will be in connection with those of our productions which no longer require all of the support once needed to establish them upon a sound basis, and with those others where either because of natural or of economic causes we are beyond the reach of successful competition.

I ask the attention of the Senate to the reciprocity treaties laid before it by my predecessor.

The condition of the American merchant marine is such as to call for immediate remedial action by the Congress. It is discreditable to us as a nation that our merchant marine should be utterly insignificant in comparison to that of other nations which we overtop in other forms of business. We should not longer submit to conditions under which only a trifling portion of our great commerce is carried in our own ships. To remedy this state of things would not merely serve to build up our shipping interests, but it would also result in benefit to all who are interested in the permanent establishment of a wider market for American products, and would provide an auxiliary force for the navy. Ships work for their own countries just as railroads work for their terminal points. Shipping lines, if established to the principal countries with which we have dealings, would be of political as well as commercial benefit. From every standpoint it is unwise for the United States to continue to rely upon the ships of competing nations for the distribution of our goods. It should be made advantageous to carry American goods in American-built ships.

At present American shipping is under certain great disadvantages when put in competition with the shipping of foreign countries. Many of the fast foreign steamships, at a speed of fourteen knots or above, are subsidized; and all our ships, sailing vessels and steamers alike, cargo carriers of slow speed and mail carriers of high speed, have to meet the fact that the original cost of building American ships is greater than is the case abroad; that the wages paid the officers and seamen are very much higher than those paid the officers and seamen of foreign competing countries; and that the standard of living on our ships is far superior to the standard of living on the ships of our commercial rivals.

Our government should take such action as will remedy these inequalities. The American merchant marine should be restored to the ocean.

The Act of March 14, 1900, intended unequivocally to establish gold as the standard money and to maintain at a parity therewith all forms of money medium in use with us, has been shown to be timely and judicious. The price of our government bonds in the world's market, when compared with

the price of similar obligations issued by other nations, is a flattering tribute to our public credit. This condition it is evidently desirable to maintain.

In many respects the National Banking Law furnishes sufficient liberty for the proper exercise of the banking function; but there seems to be need of better safeguards against the deranging influence of commercial crises and financial panics. Moreover, the currency of the country should be made responsive to the demands of our domestic trade and commerce.

The collections from duties on imports and internal taxes continue to exceed the ordinary expenditures of the government, thanks mainly to the reduced army expenditures. The utmost care should be taken not to reduce the revenues so that there will be any possibility of a deficit; but, after providing against any such contingency, means should be adopted which will bring the revenues more nearly within the limit of our actual needs. In his report to the Congress the Secretary of the Treasury considers all these questions at length, and I ask your attention to the report and recommendations.

I call special attention to the need of strict economy in expenditures. The fact that our national needs forbid us to be niggardly in providing whatever is actually necessary to our well-being, should make us doubly careful to husband our national resources, as each of us husbands his private resources, by scrupulous avoidance of anything like wasteful or reckless expenditure. Only by avoidance of spending money on what is needless or unjustifiable can we legitimately keep our income to the point required to meet our needs that are genuine.

In 1887 a measure was enacted for the regulation of interstate railways, commonly known as the Interstate Commerce Act. The cardinal provisions of that act were that railway rates should be just and reasonable and that all shippers, localities, and commodities should be accorded equal treatment. A commission was created and endowed with what were supposed to be the necessary powers to execute the provisions of this act.

That law was largely an experiment. Experience has shown the wisdom of its purposes, but has also shown, possibly that some of its requirements

are wrong, certainly that the means devised for the enforcement of its provisions are defective. Those who complain of the management of the railways allege that established rates are not maintained; that rebates and similar devices are habitually resorted to; that these preferences are usually in favor of the large shipper; that they drive out of business the smaller competitor; that while many rates are too low, many others are excessive; and that gross preferences are made, affecting both localities and commodities. Upon the other hand, the railways assert that the law by its very terms tends to produce many of these illegal practices by depriving carriers of that right of concerted action which they claim is necessary to establish and maintain non-discriminating rates.

The act should be amended. The railway is a public servant. Its rates should be just to and open to all shippers alike. The government should see to it that within its jurisdiction this is so and should provide a speedy, inexpensive, and effective remedy to that end. At the same time it must not be forgotten that our railways are the arteries through which the commercial lifeblood of this nation flows. Nothing could be more foolish than the enactment of legislation which would unnecessarily interfere with the development and operation of these commercial agencies. The subject is one of great importance and calls for the earnest attention of the Congress.

The Department of Agriculture during the past fifteen years has steadily broadened its work on economic lines, and has accomplished results of real value in upbuilding domestic and foreign trade. It has gone into new fields until it is now in touch with all sections of our country and with two of the island groups that have lately come under our jurisdiction, whose people must look to agriculture as a livelihood. It is searching the world for grains, grasses, fruits, and vegetables specially fitted for introduction into localities in the several States and Territories where they may add materially to our resources. By scientific attention to soil survey and possible new crops, to breeding of new varieties of plants, to experimental shipments, to animal industry and applied chemistry, very practical aid has been given our farming and stock-growing interests. The products of the farm have taken

an unprecedented place in our export trade during the year that has just closed.

Public opinion throughout the United States has moved steadily toward a just appreciation of the value of forests, whether planted or of natural growth. The great part played by them in the creation and maintenance of the national wealth is now more fully realized than ever before.

Wise forest protection does not mean the withdrawal of forest resources, whether of wood, water, or grass, from contributing their full share to the welfare of the people, but, on the contrary, gives the assurance of larger and more certain supplies. The fundamental idea of forestry is the perpetuation of forests by use. Forest protection is not an end of itself; it is a means to increase and sustain the resources of our country and the industries which depend upon them. The preservation of our forests is an imperative business necessity. We have come to see clearly that whatever destroys the forest, except to make way for agriculture, threatens our well-being.

The practical usefulness of the national forest reserves to the mining, grazing, irrigation, and other interests of the regions in which the reserves lie has led to a widespread demand by the people of the West for their protection and extension. The forest reserves will inevitably be of still greater use in the future than in the past. Additions should be made to them whenever practicable, and their usefulness should be increased by a thoroughly businesslike management.

At present the protection of the forest reserves rests with the General Land Office, the mapping and description of their timber with the United States Geological Survey, and the preparation of plans for their conservative use with the Bureau of Forestry, which is also charged with the general advancement of practical forestry in the United States. These various functions should be united in the Bureau of Forestry, to which they properly belong. The present diffusion of responsibility is bad from every standpoint. It prevents that effective co-operation between the government and the men who utilize the resources of the reserves, without which the interests of both must suffer. The scientific bureaus generally should be put under the

Department of Agriculture. The President should have by law the power of transferring lands for use as forest reserves to the Department of Agriculture. He already has such power in the case of lands needed by the Departments of War and the Navy.

The wise administration of the forest reserves will be not less helpful to the interests which depend on water than to those which depend on wood and grass. The water supply itself depends upon the forest. In the arid region it is water, not land, which measures production. The western half of the United States would sustain a population greater than that of our whole country to-day if the waters that now run to waste were saved and used for irrigation. The forest and water problems are perhaps the most vital internal questions of the United States.

Certain of the forest reserves should also be made preserves for the wild forest creatures. All of the reserves should be better protected from fires. Many of them need special protection because of the great injury done by live stock, above all by sheep. The increase in deer, elk, and other animals in the Yellowstone Park shows what may be expected when other mountain forests are properly protected by law and properly guarded. Some of these areas have been so denuded of surface vegetation by over-grazing that the ground breeding birds, including grouse and quail, and many mammals, including deer, have been exterminated or driven away. At the same time the water-storing capacity of the surface has been decreased or destroyed, thus promoting floods in times of rain and diminishing the flow of streams between rains.

In cases where natural conditions have been restored for a few years, vegetation has again carpeted the ground, birds and deer are coming back, and hundreds of persons, especially from the immediate neighborhood, come each summer to enjoy the privilege of camping. Some at least of the forest reserves should afford perpetual protection to the native fauna and flora, safe havens of refuge to our rapidly diminishing wild animals of the larger kinds, and free camping grounds for the ever-increasing numbers of men and women who have learned to find rest, health, and recreation in the splendid forests and flower-clad meadows of our mountains. The forest reserves should be set apart forever for the use and benefit of our people as a whole and not sacrificed to the shortsighted greed of a few.

The forests are natural reservoirs. By restraining the streams in flood and replenishing them in drought they make possible the use of waters otherwise wasted. They prevent the soil from washing, and so protect the storage reservoirs from filling up with silt. Forest conservation is therefore an essential condition of water conservation.

The forests alone can not, however, fully regulate and conserve the waters of the arid region. Great storage works are necessary to equalize the flow of streams and to save the flood waters. Their construction has been conclusively shown to be an undertaking too vast for private effort. Nor can it be best accomplished by the individual States acting alone. Far-reaching interstate problems are involved; and the resources of single States would often be inadequate. It is properly a national function, at least in some of its features. It is as right for the National Government to make the streams and rivers of the arid region useful by engineering works for water storage as to make useful the rivers and harbors of the humid region by engineering works of another kind. The storing of the floods in reservoirs at the headwaters of our rivers is but an enlargement of our present policy of river control, under which levees are built on the lower reaches of the same streams.

The Government should construct and maintain these reservoirs as it does other public works. Where their purpose is to regulate the flow of streams, the water should be turned freely into the channels in the dry season to take the same course under the same laws as the natural flow.

The reclamation of the unsettled arid public lands presents a different problem. Here it is not enough to regulate the flow of streams. The object of the government is to dispose of the land to settlers who will build homes upon it. To accomplish this object water must be brought within their reach.

The pioneer settlers on the arid public domain chose their homes along streams from which they could themselves divert the water to reclaim their holdings. Such opportunities are practically gone. There remain, however, vast areas of public land which can be made available for homestead settlement, but only by reservoirs and main-line canals impracticable for private enterprise. These irrigation works should be built by the National

Government. The lands reclaimed by them should be reserved by the Government for actual settlers, and the cost of construction should so far as possible be repaid by the land reclaimed. The distribution of the water, the division of the streams among irrigators, should be left to the settlers themselves in conformity with State laws and without interference with those laws or with vested rights. The policy of the National Government should be to aid irrigation in the several States and Territories in such manner as will enable the people in the local communities to help themselves, and as will stimulate needed reforms in the State laws and regulations governing irrigation.

The reclamation and settlement of the arid lands will enrich every portion of our country, just as the settlement of the Ohio and Mississippi Valleys brought prosperity to the Atlantic States. The increased demand for manufactured articles will stimulate industrial production, while wider home markets and the trade of Asia will consume the larger food supplies and effectually prevent Western competition with Eastern agriculture. Indeed, the products of irrigation will be consumed chiefly in upbuilding local centres of mining and other industries, which would otherwise not come into existence at all. Our people as a whole will profit, for successful home-making is but another name for the upbuilding of the Nation.

The necessary foundation has already been laid for the inauguration of the policy just described. It would be unwise to begin by doing too much, for a great deal will doubtless be learned, both as to what can and what can not be safely attempted, by the early efforts, which must of necessity be partly experimental in character. At the very beginning the Government should make clear, beyond shadow of doubt, its intention to pursue this policy on lines of the broadest public interest. No reservoir or canal should ever be built to satisfy selfish personal or local interests; but only in accordance with the advice of trained experts, after long investigation has shown the locality where all the conditions combine to make the work most needed and fraught with the greatest usefulness to the community as a whole. There should be no extravagance, and the believers in the need of irrigation will most benefit their cause by seeing to it that it is free from the least taint of excessive or reckless expenditure of the public moneys.

Whatever the Nation does for the extension of irrigation should harmonize with, and tend to improve, the condition of those now living on

irrigated land. We are not at the starting point of this development. Over two hundred millions of private capital has already been expended in the construction of irrigation works, and many million acres of arid land reclaimed. A high degree of enterprise and ability has been shown in the work itself; but as much can not be said in reference to the laws relating thereto. The security and value of the homes created depend largely on the stability of titles to water; but the majority of these rest on the uncertain foundation of court decisions rendered in ordinary suits at law. With a few creditable exceptions, the arid States have failed to provide for the certain and just division of streams in times of scarcity. Lax and uncertain laws have made it possible to establish rights to water in excess of actual uses or necessities, and many streams have already passed into private ownership, or a control equivalent to ownership.

Whoever controls a stream practically controls the land it renders productive, and the doctrine of private ownership of water apart from land can not prevail without causing enduring wrong. The recognition of such ownership, which has been permitted to grow up in the arid regions, should give way to a more enlightened and larger recognition of the rights of the public in the control and disposal of the public water supplies. Laws founded upon conditions obtaining in humid regions, where water is too abundant to justify hoarding it, have no proper application in a dry country.

In the arid States the only right to water which should be recognized is that of use. In irrigation this right should attach to the land reclaimed and be inseparable therefrom. Granting perpetual water rights to others than users, without compensation to the public, is open to all the objections which apply to giving away perpetual franchises to the public utilities of cities. A few of the Western States have already recognized this, and have incorporated in their constitutions the doctrine of perpetual State ownership of water.

The benefits which have followed the unaided development of the past justify the nation's aid and co-operation in the more difficult and important work yet to be accomplished. Laws so vitally affecting homes as those which control the water supply will only be effective when they have the sanction of the irrigators; reforms can only be final and satisfactory when they come through the enlightenment of the people most concerned. The larger development which national aid ensures should, however, awaken in

every arid State the determination to make its irrigation system equal in justice and effectiveness that of any country in the civilized world. Nothing could be more unwise than for isolated communities to continue to learn everything experimentally, instead of profiting by what is already known elsewhere. We are dealing with a new and momentous question, in the pregnant years while institutions are forming, and what we do will affect not only the present but future generations.

Our aim should be not simply to reclaim the largest area of land and provide homes for the largest number of people, but to create for this new industry the best possible social and industrial conditions; and this requires that we not only understand the existing situation, but avail ourselves of the best experience of the time in the solution of its problems. A careful study should be made, both by the Nation and the States, of the irrigation laws and conditions here and abroad. Ultimately it will probably be necessary for the Nation to co-operate with the several arid States in proportion as these States by their legislation and administration show themselves fit to receive it.

In Hawaii our aim must be to develop the Territory on the traditional American lines. We do not wish a region of large estates tilled by cheap labor; we wish a healthy American community of men who themselves till the farms they own. All our legislation for the islands should be shaped with this end in view; the well-being of the average home-maker must afford the true test of the healthy development of the islands. The land policy should as nearly as possible be modeled on our homestead system.

It is a pleasure to say that it is hardly more necessary to report as to Porto Rico than as to any State or Territory within our continental limits. The island is thriving as never before, and it is being administered efficiently and honestly. Its people are now enjoying liberty and order under the protection of the United States, and upon this fact we congratulate them and ourselves. Their material welfare must be as carefully and jealously considered as the welfare of any other portion of our country. We have given them the great gift of free access for their products to the markets of

the United States. I ask the attention of the Congress to the need of legislation concerning the public lands of Porto Rico.

In Cuba such progress has been made toward putting the independent government of the island upon a firm footing that before the present session of the Congress closes this will be an accomplished fact. Cuba will then start as her own mistress; and to the beautiful Queen of the Antilles, as she unfolds this new page of her destiny, we extend our heartiest greetings and good wishes. Elsewhere I have discussed the question of reciprocity. In the case of Cuba, however, there are weighty reasons of morality and of national interest why the policy should be held to have a peculiar application, and I most earnestly ask your attention to the wisdom, indeed to the vital need, of providing for a substantial reduction in the tariff duties on Cuban imports into the United States. Cuba has in her Constitution affirmed what we desired, that she should stand, in international matters, in closer and more friendly relations with us than with any other power; and we are bound by every consideration of honor and expediency to pass commercial measures in the interest of her material well-being.

In the Philippines our problem is larger. They are very rich tropical islands, inhabited by many varying tribes, representing widely different stages of progress toward civilization. Our earnest effort is to help these people upward along the stony and difficult path that leads to self-government. We hope to make our administration of the islands honorable to our Nation by making it of the highest benefit to the Filipinos themselves; and as an earnest of what we intend to do, we point to what we have done. Already a greater measure of material prosperity and of governmental honesty and efficiency has been attained in the Philippines than ever before in their history.

It is no light task for a nation to achieve the temperamental qualities without which the institutions of free government are but an empty mockery. Our people are now successfully governing themselves, because for more than a thousand years they have been slowly fitting themselves, sometimes consciously, sometimes unconsciously, toward this end. What has taken us thirty generations to achieve, we can not expect to see another race accomplish out of hand, especially when large portions of that race start very far behind the point which our ancestors had reached even thirty generations ago. In dealing with the Philippine people we must show both

patience and strength, forbearance and steadfast resolution. Our aim is high. We do not desire to do for the islanders merely what has elsewhere been done for tropic peoples by even the best foreign governments. We hope to do for them what has never before been done for any people of the tropics—to make them fit for self-government after the fashion of the really free nations.

History may safely be challenged to show a single instance in which a masterful race such as ours, having been forced by the exigencies of war to take possession of an alien land, has behaved to its inhabitants with the disinterested zeal for their progress that our people have shown in the Philippines. To leave the islands at this time would mean that they would fall into a welter of murderous anarchy. Such desertion of duty on our part would be a crime against humanity. The character of Governor Taft and of his associates and subordinates is a proof, if such be needed, of the sincerity of our effort to give the islanders a constantly increasing measure of self-government, exactly as fast as they show themselves fit to exercise it. Since the civil government was established not an appointment has been made in the islands with any reference to considerations of political influence, or to aught else save the fitness of the man and the needs of the service.

In our anxiety for the welfare and progress of the Philippines, it may be that here and there we have gone too rapidly in giving them local self-government. It is on this side that our error, if any, has been committed. No competent observer, sincerely desirous of finding out the facts and influenced only by a desire for the welfare of the natives, can assert that we have not gone far enough. We have gone to the very verge of safety in hastening the process. To have taken a single step further or faster in advance would have been folly and weakness, and might well have been crime. We are extremely anxious that the natives shall show the power of governing themselves. We are anxious, first for their sakes, and next, because it relieves us of a great burden. There need not be the slightest fear of our not continuing to give them all the liberty for which they are fit.

The only fear is lest in our overanxiety we give them a degree of independence for which they are unfit, thereby inviting reaction and disaster. As fast as there is any reasonable hope that in a given district the people can govern themselves, self-government has been given in that district. There is not a locality fitted for self-government which has not

received it. But it may well be that in certain cases it will have to be withdrawn because the inhabitants show themselves unfit to exercise it; such instances have already occurred. In other words, there is not the slightest chance of our failing to show a sufficiently humanitarian spirit. The danger comes in the opposite direction.

There are still troubles ahead in the islands. The insurrection has become an affair of local banditti and marauders, who deserve no higher regard than the brigands of portions of the Old World. Encouragement, direct or indirect, to these insurrectos stands on the same footing as encouragement to hostile Indians in the days when we still had Indian wars. Exactly as our aim is to give to the Indian who remains peaceful the fullest and amplest consideration, but to have it understood that we will show no weakness if he goes on the warpath, so we must make it evident, unless we are false to our own traditions and to the demands of civilization and humanity, that while we will do everything in our power for the Filipino who is peaceful, we will take the sternest measures with the Filipino who follows the path of the insurrecto and the ladrone.

The heartiest praise is due to large numbers of the natives of the islands for their steadfast loyalty. The Macabebes have been conspicuous for their courage and devotion to the flag. I recommend that the Secretary of War be empowered to take some systematic action in the way of aiding those of these men who are crippled in the service and the families of those who are killed.

The time has come when there should be additional legislation for the Philippines. Nothing better can be done for the islands than to introduce industrial enterprises. Nothing would benefit them so much as throwing them open to industrial development. The connection between idleness and mischief is proverbial, and the opportunity to do remunerative work is one of the surest preventives of war. Of course no business man will go into the Philippines unless it is to his interest to do so, and it is immensely to the interest of the islands that he should go in. It is therefore necessary that the Congress should pass laws by which the resources of the islands can be developed; so that franchises (for limited terms of years) can be granted to companies doing business in them, and every encouragement be given to the incoming of business men of every kind.

Not to permit this is to do a wrong to the Philippines. The franchises must be granted and the business permitted only under regulations which will guarantee the islands against any kind of improper exploitation. But the vast natural wealth of the islands must be developed, and the capital willing to develop it must be given the opportunity. The field must be thrown open to individual enterprise, which has been the real factor in the development of every region over which our flag has flown. It is urgently necessary to enact suitable laws dealing with general transportation, mining, banking, currency, homesteads, and the use and ownership of the lands and timber. These laws will give free play to industrial enterprise; and the commercial development which will surely follow will afford to the people of the islands the best proofs of the sincerity of our desire to aid them.

I call your attention most earnestly to the crying need of a cable to Hawaii and the Philippines, to be continued from the Philippines to points in Asia. We should not defer a day longer than necessary the construction of such a cable. It is demanded not merely for commercial but for political and military considerations.

Either the Congress should immediately provide for the construction of a government cable, or else an arrangement should be made by which like advantages to those accruing from a government cable may be secured to the Government by contract with a private cable company.

No single great material work which remains to be undertaken on this continent is of such consequence to the American people as the building of a canal across the Isthmus connecting North and South America. Its importance to the Nation is by no means limited merely to its material effects upon our business prosperity; and yet with view to these effects alone it would be to the last degree important for us immediately to begin it. While its beneficial effects would perhaps be most marked upon the Pacific Coast and the Gulf and South Atlantic States, it would also greatly benefit

other sections. It is emphatically a work which it is for the interest of the entire country to begin and complete as soon as possible; it is one of those great works which only a great nation can undertake with prospects of success, and which when done are not only permanent assets in the nation's material interests, but standing monuments to its constructive ability.

I am glad to be able to announce to you that our negotiations on this subject with Great Britain, conducted on both sides in a spirit of friendliness and mutual good-will and respect, have resulted in my being able to lay before the Senate a treaty which if ratified will enable us to begin preparations for an Isthmian Canal at any time, and which guarantees to this Nation every right that it has ever asked in connection with the canal. In this treaty, the old Clayton-Bulwer treaty, so long recognized as inadequate to supply the base for the construction and maintenance of a necessarily American ship canal, is abrogated. It specifically provides that the United States alone shall do the work of building and assume the responsibility of safeguarding the canal and shall regulate its neutral use by all nations on terms of equality without the guarantee or interference of any outside nation from any quarter. The signed treaty will at once be laid before the Senate, and if approved the Congress can then proceed to give effect to the advantages it secures us by providing for the building of the canal.

The true end of every great and free people should be self-respecting peace; and this Nation most earnestly desires sincere and cordial friendship with all others. Over the entire world, of recent years, wars between the great civilized powers have become less and less frequent. Wars with barbarous or semi-barbarous peoples come in an entirely different category, being merely a most regrettable but necessary international police duty which must be performed for the sake of the welfare of mankind. Peace can only be kept with certainty where both sides wish to keep it; but more and more the civilized peoples are realizing the wicked folly of war and are attaining that condition of just and intelligent regard for the rights of others which will in the end, as we hope and believe, make world-wide peace possible. The peace conference at The Hague gave definite expression to this hope and belief and marked a stride toward their attainment.

This same peace conference acquiesced in our statement of the Monroe Doctrine as compatible with the purposes and aims of the conference.

The Monroe Doctrine should be the cardinal feature of the foreign policy of all the nations of the two Americas, as it is of the United States. Just seventy-eight years have passed since President Monroe in his Annual Message announced that "The American continents are henceforth not to be considered as subjects for future colonization by any European power." In other words, the Monroe Doctrine is a declaration that there must be no territorial aggrandizement by any non-American power at the expense of any American power on American soil. It is in no wise intended as hostile to any nation in the Old World. Still less is it intended to give cover to any aggression by one New World power at the expense of any other. It is simply a step, and a long step, toward assuring the universal peace of the world by securing the possibility of permanent peace on this hemisphere.

During the past century other influences have established the permanence and independence of the smaller states of Europe. Through the Monroe Doctrine we hope to be able to safeguard like independence and secure like permanence for the lesser among the New World nations.

This doctrine has nothing to do with the commercial relations of any American power, save that it in truth allows each of them to form such as it desires. In other words, it is really a guaranty of the commercial independence of the Americas. We do not ask under this doctrine for any exclusive commercial dealings with any other American state. We do not guarantee any state against punishment if it misconducts itself, provided that punishment does not take the form of the acquisition of territory by any non-American power.

Our attitude in Cuba is a sufficient guaranty of our own good faith. We have not the slightest desire to secure any territory at the expense of any of our neighbors. We wish to work with them hand in hand, so that all of us may be uplifted together, and we rejoice over the good fortune of any of them, we gladly hail their material prosperity and political stability, and are concerned and alarmed if any of them fall into industrial or political chaos. We do not wish to see any Old World military power grow up on this continent, or to be compelled to become a military power ourselves. The

peoples of the Americas can prosper best if left to work out their own salvation in their own way.

The work of upbuilding the navy must be steadily continued. No one point of our policy, foreign or domestic, is more important than this to the honor and material welfare, and above all to the peace, of our Nation in the future. Whether we desire it or not, we must henceforth recognize that we have international duties no less than international rights. Even if our flag were hauled down in the Philippines and Porto Rico, even if we decided not to build the Isthmian Canal, we should need a thoroughly trained navy of adequate size, or else be prepared definitely and for all time to abandon the idea that our Nation is among those whose sons go down to the sea in ships. Unless our commerce is always to be carried in foreign bottoms, we must have war craft to protect it.

Inasmuch, however, as the American people have no thought of abandoning the path upon which they have entered, and especially in view of the fact that the building of the Isthmian Canal is fast becoming one of the matters which the whole people are united in demanding, it is imperative that our navy should be put and kept in the highest state of efficiency, and should be made to answer to our growing needs. So far from being in any way a provocation to war, an adequate and highly trained navy is the best guaranty against war, the cheapest and most effective peace insurance. The cost of building and maintaining such a navy represents the very lightest premium for insuring peace which this nation can possibly pay.

Probably no other great nation in the world is so anxious for peace as we are. There is not a single civilized power which has anything whatever to fear from aggressiveness on our part. All we want is peace; and toward this end we wish to be able to secure the same respect for our rights from others which we are eager and anxious to extend to their rights in return, to insure fair treatment to us commercially, and to guarantee the safety of the American people.

Our people intend to abide by the Monroe Doctrine and to insist upon it as the one sure means of securing the peace of the Western Hemisphere. The navy offers us the only means of making our insistence upon the Monroe Doctrine anything but a subject of derision to whatever nation chooses to disregard it. We desire the peace which comes as of right to the just man armed; not the peace granted on terms of ignominy to the craven and the weakling.

It is not possible to improvise a navy after war breaks out. The ships must be built and the men trained long in advance. Some auxiliary vessels can be turned into makeshifts which will do in default of any better for the minor work, and a proportion of raw men can be mixed with the highly trained, their shortcomings being made good by the skill of their fellows; but the efficient fighting force of the navy when pitted against an equal opponent will be found almost exclusively in the warships that have been regularly built and in the officers and men who through years of faithful performance of sea duty have been trained to handle their formidable but complex and delicate weapons with the highest efficiency. In the late war with Spain the ships that dealt the decisive blows at Manila and Santiago had been launched from two to fourteen years, and they were able to do as they did because the men in the conning towers, the gun-turrets, and the engine-rooms had through long years of practice at sea learned how to do their duty.

Our present navy was begun in 1882. At that period our navy consisted of a collection of antiquated wooden ships, already almost as out of place against modern war vessels as the galleys of Alcibiades and Hamilcar—certainly as the ships of Tromp and Blake. Nor at that time did we have men fit to handle a modern man-of-war. Under the wise legislation of the Congress and the successful administration of a succession of patriotic Secretaries of the Navy, belonging to both political parties, the work of upbuilding the navy went on, and ships equal to any in the world of their kind were continually added; and what was even more important, these ships were exercised at sea singly and in squadrons until the men aboard them were able to get the best possible service out of them. The result was seen in the short war with Spain, which was decided with such rapidity because of the infinitely greater preparedness of our navy than of the Spanish navy.

While awarding the fullest honor to the men who actually commanded and manned the ships which destroyed the Spanish sea forces in the Philippines and in Cuba, we must not forget that an equal meed of praise belongs to those without whom neither blow could have been struck. The Congressmen who voted years in advance the money to lay down the ships, to build the guns, to buy the armor plate; the Department officials and the business men and wage-workers who furnished what the Congress had authorized; the Secretaries of the Navy who asked for and expended the appropriations; and finally the officers who, in fair weather and foul, on actual sea service, trained and disciplined the crews of the ships when there was no war in sight—all are entitled to a full share in the glory of Manila and Santiago, and the respect accorded by every true American to those who wrought such signal triumph for our country. It was forethought and preparation which secured us the overwhelming triumph of 1898. If we fail to show forethought and preparation now, there may come a time when disaster will befall us instead of triumph; and should this time come, the fault will rest primarily, not upon those whom the accident of events puts in supreme command at the moment, but upon those who have failed to prepare in advance.

There should be no cessation in the work of completing our navy. So far ingenuity has been wholly unable to devise a substitute for the great war craft whose hammering guns beat out the mastery of the high seas. It is unsafe and unwise not to provide this year for several additional battleships and heavy armored cruisers, with auxiliary and lighter craft in proportion; for the exact numbers and character I refer you to the report of the Secretary of the Navy. But there is something we need even more than additional ships, and this is additional officers and men. To provide battleships and cruisers and then lay them up, with the expectation of leaving them unmanned until they are needed in actual war, would be worse than folly; it would be a crime against the nation.

To send any warship against a competent enemy unless those aboard it have been trained by years of actual sea service, including incessant gunnery practice, would be to invite not merely disaster, but the bitterest shame and humiliation. Four thousand additional seamen and one thousand additional marines should be provided; and an increase in the officers should be provided by making a large addition to the classes at Annapolis.

There is one small matter which should be mentioned in connection with Annapolis. The pretentious and unmeaning title of “naval cadet” should be abolished; the title of “midshipman,” full of historic association, should be restored.

Even in time of peace a warship should be used until it wears out, for only so can it be kept fit to respond to any emergency. The officers and men alike should be kept as much as possible on blue water, for it is there only they can learn their duties as they should be learned. The big vessels should be manœuvred in squadrons containing not merely battleships, but the necessary proportion of cruisers and scouts. The torpedo boats should be handled by the younger officers in such manner as will best fit the latter to take responsibility and meet the emergencies of actual warfare.

Every detail ashore which can be performed by a civilian should be so performed, the officer being kept for his special duty in the sea service. Above all, gunnery practice should be unceasing. It is important to have our navy of adequate size, but it is even more important that ship for ship it should equal in efficiency any navy in the world. This is possible only with highly drilled crews and officers, and this in turn imperatively demands continuous and progressive instruction in target practice, ship handling, squadron tactics, and general discipline. Our ships must be assembled in squadrons actively cruising away from harbors and never long at anchor. The resulting wear upon engines and hulls must be endured; a battleship worn out in long training of officers and men is well paid for by the results, while, on the other hand, no matter in how excellent condition, it is useless if the crew be not expert.

We now have seventeen battleships appropriated for, of which nine are completed and have been commissioned for actual service. The remaining eight will be ready in from two to four years, but it will take at least that time to recruit and train the men to fight them. It is of vast concern that we have trained crews ready for the vessels by the time they are commissioned. Good ships and good guns are simply good weapons, and the best weapons are useless save in the hands of men who know how to fight with them. The men must be trained and drilled under a thorough and well-planned system of progressive instruction, while the recruiting must be carried on with still greater vigor. Every effort must be made to exalt the main function of the officer—the command of men. The leading graduates of the Naval

Academy should be assigned to the combatant branches, the line and marines.

Many of the essentials of success are already recognized by the General Board, which, as the central office of a growing staff, is moving steadily toward a proper war efficiency and a proper efficiency of the whole Navy, under the Secretary. This General Board, by fostering the creation of a general staff, is providing for the official and then the general recognition of our altered conditions as a nation and of the true meaning of a great war fleet, which meaning is, first, the best men, and, second, the best ships.

The Naval Militia forces are State organizations, and are trained for coast service, and in event of war they will constitute the inner line of defence. They should receive hearty encouragement from the General Government.

But in addition we should at once provide for a National Naval Reserve, organized and trained under the direction of the Navy Department, and subject to the call of the Chief Executive whenever war becomes imminent. It should be a real auxiliary to the naval seagoing peace establishment, and offer material to be drawn on at once for manning our ships in time of war. It should be composed of graduates of the Naval Academy, graduates of the Naval Militia, officers and crews of coast-line steamers, longshore schooners, fishing vessels, and steam yachts, together with the coast population about such centres as life-saving stations and light-houses.

The American people must either build and maintain an adequate navy or else make up their minds definitely to accept a secondary position in international affairs, not merely in political, but in commercial, matters. It has been well said that there is no surer way of courting national disaster than to be "opulent, aggressive, and unarmed."

It is not necessary to increase our army beyond its present size at this time. But it is necessary to keep it at the highest point of efficiency. The individual units who as officers and enlisted men compose this army, are, we have good reason to believe, at least as efficient as those of any other army in the entire world. It is our duty to see that their training is of a kind

to insure the highest possible expression of power to these units when acting in combination.

The conditions of modern war are such as to make an infinitely heavier demand than ever before upon the individual character and capacity of the officer and the enlisted man, and to make it far more difficult for men to act together with effect. At present the fighting must be done in extended order, which means that each man must act for himself and at the same time act in combination with others with whom he is no longer in the old-fashioned elbow-to-elbow touch. Under such conditions a few men of the highest excellence are worth more than many men without the special skill which is only found as the result of special training applied to men of exceptional physique and morale. But nowadays the most valuable fighting man and the most difficult to perfect is the rifleman who is also a skilful and daring rider.

The proportion of our cavalry regiments has wisely been increased. The American cavalryman, trained to manœuvre and fight with equal facility on foot and on horseback, is the best type of soldier for general purposes now to be found in the world. The ideal cavalryman of the present day is a man who can fight on foot as effectively as the best infantryman, and who is in addition unsurpassed in the care and management of his horse and in his ability to fight on horseback.

A general staff should be created. As for the present staff and supply departments, they should be filled by details from the line, the men so detailed returning after a while to their line duties. It is very undesirable to have the senior grades of the army composed of men who have come to fill the positions by the mere fact of seniority. A system should be adopted by which there shall be an elimination grade by grade of those who seem unfit to render the best service in the next grade. Justice to the veterans of the Civil War who are still in the army would seem to require that in the matter of retirements they be given by law the same privileges accorded to their comrades in the navy.

The process of elimination of the least fit should be conducted in a manner that would render it practically impossible to apply political or social pressure on behalf of any candidate, so that each man may be judged purely on his own merits. Pressure for the promotion of civil officials for

political reasons is bad enough, but it is tenfold worse where applied on behalf of officers of the army or navy. Every promotion and every detail under the War Department must be made solely with regard to the good of the service and to the capacity and merit of the man himself. No pressure, political, social, or personal, of any kind, will be permitted to exercise the least effect in any question of promotion or detail; and if there is reason to believe that such pressure is exercised at the instigation of the officer concerned, it will be held to militate against him. In our army we can not afford to have rewards or duties distributed save on the simple ground that those who by their own merits are entitled to the rewards get them, and that those who are peculiarly fit to do the duties are chosen to perform them.

Every effort should be made to bring the army to a constantly increasing state of efficiency. When on actual service no work save that directly in the line of such service should be required. The paper work in the army, as in the navy, should be greatly reduced. What is needed is proved power of command and capacity to work well in the field. Constant care is necessary to prevent dry rot in the transportation and commissary departments.

Our army is so small and so much scattered that it is very difficult to give the higher officers (as well as the lower officers and the enlisted men) a chance to practice manœuvres in mass and on a comparatively large scale. In time of need no amount of individual excellence would avail against the paralysis which would follow inability to work as a coherent whole, under skilful and daring leadership. The Congress should provide means whereby it will be possible to have field exercises by at least a division of regulars, and if possible also a division of national guardsmen, once a year. These exercises might take the form of field manœuvres; or, if on the Gulf Coast or the Pacific or Atlantic Seaboard, or in the region of the Great Lakes, the army corps when assembled could be marched from some inland point to some point on the water, there embarked, disembarked after a couple of days' journey at some other point, and again marched inland. Only by actual handling and providing for men in masses while they are marching, camping, embarking, and disembarking, will it be possible to train the higher officers to perform their duties well and smoothly.

A great debt is owing from the public to the men of the army and navy. They should be so treated as to enable them to reach the highest point of efficiency, so that they may be able to respond instantly to any demand

made upon them to sustain the interests of the nation and the honor of the flag. The individual American enlisted man is probably on the whole a more formidable fighting man than the regular of any other army. Every consideration should be shown him, and in return the highest standard of usefulness should be exacted from him. It is well worth while for the Congress to consider whether the pay of enlisted men upon second and subsequent enlistments should not be increased to correspond with the increased value of the veteran soldier.

Much good has already come from the act reorganizing the army, passed early in the present year. The three prime reforms, all of them of literally inestimable value, are, first, the substitution of four-year details from the line for permanent appointments in the so-called staff divisions; second, the establishment of a corps of artillery with a chief at the head; third, the establishment of a maximum and minimum limit for the army. It would be difficult to overestimate the improvement in the efficiency of our army which these three reforms are making, and have in part already effected.

The reorganization provided for by the act has been substantially accomplished. The improved conditions in the Philippines have enabled the War Department materially to reduce the military charge upon our revenue and to arrange the number of soldiers so as to bring this number much nearer to the minimum than to the maximum limit established by law. There is, however, need of supplementary legislation. Thorough military education must be provided, and in addition to the regulars the advantages of this education should be given to the officers of the National Guard and others in civil life who desire intelligently to fit themselves for possible military duty. The officers should be given the chance to perfect themselves by study in the higher branches of this art. At West Point the education should be of the kind most apt to turn out men who are good in actual field service; too much stress should not be laid on mathematics, nor should proficiency therein be held to establish the right of entry to a corps d'élite. The typical American officer of the best kind need not be a good mathematician; but he must be able to master himself, to control others, and to show boldness and fertility of resource in every emergency.

Action should be taken in reference to the militia and to the raising of volunteer forces. Our militia law is obsolete and worthless. The organization and armament of the National Guard of the several States,

which are treated as militia in the appropriations by the Congress, should be made identical with those provided for the regular forces. The obligations and duties of the Guard in time of war should be carefully defined, and a system established by law under which the method of procedure of raising volunteer forces should be prescribed in advance. It is utterly impossible in the excitement and haste of impending war to do this satisfactorily if the arrangements have not been made long beforehand. Provision should be made for utilizing in the first volunteer organizations called out the training of those citizens who have already had experience under arms, and especially for the selection in advance of the officers of any force which may be raised; for careful selection of the kind necessary is impossible after the outbreak of war.

That the army is not at all a mere instrument of destruction has been shown during the last three years. In the Philippines, Cuba, and Porto Rico it has proved itself a great constructive force, a most potent implement for the upbuilding of a peaceful civilization.

No other citizens deserve so well of the Republic as the veterans, the survivors of those who saved the Union. They did the one deed which if left undone would have meant that all else in our history went for nothing. But for their steadfast prowess in the greatest crisis of our history, all our annals would be meaningless, and our great experiment in popular freedom and self-government a gloomy failure. Moreover, they not only left us a united nation, but they left us also as a heritage the memory of the mighty deeds by which the Nation was kept united. We are now indeed one nation, one in fact as well as in name; we are united in our devotion to the flag which is the symbol of national greatness and unity; and the very completeness of our union enables us all, in every part of the country, to glory in the valor shown alike by the sons of the North and the sons of the South in the times that tried men's souls.

The men who in the last three years have done so well in the East and the West Indies and on the mainland of Asia have shown that this remembrance is not lost. In any serious crisis the United States must rely for the great mass of its fighting men upon the volunteer soldiery who do not make a

permanent profession of the military career; and whenever such a crisis arises the deathless memories of the Civil War will give to Americans the lift of lofty purpose which comes to those whose fathers have stood valiantly in the forefront of the battle.

The merit system of making appointments is in its essence as democratic and American as the common school system itself. It simply means that in clerical and other positions where the duties are entirely non-political, all applicants should have a fair field and no favor, each standing on his merits as he is able to show them by practical test. Written competitive examinations offer the only available means in many cases for applying this system. In other cases, as where laborers are employed, a system of registration undoubtedly can be widely extended. There are, of course, places where the written competitive examination can not be applied, and others where it offers by no means an ideal solution, but where under existing political conditions it is, though an imperfect means, yet the best present means of getting satisfactory results.

Wherever the conditions have permitted the application of the merit system in its fullest and widest sense, the gain to the government has been immense. The navy yards and postal service illustrate, probably better than any other branches of the government, the great gain in economy, efficiency, and honesty due to the enforcement of this principle.

I recommend the passage of a law which will extend the classified service to the District of Columbia, or will at least enable the President thus to extend it. In my judgment all laws providing for the temporary employment of clerks should hereafter contain a provision that they be selected under the Civil Service Law.

It is important to have this system obtain at home, but it is even more important to have it applied rigidly in our insular possessions. Not an office should be filled in the Philippines or Porto Rico with any regard to the man's partisan affiliations or services, with any regard to the political, social, or personal influence which he may have at his command; in short,

heed should be paid to absolutely nothing save the man's own character and capacity and the needs of the service.

The administration of these islands should be as wholly free from the suspicion of partisan politics as the administration of the army and navy. All that we ask from the public servant in the Philippines or Porto Rico is that he reflect honor on his country by the way in which he makes that country's rule a benefit to the peoples who have come under it. This is all that we should ask, and we can not afford to be content with less.

The merit system is simply one method of securing honest and efficient administration of the government; and in the long run the sole justification of any type of government lies in its proving itself both honest and efficient.

The consular service is now organized under the provisions of a law passed in 1856, which is entirely inadequate to existing conditions. The interest shown by so many commercial bodies throughout the country in the reorganization of the service is heartily commended to your attention. Several bills providing for a new consular service have in recent years been submitted to the Congress. They are based upon the just principle that appointments to the service should be made only after a practical test of the applicant's fitness, that promotions should be governed by trustworthiness, adaptability, and zeal in the performance of duty, and that the tenure of office should be unaffected by partisan considerations.

The guardianship and fostering of our rapidly expanding foreign commerce, the protection of American citizens resorting to foreign countries in lawful pursuit of their affairs, and the maintenance of the dignity of the Nation abroad, combine to make it essential that our consuls should be men of character, knowledge, and enterprise. It is true that the service is now, in the main, efficient, but a standard of excellence can not be permanently maintained until the principles set forth in the bills heretofore submitted to the Congress on this subject are enacted into law.

In my judgment the time has arrived when we should definitely make up our minds to recognize the Indian as an individual and not as a member of a tribe. The General Allotment Act is a mighty pulverizing engine to break up the tribal mass. It acts directly upon the family and the individual. Under its provisions some sixty thousand Indians have already become citizens of the United States. We should now break up the tribal funds, doing for them what allotment does for the tribal lands; that is, they should be divided into individual holdings. There will be a transition period during which the funds will in many cases have to be held in trust. This is the case also with the lands. A stop should be put upon the indiscriminate permission to Indians to lease their allotments. The effort should be steadily to make the Indian work like any other man on his own ground. The marriage laws of the Indians should be made the same as those of the whites.

In the schools the education should be elementary and largely industrial. The need of higher education among the Indians is very, very limited. On the reservations care should be taken to try to suit the teaching to the needs of the particular Indian. There is no use in attempting to induce agriculture in a country suited only for cattle raising, where the Indian should be made a stock grower. The ration system, which is merely the corral and the reservation system, is highly detrimental to the Indians. It promotes beggary, perpetuates pauperism, and stifles industry. It is an effectual barrier to progress. It must continue to a greater or less degree as long as tribes are herded on reservations and have everything in common. The Indian should be treated as an individual—like the white man. During the change of treatment inevitable hardships will occur; every effort should be made to minimize these hardships; but we should not because of them hesitate to make the change. There should be a continuous reduction in the number of agencies.

In dealing with the aboriginal races few things are more important than to preserve them from the terrible physical and moral degradation resulting from the liquor traffic. We are doing all we can to save our own Indian tribes from this evil. Wherever by international agreement this same end

can be attained as regards races where we do not possess exclusive control, every effort should be made to bring it about.

I bespeak the most cordial support from the Congress and the people for the St. Louis Exposition to Commemorate the One Hundredth Anniversary of the Louisiana Purchase. This purchase was the greatest instance of expansion in our history. It definitely decided that we were to become a great continental republic, by far the foremost power in the Western Hemisphere. It is one of three or four great landmarks in our history—the great turning-points in our development. It is eminently fitting that all our people should join with heartiest good will in commemorating it, and the citizens of St. Louis, of Missouri, of all the adjacent region, are entitled to every aid in making the celebration a noteworthy event in our annals. We earnestly hope that foreign nations will appreciate the deep interest our country takes in this Exposition, and our view of its importance from every standpoint, and that they will participate in securing its success. The National Government should be represented by a full and complete set of exhibits.

The people of Charleston, with great energy and civic spirit, are carrying on an Exposition which will continue throughout most of the present session of the Congress. I heartily commend this Exposition to the good will of the people. It deserves all the encouragement that can be given it. The managers of the Charleston Exposition have requested the Cabinet officers to place thereat the government exhibits which have been at Buffalo, promising to pay the necessary expenses. I have taken the responsibility of directing that this be done, for I feel that it is due to Charleston to help her in her praiseworthy effort. In my opinion the management should not be required to pay all these expenses. I earnestly recommend that the Congress appropriate at once the small sum necessary for this purpose.

The Pan-American Exposition at Buffalo has just closed. Both from the industrial and the artistic standpoint this Exposition has been in a high degree creditable and useful, not merely to Buffalo but to the United States. The terrible tragedy of the President's assassination interfered materially with its being a financial success. The Exposition was peculiarly in harmony with the trend of our public policy, because it represented an effort to bring into closer touch all the peoples of the Western Hemisphere, and give them an increasing sense of unity. Such an effort was a genuine service to the entire American public.

The advancement of the highest interests of national science and learning and the custody of objects of art and of the valuable results of scientific expeditions conducted by the United States have been committed to the Smithsonian Institution. In furtherance of its declared purpose—for the “increase and diffusion of knowledge among men”—the Congress has from time to time given it other important functions. Such trusts have been executed by the Institution with notable fidelity. There should be no halt in the work of the Institution, in accordance with the plans which its Secretary has presented, for the preservation of the vanishing races of great North American animals in the National Zoölogical Park. The urgent needs of the National Museum are recommended to the favorable consideration of the Congress.

Perhaps the most characteristic educational movement of the past fifty years is that which has created the modern public library and developed it into broad and active service. There are now over five thousand public libraries in the United States, the product of this period. In addition to accumulating material, they are also striving by organization, by improvement in method, and by co-operation, to give greater efficiency to

the material they hold, to make it more widely useful, and by avoidance of unnecessary duplication in process to reduce the cost of its administration.

In these efforts they naturally look for assistance to the Federal library, which, though still the Library of Congress, and so entitled, is the one national library of the United States. Already the largest single collection of books on the Western Hemisphere, and certain to increase more rapidly than any other through purchase, exchange, and the operation of the copyright law, this library has a unique opportunity to render to the libraries of this country—to American scholarship—service of the highest importance. It is housed in a building which is the largest and most magnificent yet erected for library uses. Resources are now being provided which will develop the collection properly, equip it with the apparatus and service necessary to its effective use, render its bibliographic work widely available, and enable it to become, not merely a centre of research, but the chief factor in great co-operative efforts for the diffusion of knowledge and the advancement of learning.

For the sake of good administration, sound economy, and the advancement of science, the Census Office as now constituted should be made a permanent government bureau. This would insure better, cheaper, and more satisfactory work, in the interest not only of our business but of statistic, economic, and social science.

The remarkable growth of the postal service is shown in the fact that its revenues have doubled and its expenditures have nearly doubled within twelve years. Its progressive development compels constantly increasing outlay, but in this period of business energy and prosperity its receipts grow so much faster than its expenses that the annual deficit has been steadily reduced from \$11,411,779 in 1897 to \$3,923,727 in 1901. Among recent postal advances the success of rural free-delivery wherever established has

been so marked, and actual experience has made its benefits so plain, that the demand for its extension is general and urgent.

It is just that the great agricultural population should share in the improvement of the service. The number of rural routes now in operation is 6,009, practically all established within three years, and there are 6,000 applications awaiting action. It is expected that the number in operation at the close of the current fiscal year will reach 8,600. The mail will then be daily carried to the doors of 5,700,000 of our people who have heretofore been dependent upon distant offices, and one-third of all that portion of the country which is adapted to it will be covered by this kind of service.

The full measure of postal progress which might be realized has long been hampered and obstructed by the heavy burden imposed on the Government through the intrenched and well-understood abuses which have grown up in connection with second-class mail matter. The extent of this burden appears when it is stated that while the second-class matter makes nearly three-fifths of the weight of all the mail, it paid for the last fiscal year only \$4,294,445 of the aggregate postal revenue of \$111,631,193. If the pound rate of postage, which produces the large loss thus entailed, and which was fixed by the Congress with the purpose of encouraging the dissemination of public information, were limited to the legitimate newspapers and periodicals actually contemplated by the law, no just exception could be taken. That expense would be the recognized and accepted cost of a liberal public policy deliberately adopted for a justifiable end. But much of the matter which enjoys the privileged rate is wholly outside of the intent of the law, and has secured admission only through an evasion of its requirements or through lax construction. The proportion of such wrongly included matter is estimated by postal experts to be one-half of the whole volume of second-class mail. If it be only one-third or one-quarter, the magnitude of the burden is apparent. The Post-Office Department has now undertaken to remove the abuses so far as is possible by a stricter application of the law; and it should be sustained in its effort.

Owing to the rapid growth of our power and our interests on the Pacific, whatever happens in China must be of the keenest national concern to us.

The general terms of the settlement of the questions growing out of the anti-foreign uprisings in China of 1900, having been formulated in a joint note addressed to China by the representatives of the injured powers in December last, were promptly accepted by the Chinese Government. After protracted conferences the plenipotentiaries of the several powers were able to sign a final protocol with the Chinese plenipotentiaries on the 7th of last September, setting forth the measures taken by China in compliance with the demands of the joint note, and expressing their satisfaction therewith. It will be laid before the Congress, with a report of the plenipotentiary on behalf of the United States, Mr. William Woodville Rockhill, to whom high praise is due for the tact, good judgment, and energy he has displayed in performing an exceptionally difficult and delicate task.

The agreement reached disposes in a manner satisfactory to the powers of the various grounds of complaint, and will contribute materially to better future relations between China and the powers. Reparation has been made by China for the murder of foreigners during the uprising and punishment has been inflicted on the officials, however high in rank, recognized as responsible for or having participated in the outbreak. Official examinations have been forbidden for a period of five years in all cities in which foreigners have been murdered or cruelly treated, and edicts have been issued making all officials directly responsible for the future safety of foreigners and for the suppression of violence against them.

Provisions have been made for ensuring the future safety of the foreign representatives in Peking by setting aside for their exclusive use a quarter of the city which the powers can make defensible and in which they can if necessary maintain permanent military guards; by dismantling the military works between the capital and the sea; and by allowing the temporary maintenance of foreign military posts along this line. An edict has been issued by the Emperor of China prohibiting for two years the importation of arms and ammunition into China. China has agreed to pay adequate indemnities to the states, societies, and individuals for the losses sustained by them and for the expenses of the military expeditions sent by the various powers to protect life and restore order.

Under the provisions of the joint note of December, 1900, China has agreed to revise the treaties of commerce and navigation and to take such

other steps for the purpose of facilitating foreign trade as the foreign powers may decide to be needed.

The Chinese Government has agreed to participate financially in the work of bettering the water approaches to Shanghai and to Tien-tsin, the centres of foreign trade in central and northern China, and an international conservancy board, in which the Chinese Government is largely represented, has been provided for the improvement of the Shanghai River and the control of its navigation. In the same line of commercial advantages a revision of the present tariff on imports has been assented to for the purpose of substituting specific for *ad valorem* duties, and an expert has been sent abroad on the part of the United States to assist in this work. A list of articles to remain free of duty, including flour, cereals, and rice, gold and silver coin and bullion, has also been agreed upon in the settlement.

During these troubles our Government has unswervingly advocated moderation, and has materially aided in bringing about an adjustment which tends to enhance the welfare of China and to lead to a more beneficial intercourse between the Empire and the modern world; while in the critical period of revolt and massacre we did our full share in safeguarding life and property, restoring order, and vindicating the national interest and honor. It behooves us to continue in these paths, doing what lies in our power to foster feelings of good will, and leaving no effort untried to work out the great policy of full and fair intercourse between China and the nations, on a footing of equal rights and advantages to all. We advocate the "open door" with all that it implies; not merely the procurement of enlarged commercial opportunities on the coasts, but access to the interior by the waterways with which China has been so extraordinarily favored. Only by bringing the people of China into peaceful and friendly community of trade with all the peoples of the earth can the work now auspiciously begun be carried to fruition. In the attainment of this purpose we necessarily claim parity of treatment, under the conventions, throughout the Empire for our trade and our citizens with those of all other powers.

We view with lively interest and keen hopes of beneficial results the proceedings of the Pan-American Congress, convoked at the invitation of

Mexico, and now sitting at the Mexican capital. The delegates of the United States are under the most liberal instructions to co-operate with their colleagues in all matters promising advantage to the great family of American commonwealths, as well in their relations among themselves as in their domestic advancement and in their intercourse with the world at large.

My predecessor communicated to the Congress the fact that the Weil and La Abra awards against Mexico have been adjudged by the highest courts of our country to have been obtained through fraud and perjury on the part of the claimants, and that in accordance with the acts of the Congress the money remaining in the hands of the Secretary of State on these awards has been returned to Mexico. A considerable portion of the money received from Mexico on these awards had been paid by this Government to the claimants before the decision of the courts was rendered. My judgment is that the Congress should return to Mexico an amount equal to the sums thus already paid to the claimants.

The death of Queen Victoria caused the people of the United States deep and heartfelt sorrow, to which the Government gave full expression. When President McKinley died, our nation in turn received from every quarter of the British Empire expressions of grief and sympathy no less sincere. The death of the Empress Dowager Frederick of Germany also aroused the genuine sympathy of the American people; and this sympathy was cordially reciprocated by Germany when the President was assassinated. Indeed, from every quarter of the civilized world we received, at the time of the President's death, assurances of such grief and regard as to touch the hearts of our people. In the midst of our affliction we reverently thank the Almighty that we are at peace with the nations of mankind; and we firmly intend that our policy shall be such as to continue unbroken these international relations of mutual respect and good will.

THEODORE ROOSEVELT.

WHITE HOUSE,
December 3, 1901.

MESSAGE OF THE PRESIDENT OF
THE UNITED STATES,
COMMUNICATED TO THE TWO
HOUSES OF CONGRESS AT THE
BEGINNING OF THE SECOND
SESSION OF THE FIFTY-SEVENTH
CONGRESS

To the Senate and House of Representatives:

We still continue in a period of unbounded prosperity. This prosperity is not the creature of law, but undoubtedly the laws under which we work have been instrumental in creating the conditions which made it possible, and by unwise legislation it would be easy enough to destroy it. There will undoubtedly be periods of depression. The wave will recede; but the tide will advance. This nation is seated on a continent flanked by two great oceans. It is composed of men the descendants of pioneers, or, in a sense, pioneers themselves; of men winnowed out from among the nations of the Old World by the energy, boldness, and love of adventure found in their own eager hearts. Such a nation, so placed, will surely wrest success from fortune.

As a people we have played a large part in the world, and we are bent upon making our future even larger than the past. In particular, the events of the last four years have definitely decided that, for woe or for weal, our place must be great among the nations. We may either fail greatly or succeed greatly; but we can not avoid the endeavor from which either great failure or great success must come. Even if we would, we can not play a small part. If we should try, all that would follow would be that we should play a large part ignobly and shamefully.

But our people, the sons of the men of the Civil War, the sons of the men who had iron in their blood, rejoice in the present and face the future high of heart and resolute of will. Ours is not the creed of the weakling and the coward; ours is the gospel of hope and of triumphant endeavor. We do not shrink from the struggle before us. There are many problems for us to face at the outset of the twentieth century—grave problems abroad and still graver at home; but we know that we can solve them and solve them well, provided only that we bring to the solution the qualities of head and heart which were shown by the men who, in the days of Washington, founded this government, and, in the days of Lincoln, preserved it.

No country has ever occupied a higher plane of material well-being than ours at the present moment. This well-being is due to no sudden or accidental causes, but to the play of the economic forces in this country for over a century; to our laws, our sustained and continuous policies; above all, to the high individual average of our citizenship. Great fortunes have been won by those who have taken the lead in this phenomenal industrial development, and most of these fortunes have been won, not by doing evil, but as an incident to action which has benefited the community as a whole. Never before has material well-being been so widely diffused among our people. Great fortunes have been accumulated, and yet in the aggregate these fortunes are small indeed when compared to the wealth of the people as a whole. The plain people are better off than they have ever been before. The insurance companies, which are practically mutual benefit societies—especially helpful to men of moderate means—represent accumulations of capital which are among the largest in this country. There are more deposits in the savings banks, more owners of farms, more well-paid wage-workers in this country now than ever before in our history. Of course, when the conditions have favored the growth of so much that was good, they have also favored somewhat the growth of what was evil. It is eminently necessary that we should endeavor to cut out this evil, but let us keep a due sense of proportion; let us not in fixing our gaze upon the lesser evil forget the greater good. The evils are real and some of them are menacing, but they are the outgrowth, not of misery or decadence, but of prosperity—of the progress of our gigantic industrial development. This industrial development must not be checked, but side by side with it should go such progressive regulation as will diminish the evils. We should fail in our duty if we did not try to remedy the evils, but we shall succeed only if we

proceed patiently, with practical common-sense as well as resolution, separating the good from the bad and holding on to the former while endeavoring to get rid of the latter.

In my Message to the present Congress at its first session I discussed at length the question of the regulation of those big corporations commonly doing an interstate business, often with some tendency to monopoly, which are popularly known as trusts. The experience of the past year has emphasized, in my opinion, the desirability of the steps I then proposed. A fundamental requisite of social efficiency is a high standard of individual energy and excellence; but this is in no wise inconsistent with power to act in combination for aims which can not so well be achieved by the individual acting alone. A fundamental base of civilization is the inviolability of property; but this is in no wise inconsistent with the right of society to regulate the exercise of the artificial powers which it confers upon the owners of property, under the name of corporate franchises, in such a way as to prevent the misuse of these powers. Corporations, and especially combinations of corporations, should be managed under public regulation. Experience has shown that under our system of government the necessary supervision can not be obtained by State action. It must therefore be achieved by national action. Our aim is not to do away with corporations; on the contrary, these big aggregations are an inevitable development of modern industrialism, and the effort to destroy them would be futile unless accomplished in ways that would work the utmost mischief to the entire body politic. We can do nothing of good in the way of regulating and supervising these corporations until we fix clearly in our minds that we are not attacking the corporations, but endeavoring to do away with any evil in them. We are not hostile to them; we are merely determined that they shall be so handled as to subserve the public good. We draw the line against misconduct, not against wealth. The capitalist who, alone or in conjunction with his fellows, performs some great industrial feat by which he wins money is a welldoer, not a wrongdoer, provided only he works in proper and legitimate lines. We wish to favor such a man when he does well. We wish to supervise and control his actions only to prevent him

from doing ill. Publicity can do no harm to the honest corporation; and we need not be overtender about sparing the dishonest corporation.

In curbing and regulating the combinations of capital which are or may become injurious to the public we must be careful not to stop the great enterprises which have legitimately reduced the cost of production, not to abandon the place which our country has won in the leadership of the international industrial world, not to strike down wealth with the result of closing factories and mines, of turning the wage-worker idle in the streets and leaving the farmer without a market for what he grows. Insistence upon the impossible means delay in achieving the possible, exactly as, on the other hand, the stubborn defence alike of what is good and what is bad in the existing system, the resolute effort to obstruct any attempt at betterment, betrays blindness to the historic truth that wise evolution is the sure safeguard against revolution.

No more important subject can come before the Congress than this of the regulation of interstate business. This country can not afford to sit supine on the plea that under our peculiar system of government we are helpless in the presence of the new conditions, and unable to grapple with them or to cut out whatever of evil has arisen in connection with them. The power of the Congress to regulate interstate commerce is an absolute and unqualified grant, and without limitations other than those prescribed by the Constitution. The Congress has constituted authority to make all laws necessary and proper for executing this power, and I am satisfied that this power has not been exhausted by any legislation now on the statute books. It is evident, therefore, that evils restrictive of commercial freedom and entailing restraint upon national commerce fall within the regulative power of the Congress, and that a wise and reasonable law would be a necessary and proper exercise of Congressional authority to the end that such evils should be eradicated.

I believe that monopolies, unjust discriminations, which prevent or cripple competition, fraudulent overcapitalization, and other evils in trust organizations and practices which injuriously affect interstate trade can be prevented under the power of the Congress to "regulate commerce with foreign nations and among the several States" through regulations and requirements operating directly upon such commerce, the instrumentalities thereof, and those engaged therein.

I earnestly recommend this subject to the consideration of the Congress with a view to the passage of a law reasonable in its provisions and effective in its operations, upon which the questions can be finally adjudicated that now raise doubts as to the necessity of constitutional amendment. If it prove impossible to accomplish the purposes above set forth by such a law, then, assuredly, we should not shrink from amending the Constitution so as to secure beyond peradventure the power sought.

The Congress has not heretofore made any appropriation for the better enforcement of the anti-trust law as it now stands. Very much has been done by the Department of Justice in securing the enforcement of this law, but much more could be done if the Congress would make a special appropriation for this purpose, to be expended under the direction of the Attorney-General.

One proposition advocated has been the reduction of the tariff as a means of reaching the evils of the trusts which fall within the category I have described. Not merely would this be wholly ineffective, but the diversion of our efforts in such a direction would mean the abandonment of all intelligent attempt to do away with these evils. Many of the largest corporations, many of those which should certainly be included in any proper scheme of regulation, would not be affected in the slightest degree by a change in the tariff, save as such change interfered with the general prosperity of the country. The only relation of the tariff to big corporations as a whole is that the tariff makes manufactures profitable, and the tariff remedy proposed would be in effect simply to make manufactures unprofitable. To remove the tariff as a punitive measure directed against trusts would inevitably result in ruin to the weaker competitors who are struggling against them. Our aim should be not by unwise tariff changes to give foreign products the advantage over domestic products, but by proper regulation to give domestic competition a fair chance; and this end can not be reached by any tariff changes which would affect unfavorably all domestic competitors, good and bad alike. The question of regulation of the trusts stands apart from the question of tariff revision.

Stability of economic policy must always be the prime economic need of this country. This stability should not be fossilization. The country has acquiesced in the wisdom of the protective tariff principle. It is exceedingly undesirable that this system should be destroyed or that there should be

violent and radical changes therein. Our past experience shows that great prosperity in this country has always come under a protective tariff and that the country can not prosper under fitful tariff changes at short intervals. Moreover, if the tariff laws as a whole work well, and if business has prospered under them and is prospering, it is better to endure for a time slight inconveniences and inequalities in some schedules than to upset business by too quick and too radical changes. It is most earnestly to be wished that we could treat the tariff from the standpoint solely of our business needs. It is, perhaps, too much to hope that partisanship may be entirely excluded from consideration of the subject, but at least it can be made secondary to the business interests of the country—that is, to the interests of our people as a whole. Unquestionably these business interests will best be served if together with fixity of principle as regards the tariff we combine a system which will permit us from time to time to make the necessary reapplication of the principle to the shifting national needs. We must take scrupulous care that the reapplication shall be made in such a way that it will not amount to a dislocation of our system, the mere threat of which (not to speak of the performance) would produce paralysis in the business energies of the community. The first consideration in making these changes would, of course, be to preserve the principle which underlies our whole tariff system—that is, the principle of putting American business interests at least on a full equality with interests abroad, and of always allowing a sufficient rate of duty to more than cover the difference between the labor cost here and abroad. The well-being of the wage-worker, like the well-being of the tiller of the soil, should be treated as an essential in shaping our whole economic policy. There must never be any change which will jeopardize the standard of comfort, the standard of wages of the American wage-worker.

One way in which the readjustment sought can be reached is by reciprocity treaties. It is greatly to be desired that such treaties may be adopted. They can be used to widen our markets and to give a greater field for the activities of our producers on the one hand, and on the other hand to secure in practical shape the lowering of duties when they are no longer needed for protection among our own people, or when the minimum of damage done may be disregarded for the sake of the maximum of good accomplished. If it prove impossible to ratify the pending treaties, and if there seem to be no warrant for the endeavor to execute others, or to amend

the pending treaties so that they can be ratified, then the same end—to secure reciprocity—should be met by direct legislation.

Wherever the tariff conditions are such that a needed change can not with advantage be made by the application of the reciprocity idea, then it can be made outright by a lowering of duties on a given product. If possible, such change should be made only after the fullest consideration by practical experts, who should approach the subject from a business standpoint, having in view both the particular interests affected and the commercial well-being of the people as a whole. The machinery for providing such careful investigation can readily be supplied. The executive department has already at its disposal methods of collecting facts and figures; and if the Congress desires additional consideration to that which will be given the subject by its own committees, then a commission of business experts can be appointed whose duty it should be to recommend action by the Congress after a deliberate and scientific examination of the various schedules as they are affected by the changed and changing conditions. The unhurried and unbiased report of this commission would show what changes should be made in the various schedules, and how far these changes could go without also changing the great prosperity which this country is now enjoying, or upsetting its fixed economic policy.

The cases in which the tariff can produce a monopoly are so few as to constitute an inconsiderable factor in the question; but of course if in any case it be found that a given rate of duty does promote a monopoly which works ill, no protectionist would object to such reduction of the duty as would equalize competition.

In my judgment, the tariff on anthracite coal should be removed, and anthracite put actually, where it now is nominally, on the free list. This would have no effect at all save in crises; but in crises it might be of service to the people.

Interest rates are a potent factor in business activity, and in order that these rates may be equalized to meet the varying needs of the seasons and of widely separated communities, and to prevent the recurrence of financial

stringencies which injuriously affect legitimate business, it is necessary that there should be an element of elasticity in our monetary system. Banks are the natural servants of commerce, and upon them should be placed, as far as practicable, the burden of furnishing and maintaining a circulation adequate to supply the needs of our diversified industries and of our domestic and foreign commerce; and the issue of this should be so regulated that a sufficient supply should be always available for the business interests of the country.

It would be both unwise and unnecessary at this time to attempt to reconstruct our financial system, which has been the growth of a century; but some additional legislation is, I think, desirable. The mere outline of any plan sufficiently comprehensive to meet these requirements would transgress the appropriate limits of this communication. It is suggested, however, that all future legislation on the subject should be with the view of encouraging the use of such instrumentalities as will automatically supply every legitimate demand of productive industries and of commerce, not only in the amount, but in the character of circulation; and of making all kinds of money interchangeable, and, at the will of the holder, convertible into the established gold standard.

I again call your attention to the need of passing a proper immigration law, covering the points outlined in my Message to you at the first session of the present Congress; substantially such a bill has already passed the House.

How to secure fair treatment alike for labor and for capital, how to hold in check the unscrupulous man, whether employer or employee, without weakening individual initiative, without hampering and cramping the industrial development of the country, is a problem fraught with great difficulties and one which it is of the highest importance to solve on lines of sanity and far-sighted common-sense as well as of devotion to the right.

This is an era of federation and combination. Exactly as business men find they must often work through corporations, and as it is a constant tendency of these corporations to grow larger, so it is often necessary for laboring men to work in federations, and these have become important factors of modern industrial life. Both kinds of federation, capitalistic and labor, can do much good, and as a necessary corollary they can both do evil. Opposition to each kind of organization should take the form of opposition to whatever is bad in the conduct of any given corporation or union—not of attacks upon corporations as such nor upon unions as such; for some of the most far-reaching beneficent work for our people has been accomplished through both corporations and unions. Each must refrain from arbitrary or tyrannous interference with the rights of others. Organized capital and organized labor alike should remember that in the long run the interest of each must be brought into harmony with the interest of the general public; and the conduct of each must conform to the fundamental rules of obedience to the law, of individual freedom, and of justice and fair dealing toward all. Each should remember that in addition to power it must strive after the realization of healthy, lofty, and generous ideals. Every employer, every wage-worker, must be guaranteed his liberty and his right to do as he likes with his property or his labor so long as he does not infringe upon the rights of others. It is of the highest importance that employer and employee alike should endeavor to appreciate each the viewpoint of the other and the sure disaster that will come upon both in the long run if either grows to take as habitual an attitude of sour hostility and distrust toward the other. Few people deserve better of the country than those representatives both of capital and labor—and there are many such—who work continually to bring about a good understanding of this kind, based upon wisdom and upon broad and kindly sympathy between employers and employed. Above all, we need to remember that any kind of class animosity in the political world is, if possible, even more wicked, even more destructive to national welfare, than sectional, race, or religious animosity. We can get good government only upon condition that we keep true to the principles upon which this Nation was founded, and judge each man not as a part of a class, but upon his individual merits. All that we have a right to ask of any man, rich or poor, whatever his creed, his occupation, his birthplace, or his residence, is that he shall act well and honorably by his neighbor and by his country. We are neither for the rich man as such nor for the poor man as

such; we are for the upright man, rich or poor. So far as the constitutional powers of the National Government touch these matters of general and vital moment to the Nation, they should be exercised in conformity with the principles above set forth.

It is earnestly hoped that a secretary of commerce may be created, with a seat in the Cabinet. The rapid multiplication of questions affecting labor and capital, the growth and complexity of the organizations through which both labor and capital now find expression, the steady tendency toward the employment of capital in huge corporations, and the wonderful strides of this country toward leadership in the international business world justify an urgent demand for the creation of such a position. Substantially all the leading commercial bodies in this country have united in requesting its creation. It is desirable that some such measure as that which has already passed the Senate be enacted into law. The creation of such a department would in itself be an advance toward dealing with and exercising supervision over the whole subject of the great corporations doing an interstate business; and with this end in view, the Congress should endow the department with large powers, which could be increased as experience might show the need.

I hope soon to submit to the Senate a reciprocity treaty with Cuba. On May 20 last the United States kept its promise to the island by formally vacating Cuban soil and turning Cuba over to those whom her own people had chosen as the first officials of the new republic.

Cuba lies at our doors, and whatever affects her for good or for ill affects us also. So much have our people felt this that in the Platt Amendment we definitely took the ground that Cuba must hereafter have closer political relations with us than with any other power. Thus in a sense Cuba has become a part of our international political system. This makes it necessary that in return she should be given some of the benefits of becoming part of

our economic system. It is, from our own standpoint, a shortsighted and mischievous policy to fail to recognize this need. Moreover, it is unworthy of a mighty and generous nation, itself the greatest and most successful republic in history, to refuse to stretch out a helping hand to a young and weak sister republic just entering upon its career of independence. We should always fearlessly insist upon our rights in the face of the strong, and we should with ungrudging hand do our generous duty by the weak. I urge the adoption of reciprocity with Cuba not only because it is eminently for our own interests to control the Cuban market and by every means to foster our supremacy in the tropical lands and waters south of us, but also because we, of the giant republic of the north, should make all our sister nations of the American Continent feel that whenever they will permit it we desire to show ourselves disinterestedly and effectively their friend.

A convention with Great Britain has been concluded, which will be at once laid before the Senate for ratification, providing for reciprocal trade arrangements between the United States and Newfoundland on substantially the lines of the convention formerly negotiated by the Secretary of State, Mr. Blaine. I believe reciprocal trade relations will be greatly to the advantage of both countries.

As civilization grows warfare becomes less and less the normal condition of foreign relations. The last century has seen a marked diminution of wars between civilized powers; wars with uncivilized powers are largely mere matters of international police duty, essential for the welfare of the world. Wherever possible, arbitration or some similar method should be employed in lieu of war to settle difficulties between civilized nations, although as yet the world has not progressed sufficiently to render it possible, or necessarily desirable, to invoke arbitration in every case. The formation of the international tribunal which sits at The Hague is an event of good omen from which great consequences for the welfare of all mankind may flow. It

is far better, where possible, to invoke such a permanent tribunal than to create special arbitrators for a given purpose.

It is a matter of sincere congratulation to our country that the United States and Mexico should have been the first to use the good offices of The Hague Court. This was done last summer with most satisfactory results in the case of a claim at issue between us and our sister republic. It is earnestly to be hoped that this first case will serve as a precedent for others, in which not only the United States but foreign nations may take advantage of the machinery already in existence at The Hague.

I commend to the favorable consideration of the Congress the Hawaiian fire claims, which were the subject of careful investigation during the last session.

The Congress has wisely provided that we shall build at once an Isthmian Canal, if possible at Panama. The Attorney-General reports that we can undoubtedly acquire good title from the French Panama Canal Company. Negotiations are now pending with Colombia to secure her assent to our building the canal. This canal will be one of the greatest engineering feats of the twentieth century; a greater engineering feat than has yet been accomplished during the history of mankind. The work should be carried out as a continuing policy without regard to change of Administration; and it should be begun under circumstances which will make it a matter of pride for all Administrations to continue the policy.

The canal will be of great benefit to America, and of importance to all the world. It will be of advantage to us industrially and also as improving our military position. It will be of advantage to the countries of tropical America. It is earnestly to be hoped that all of these countries will do as some of them have already done with signal success, and will invite to their shores commerce and improve their material conditions by recognizing that stability and order are the prerequisites of successful development. No

independent nation in America need have the slightest fear of aggression from the United States. It behooves each one to maintain order within its own borders and to discharge its just obligations to foreigners. When this is done they can rest assured that, be they strong or weak, they have nothing to dread from outside interference. More and more the increasing interdependence and complexity of international, political, and economic relations render it incumbent on all civilized and orderly powers to insist on the proper policing of the world.

During the fall of 1901 a communication was addressed to the Secretary of State, asking whether permission would be granted by the President to a corporation to lay a cable from a point on the California coast to the Philippine Islands by way of Hawaii. A statement of conditions or terms upon which such corporation would undertake to lay and operate a cable was volunteered.

Inasmuch as the Congress was shortly to convene, and Pacific cable legislation had been the subject of consideration by the Congress for several years, it seemed to me wise to defer action upon the application until the Congress had first an opportunity to act. The Congress adjourned without taking any action, leaving the matter in exactly the same condition in which it stood when the Congress convened.

Meanwhile it appears that the Commercial Pacific Cable Company had promptly proceeded with preparations for laying its cable. It also made application to the President for access to and use of soundings taken by the U. S. S. *Nero*, for the purpose of discovering a practicable route for a trans-Pacific cable, the company urging that with access to these soundings it could complete its cable much sooner than if it were required to take soundings upon its own account. Pending consideration of this subject, it appeared important and desirable to attach certain conditions to the permission to examine and use the soundings, if it should be granted.

In consequence of this solicitation of the cable company, certain conditions were formulated, upon which the President was willing to allow access to these soundings and to consent to the landing and laying of the cable, subject to any alterations or additions thereto imposed by the Congress. This was deemed proper, especially as it was clear that a cable connection of some kind with China, a foreign country, was a part of the

company's plan. This course was, moreover, in accordance with a line of precedents, including President Grant's action in the case of the first French cable, explained to the Congress in his Annual Message of December, 1875, and the instance occurring in 1879 of the second French cable from Brest to St. Pierre, with a branch to Cape Cod.

These conditions prescribed, among other things, a maximum rate for commercial messages and that the company should construct a line from the Philippine Islands to China, there being at present, as is well known, a British line from Manila to Hongkong.

The representatives of the cable company kept these conditions long under consideration, continuing, in the meantime, to prepare for laying the cable. They have, however, at length acceded to them, and an all-American line between our Pacific coast and the Chinese Empire, by way of Honolulu and the Philippine Islands, is thus provided for, and is expected within a few months to be ready for business.

Among the conditions is one reserving the power of the Congress to modify or repeal any or all of them. A copy of the conditions is herewith transmitted.

Of Porto Rico it is only necessary to say that the prosperity of the island and the wisdom with which it has been governed have been such as to make it serve as an example of all that is best in insular administration.

On July 4 last, on the one hundred and twenty-sixth anniversary of the declaration of our independence, peace and amnesty were promulgated in the Philippine Islands. Some trouble has since from time to time threatened with the Mohammedan Moros, but with the late insurrectionary Filipinos the war has entirely ceased. Civil government has now been introduced. Not only does each Filipino enjoy such rights to life, liberty, and the pursuit of happiness as he has never before known during the recorded history of the

islands, but the people taken as a whole now enjoy a measure of self-government greater than that granted to any other Orientals by any foreign power and greater than that enjoyed by any other Orientals under their own governments, save the Japanese alone. We have not gone too far in granting these rights of liberty and self-government; but we have certainly gone to the limit that in the interests of the Philippine people themselves it was wise or just to go. To hurry matters, to go faster than we are now going, would entail calamity on the people of the islands. No policy ever entered into by the American people has vindicated itself in more signal manner than the policy of holding the Philippines. The triumph of our arms, above all the triumph of our laws and principles, has come sooner than we had any right to expect. Too much praise can not be given to the army for what it has done in the Philippines both in warfare and from an administrative standpoint in preparing the way for civil government; and similar credit belongs to the civil authorities for the way in which they have planted the seeds of self-government in the ground thus made ready for them. The courage, the unflinching endurance, the high soldierly efficiency, and the general kind-heartedness and humanity of our troops have been strikingly manifested. There now remain only some fifteen thousand troops in the islands. All told, over one hundred thousand have been sent there. Of course, there have been individual instances of wrongdoing among them. They warred under fearful difficulties of climate and surroundings; and under the strain of the terrible provocations which they continually received from their foes, occasional instances of cruel retaliation occurred. Every effort has been made to prevent such cruelties, and finally these efforts have been completely successful. Every effort has also been made to detect and punish the wrongdoers. After making all allowance for these misdeeds, it remains true that few indeed have been the instances in which war has been waged by a civilized power against semi-civilized or barbarous forces where there has been so little wrongdoing by the victors as in the Philippine Islands. On the other hand, the amount of difficult, important, and beneficent work which has been done is wellnigh incalculable.

Taking the work of the army and the civil authorities together, it may be questioned whether anywhere else in modern times the world has seen a better example of real constructive statesmanship than our people have given in the Philippine Islands. High praise should also be given those Filipinos, in the aggregate very numerous, who have accepted the new

conditions and joined with our representatives to work with hearty goodwill for the welfare of the islands.

The army has been reduced to the minimum allowed by law. It is very small for the size of the nation, and most certainly should be kept at the highest point of efficiency. The senior officers are given scant chance under ordinary conditions to exercise commands commensurate with their rank, under circumstances which would fit them to do their duty in the time of actual war. A system of manœuvring our army in bodies of some little size has been begun and should be steadily continued. Without such manœuvres it is folly to expect that in the event of hostilities with any serious foe even a small army corps could be handled to advantage. Both our officers and enlisted men are such that we can take hearty pride in them. No better material can be found. But they must be thoroughly trained, both as individuals and in the mass. The marksmanship of the men must receive special attention. In the circumstances of modern warfare the man must act far more on his own individual responsibility than ever before, and the high individual efficiency of the unit is of the utmost importance. Formerly this unit was the regiment; it is now not the regiment, not even the troop or company; it is the individual soldier. Every effort must be made to develop every workmanlike and soldierly quality in both the officer and the enlisted man.

I urgently call your attention to the need of passing a bill providing for a general staff and for the reorganization of the supply departments on the lines of the bill proposed by the Secretary of War last year. When the young officers enter the army from West Point they probably stand above their compeers in any other military service. Every effort should be made, by training, by reward of merit, by scrutiny into their careers and capacity, to keep them of the same high relative excellence throughout their careers.

The measure providing for the reorganization of the militia system and for securing the highest efficiency in the National Guard, which has already passed the House, should receive prompt attention and action. It is of great importance that the relation of the National Guard to the militia and volunteer forces of the United States should be defined, and that in place of our present obsolete laws a practical and efficient system should be adopted.

Provision should be made to enable the Secretary of War to keep cavalry and artillery horses, worn-out in long performance of duty. Such horses fetch but a trifle when sold; and rather than turn them out to the misery awaiting them when thus disposed of, it would be better to employ them at light work around the posts, and when necessary to put them painlessly to death.

For the first time in our history naval manœuvres on a large scale are being held under the immediate command of the admiral of the navy. Constantly increasing attention is being paid to the gunnery of the navy, but it is yet far from what it should be. I earnestly urge that the increase asked for by the Secretary of the Navy in the appropriation for improving the marksmanship be granted. In battle the only shots that count are the shots that hit. It is necessary to provide ample funds for practice with the great guns in time of peace. These funds must provide not only for the purchase of projectiles, but for allowances for prizes to encourage the gun crews, and especially the gun pointers, and for perfecting an intelligent system under which alone it is possible to get good practice.

There should be no halt in the work of building up the navy, providing every year additional fighting craft. We are a very rich country, vast in extent of territory and great in population; a country, moreover, which has an army diminutive indeed when compared with that of any other first-class power. We have deliberately made our own certain foreign policies which demand the possession of a first-class navy. The Isthmian Canal will greatly increase the efficiency of our navy if the navy is of sufficient size; but if we have an inadequate navy, then the building of the canal would be merely giving a hostage to any power of superior strength. The Monroe Doctrine should be treated as the cardinal feature of American foreign policy; but it would be worse than idle to assert it unless we intended to back it up, and it can be backed up only by a thoroughly good navy. A good navy is not a provocative of war. It is the surest guaranty of peace.

Each individual unit of our navy should be the most efficient of its kind as regards both material and personnel that is to be found in the world. I call your special attention to the need of providing for the manning of the ships.

Serious trouble threatens us if we can not do better than we are now doing as regards securing the services of a sufficient number of the highest type of sailormen, of sea mechanics. The veteran seamen of our warships are of as high a type as can be found in any navy which rides the waters of the world; they are unsurpassed in daring, in resolution, in readiness, in thorough knowledge of their profession. They deserve every consideration that can be shown them. But there are not enough of them. It is no more possible to improvise a crew than it is possible to improvise a warship. To build the finest ship, with the deadliest battery, and to send it afloat with a raw crew, no matter how brave they were individually, would be to insure disaster if a foe of average capacity were encountered. Neither ships nor men can be improvised when war has begun.

We need a thousand additional officers in order to properly man the ships now provided for and under construction. The classes at the naval school at Annapolis should be greatly enlarged. At the same time that we thus add the officers where we need them, we should facilitate the retirement of those at the head of the list whose usefulness has become impaired. Promotion must be fostered if the service is to be kept efficient.

The lamentable scarcity of officers, and the large number of recruits and of unskilled men necessarily put aboard the new vessels as they have been commissioned, has thrown upon our officers, and especially on the lieutenants and junior grades, unusual labor and fatigue and has gravely strained their powers of endurance. Nor is there sign of any immediate let-up in this strain. It must continue for some time longer, until more officers are graduated from Annapolis, and until the recruits become trained and skilful in their duties. In these difficulties incident upon the development of our war fleet the conduct of all our officers has been creditable to the service, and the lieutenants and junior grades in particular have displayed an ability and a steadfast cheerfulness which entitles them to the ungrudging thanks of all who realize the disheartening trials and fatigues to which they are of necessity subjected.

There is not a cloud on the horizon at present. There seems not the slightest chance of trouble with a foreign power. We most earnestly hope that this state of things may continue; and the way to insure its continuance is to provide for a thoroughly efficient navy. The refusal to maintain such a navy would invite trouble, and if trouble came would ensure disaster.

Fatuous self-complacency or vanity, or short-sightedness in refusing to prepare for danger, is both foolish and wicked in such a nation as ours; and past experience has shown that such fatuity in refusing to recognize or prepare for any crisis in advance is usually succeeded by a mad panic of hysterical fear once the crisis has actually arrived.

The striking increase in the revenues of the Post-Office Department shows clearly the prosperity of our people and the increasing activity of the business of the country.

The receipts of the Post-Office Department for the fiscal year ending June 30 last amounted to \$121,848,047.26, an increase of \$10,216,853.87 over the preceding year, the largest increase known in the history of the postal service. The magnitude of this increase will best appear from the fact that the entire postal receipts for the year 1860 amounted to but \$8,518,067.

Rural free-delivery service is no longer in the experimental stage; it has become a fixed policy. The results following its introduction have fully justified the Congress in the large appropriations made for its establishment and extension. The average yearly increase in post-office receipts in the rural districts of the country is about two per cent. We are now able, by actual results, to show that where rural free-delivery service has been established to such an extent as to enable us to make comparisons the yearly increase has been upward of ten per cent.

On November 1, 1902, 11,650 rural free-delivery routes had been established and were in operation, covering about one-third of the territory of the United States available for rural free-delivery service. There are now awaiting the action of the Department petitions and applications for the establishment of 10,748 additional routes. This shows conclusively the want which the establishment of the service has met and the need of further extending it as rapidly as possible. It is justified both by the financial results and by the practical benefits to our rural population; it brings the men who live on the soil into close relations with the active business world; it keeps the farmer in daily touch with the markets; it is a potential educational force; it enhances the value of farm property, makes farm life far pleasanter

and less isolated, and will do much to check the undesirable current from country to city.

It is to be hoped that the Congress will make liberal appropriations for the continuance of the service already established and for its further extension.

Few subjects of more importance have been taken up by the Congress in recent years than the inauguration of the system of nationally-aided irrigation for the arid regions of the far West. A good beginning therein has been made. Now that this policy of national irrigation has been adopted, the need of thorough and scientific forest protection will grow more rapidly than ever throughout the public-land States.

Legislation should be provided for the protection of the game, and the wild creatures generally, on the forest reserves. The senseless slaughter of game, which can by judicious protection be permanently preserved on our national reserves for the people as a whole, should be stopped at once. It is, for instance, a serious count against our national good sense to permit the present practice of butchering off such a stately and beautiful creature as the elk for its antlers or tusks.

So far as they are available for agriculture, and to whatever extent they may be reclaimed under the national irrigation law, the remaining public lands should be held rigidly for the home builder, the settler who lives on his land, and for no one else. In their actual use the desert-land law, the timber and stone law, and the commutation clause of the homestead law have been so perverted from the intention with which they were enacted as to permit the acquisition of large areas of the public domain for other than actual settlers and the consequent prevention of settlement. Moreover, the approaching exhaustion of the public ranges has of late led to much discussion as to the best manner of using these public lands in the West which are suitable chiefly or only for grazing. The sound and steady development of the West depends upon the building up of homes therein. Much of our prosperity as a nation has been due to the operation of the homestead law. On the other hand, we should recognize the fact that in the grazing region the man who corresponds to the homesteader may be unable to settle permanently if only allowed to use the same amount of pasture land that his brother, the homesteader, is allowed to use of arable land. One

hundred and sixty acres of fairly rich and well-watered soil, or a much smaller amount of irrigated land, may keep a family in plenty, whereas no one could get a living from one hundred and sixty acres of dry pasture land capable of supporting at the outside only one head of cattle to every ten acres. In the past great tracts of the public domain have been fenced in by persons having no title thereto, in direct defiance of the law forbidding the maintenance or construction of any such unlawful inclosure of public land. For various reasons there has been little interference with such inclosures in the past, but ample notice has now been given the trespassers, and all the resources at the command of the Government will hereafter be used to put a stop to such trespassing.

In view of the capital importance of these matters, I commend them to the earnest consideration of the Congress, and if the Congress finds difficulty in dealing with them from lack of thorough knowledge of the subject, I recommend that provision be made for a commission of experts specially to investigate and report upon the complicated questions involved.

I especially urge upon the Congress the need of wise legislation for Alaska. It is not to our credit as a nation that Alaska, which has been ours for thirty-five years, should still have as poor a system of laws as is the case. No country has a more valuable possession—in mineral wealth, in fisheries, furs, forests, and also in land available for certain kinds of farming and stock-growing. It is a territory of great size and varied resources, well fitted to support a large permanent population. Alaska needs a good land law and such provisions for homesteads and pre-emptions as will encourage permanent settlement. We should shape legislation with a view not to the exploiting and abandoning of the territory, but to the building up of homes therein. The land laws should be liberal in type, so as to hold out inducements to the actual settler whom we most desire to see take possession of the country. The forests of Alaska should be protected, and, as a secondary but still important matter, the game also, and at the same time it is imperative that the settlers should be allowed to cut timber, under proper regulations, for their own use. Laws should be enacted to protect the Alaskan salmon fisheries against the greed which would destroy

them. They should be preserved as a permanent industry and food supply. Their management and control should be turned over to the Commission of Fish and Fisheries. Alaska should have a Delegate in the Congress. It would be well if a Congressional committee could visit Alaska and investigate its needs on the ground.

In dealing with the Indians our aim should be their ultimate absorption into the body of our people. But in many cases this absorption must and should be very slow. In portions of the Indian Territory the mixture of blood has gone on at the same time with progress in wealth and education, so that there are plenty of men with varying degrees of purity of Indian blood who are absolutely indistinguishable in point of social, political, and economic ability from their white associates. There are other tribes which have as yet made no perceptible advance toward such equality. To try to force such tribes too fast is to prevent their going forward at all. Moreover, the tribes live under widely different conditions. Where a tribe has made considerable advance and lives on fertile farming soil it is possible to allot the members lands in severalty much as is the case with white settlers. There are other tribes where such a course is not desirable. On the arid prairie lands the effort should be to induce the Indians to lead pastoral rather than agricultural lives, and to permit them to settle in villages rather than to force them into isolation.

The large Indian schools situated remote from any Indian reservation do a special and peculiar work of great importance. But, excellent though these are, an immense amount of additional work must be done on the reservations themselves among the old, and above all among the young, Indians.

The first and most important step toward the absorption of the Indian is to teach him to earn his living; yet it is not necessarily to be assumed that in each community all Indians must become either tillers of the soil or stock-raisers. Their industries may properly be diversified, and those who show special desire or adaptability for industrial or even commercial pursuits should be encouraged so far as practicable to follow out each his own bent.

Every effort should be made to develop the Indian along the lines of natural aptitude, and to encourage the existing native industries peculiar to certain tribes, such as the various kinds of basket weaving, canoe building, smith work, and blanket work. Above all, the Indian boys and girls should be given confident command of colloquial English, and should ordinarily be prepared for a vigorous struggle with the conditions under which their people live, rather than for immediate absorption into some more highly developed community.

The officials who represent the Government in dealing with the Indians work under hard conditions, and also under conditions which render it easy to do wrong and very difficult to detect wrong. Consequently they should be amply paid on the one hand, and on the other hand a particularly high standard of conduct should be demanded from them, and where misconduct can be proved the punishment should be exemplary.

In no department of governmental work in recent years has there been greater success than in that of giving scientific aid to the farming population, thereby showing them how most efficiently to help themselves. There is no need of insisting upon its importance, for the welfare of the farmer is fundamentally necessary to the welfare of the Republic as a whole. In addition to such work as quarantine against animal and vegetable plagues, and warring against them when here introduced, much efficient help has been rendered to the farmer by the introduction of new plants specially fitted for cultivation under the peculiar conditions existing in different portions of the country. New cereals have been established in the semi-arid West. For instance, the practicability of producing the best types of macaroni wheats in regions of an annual rainfall of only ten inches or thereabouts has been conclusively demonstrated. Through the introduction of new rices in Louisiana and Texas the production of rice in this country has been made to about equal the home demand. In the Southwest the possibility of regrassing over-stocked range lands has been demonstrated; in the North many new forage crops have been introduced, while in the East it has been shown that some of our choicest fruits can be stored and shipped in such a way as to find a profitable market abroad.

I again recommend to the favorable consideration of the Congress the plans of the Smithsonian Institution for making the Museum under its charge worthy of the Nation, and for preserving at the National Capital not only records of the vanishing races of men but of the animals of this continent which, like the buffalo, will soon become extinct unless specimens from which their representatives may be renewed are sought in their native regions and maintained there in safety.

The District of Columbia is the only part of our territory in which the National Government exercises local or municipal functions, and where in consequence the Government has a free hand in reference to certain types of social and economic legislation which must be essentially local or municipal in their character. The Government should see to it, for instance, that the hygienic and sanitary legislation affecting Washington is of a high character. The evils of slum dwellings, whether in the shape of crowded and congested tenement-house districts or of the back-alley type, should never be permitted to grow up in Washington. The city should be a model in every respect for all the cities of the country. The charitable and correctional systems of the District should receive consideration at the hands of the Congress to the end that they may embody the results of the most advanced thought in these fields. Moreover, while Washington is not a great industrial city, there is some industrialism here, and our labor legislation, while it would not be important in itself, might be made a model for the rest of the Nation. We should pass, for instance, a wise employer's-liability act for the District of Columbia, and we need such an act in our navy yards. Railroad companies in the District ought to be required by law to block their frogs.

The safety-appliance law, for the better protection of the lives and limbs of railway employees, which was passed in 1893, went into full effect on August 1, 1901. It has resulted in averting thousands of casualties. Experience shows, however, the necessity of additional legislation to perfect this law. A bill to provide for this passed the Senate at the last

session. It is to be hoped that some such measure may now be enacted into law.

There is a growing tendency to provide for the publication of masses of documents for which there is no public demand and for the printing of which there is no real necessity. Large numbers of volumes are turned out by the Government printing presses for which there is no justification. Nothing should be printed by any of the Departments unless it contains something of permanent value, and the Congress could with advantage cut down very materially on all the printing which it has now become customary to provide. The excessive cost of Government printing is a strong argument against the position of those who are inclined on abstract grounds to advocate the Government's doing any work which can with propriety be left in private hands.

Gratifying progress has been made during the year in the extension of the merit system of making appointments in the Government service. It should be extended by law to the District of Columbia. It is much to be desired that our consular system be established by law on a basis providing for appointment and promotion only in consequence of proved fitness.

Through a wise provision of the Congress at its last session, the White House, which had become disfigured by incongruous additions and changes, has now been restored to what it was planned to be by Washington. In making the restorations the utmost care has been exercised to come as near as possible to the early plans and to supplement these plans by a careful study of such buildings as that of the University of Virginia, which was built by Jefferson. The White House is the property of the Nation, and so far as is compatible with living therein it should be kept as it

originally was, for the same reasons that we keep Mount Vernon as it originally was. The stately simplicity of its architecture is an expression of the character of the period in which it was built, and is in accord with the purposes it was designed to serve. It is a good thing to preserve such buildings as historic monuments which keep alive our sense of continuity with the Nation's past.

The reports of the several Executive Departments are submitted to the Congress with this communication.

THEODORE ROOSEVELT.

WHITE HOUSE,
December 2, 1902.

MESSAGE OF THE PRESIDENT OF
THE UNITED STATES,
COMMUNICATED TO THE TWO
HOUSES OF CONGRESS AT THE
BEGINNING OF THE FIRST
SESSION OF THE FIFTY-EIGHTH
CONGRESS

To the Senate and House of Representatives:

I have convened the Congress that it may consider the legislation necessary to put into operation the commercial treaty with Cuba, which was ratified by the Senate at its last session, and subsequently by the Cuban Government. I deem such legislation demanded not only by our interest but by our honor. We can not with propriety abandon the course upon which we have so wisely embarked. When the acceptance of the Platt Amendment was required from Cuba by the action of the Congress of the United States, this Government thereby definitely committed itself to the policy of treating Cuba as occupying a unique position as regards this country. It was provided that when the island became a free and independent republic she should stand in such close relations with us as in certain respects to come within our system of international policy; and it necessarily followed that she must also to a certain degree become included within the lines of our economic policy. Situated as Cuba is, it would not be possible for this country to permit the strategic abuse of the island by any foreign military power. It is for this reason that certain limitations have been imposed upon her financial policy, and that naval stations have been conceded by her to the United States. The negotiations as to the details of these naval stations are on the eve of completion. They are so situated as to prevent any idea that there is the intention ever to use them against Cuba, or otherwise than

for the protection of Cuba from the assaults of foreign foes, and for the better safeguarding of American interests in the waters south of us.

These interests have been largely increased by the consequences of the war with Spain, and will be still further increased by the building of the Isthmian Canal. They are both military and economic. The granting to us by Cuba of the naval stations above alluded to is of the utmost importance from a military standpoint, and is proof of the good faith with which Cuba is treating us. Cuba has made great progress since her independence was established. She has advanced steadily in every way. She already stands high among her sister republics of the New World. She is loyally observing her obligations to us; and she is entitled to like treatment by us.

The treaty submitted to you for approval secures to the United States economic advantages as great as those given to Cuba. Not an American interest is sacrificed. By the treaty a large Cuban market is secured to our producers. It is a market which lies at our doors, which is already large, which is capable of great expansion, and which is especially important to the development of our export trade. It would be indeed shortsighted for us to refuse to take advantage of such an opportunity, and to force Cuba into making arrangements with other countries to our disadvantage.

This reciprocity treaty stands by itself. It is demanded on considerations of broad national policy as well as by our economic interest. It will do harm to no industry. It will benefit many industries. It is in the interest of our people as a whole, both because of its importance from the broad standpoint of international policy, and because economically it intimately concerns us to develop and secure the rich Cuban market for our farmers, artisans, merchants, and manufacturers. Finally, it is desirable as a guaranty of the good faith of our Nation toward her young sister republic to the south, whose welfare must ever be closely bound with ours. We gave her liberty. We are knit to her by the memories of the blood and the courage of our soldiers who fought for her in war; by the memory of the wisdom and integrity of our administrators who served her in peace and who started her so well on the difficult path of self-government. We must help her onward and upward; and in helping her we shall help ourselves.

The foregoing considerations caused the negotiations of the treaty with Cuba and its ratification by the Senate. They now with equal force support

the legislation by the Congress which by the terms of the treaty is necessary to render it operative. A failure to enact such legislation would come perilously near a repudiation of the pledged faith of the Nation.

I transmit herewith the treaty, as amended by the Senate and ratified by the Cuban Government.

THEODORE ROOSEVELT.

WHITE HOUSE,
November 10, 1903.

MESSAGE OF THE PRESIDENT OF
THE UNITED STATES,
COMMUNICATED TO THE TWO
HOUSES OF CONGRESS AT THE
BEGINNING OF THE SECOND
SESSION OF THE FIFTY-EIGHTH
CONGRESS

To the Senate and House of Representatives:

The country is to be congratulated on the amount of substantial achievement which has marked the past year both as regards our foreign and as regards our domestic policy.

With a nation as with a man the most important things are those of the household, and therefore the country is especially to be congratulated on what has been accomplished in the direction of providing for the exercise of supervision over the great corporations and combinations of corporations engaged in interstate commerce. The Congress has created the Department of Commerce and Labor, including the Bureau of Corporations, with for the first time authority to secure proper publicity of such proceedings of these great corporations as the public has the right to know. It has provided for the expediting of suits for the enforcement of the Federal anti-trust law; and by another law it has secured equal treatment to all producers in the transportation of their goods, thus taking a long stride forward in making effective the work of the Interstate Commerce Commission.

The establishment of the Department of Commerce and Labor, with the Bureau of Corporations thereunder, marks a real advance in the direction of doing all that is possible for the solution of the questions vitally affecting capitalists and wage-workers. The act creating the Department was

approved on February 14, 1903, and two days later the head of the Department was nominated and confirmed by the Senate. Since then the work of organization has been pushed as rapidly as the initial appropriations permitted, and with due regard to thoroughness and the broad purposes which the Department is designed to serve. After the transfer of the various bureaus and branches to the Department at the beginning of the current fiscal year, as provided for in the act, the personnel comprised 1,289 employees in Washington and 8,836 in the country at large. The scope of the Department's duty and authority embraces the commercial and industrial interests of the Nation. It is not designed to restrict or control the fullest liberty of legitimate business action, but to secure exact and authentic information which will aid the Executive in enforcing existing laws, and which will enable the Congress to enact additional legislation, if any should be found necessary, in order to prevent the few from obtaining privileges at the expense of diminished opportunities for the many.

The preliminary work of the Bureau of Corporations in the Department has shown the wisdom of its creation. Publicity in corporate affairs will tend to do away with ignorance, and will afford facts upon which intelligent action may be taken. Systematic, intelligent investigation is already developing facts the knowledge of which is essential to a right understanding of the needs and duties of the business world. The corporation which is honestly and fairly organized, whose managers in the conduct of its business recognize their obligation to deal squarely with their stockholders, their competitors, and the public, has nothing to fear from such supervision. The purpose of this Bureau is not to embarrass or assail legitimate business, but to aid in bringing about a better industrial condition—a condition under which there shall be obedience to law and recognition of public obligation by all corporations, great or small. The Department of Commerce and Labor will be not only the clearing house for information regarding the business transactions of the Nation but the executive arm of the Government to aid in strengthening our domestic and foreign markets, in perfecting our transportation facilities, in building up our merchant marine, in preventing the entrance of undesirable immigrants, in improving commercial and industrial conditions, and in bringing together on common ground those necessary partners in industrial progress—capital and labor. Commerce between the nations is steadily growing in volume, and the tendency of the times is toward closer trade relations. Constant

watchfulness is needed to secure to Americans the chance to participate to the best advantage in foreign trade; and we may confidently expect that the new Department will justify the expectation of its creators by the exercise of this watchfulness, as well as by the businesslike administration of such laws relating to our internal affairs as are intrusted to its care.

In enacting the laws above enumerated the Congress proceeded on sane and conservative lines. Nothing revolutionary was attempted; but a common-sense and successful effort was made in the direction of seeing that corporations are so handled as to subserve the public good. The legislation was moderate. It was characterized throughout by the idea that we were not attacking corporations, but endeavoring to provide for doing away with any evil in them; that we drew the line against misconduct, not against wealth; gladly recognizing the great good done by the capitalist who alone, or in conjunction with his fellows, does his work along proper and legitimate lines. The purpose of the legislation, which purpose will undoubtedly be fulfilled, was to favor such a man when he does well, and to supervise his action only to prevent him from doing ill. Publicity can do no harm to the honest corporation. The only corporation that has cause to dread it is the corporation which shrinks from the light, and about the welfare of such corporations we need not be oversensitive. The work of the Department of Commerce and Labor has been conditioned upon this theory, of securing fair treatment alike for labor and for capital.

The consistent policy of the National Government, so far as it has the power, is to hold in check the unscrupulous man, whether employer or employee; but to refuse to weaken individual initiative or to hamper or cramp the industrial development of the country. We recognize that this is an era of federation and combination, in which great capitalistic corporations and labor unions have become factors of tremendous importance in all industrial centres. Hearty recognition is given the far-reaching, beneficent work which has been accomplished through both corporations and unions, and the line as between different corporations, as between different unions, is drawn as it is between different individuals; that is, it is drawn on conduct, the effort being to treat both organized

capital and organized labor alike, asking nothing save that the interest of each shall be brought into harmony with the interest of the general public, and that the conduct of each shall conform to the fundamental rules of obedience to law, of individual freedom, and of justice and fair dealing towards all. Whenever either corporation, labor union, or individual disregards the law or acts in a spirit of arbitrary and tyrannous interference with the rights of others, whether corporations or individuals, then where the Federal Government has jurisdiction, it will see to it that the misconduct is stopped, paying not the slightest heed to the position or power of the corporation, the union or the individual, but only to one vital fact—that is, the question whether or not the conduct of the individual or aggregate of individuals is in accordance with the law of the land. Every man must be guaranteed his liberty and his right to do as he likes with his property or his labor, so long as he does not infringe the rights of others. No man is above the law and no man is below it; nor do we ask any man's permission when we require him to obey it. Obedience to the law is demanded as a right; not asked as a favor.

We have cause as a Nation to be thankful for the steps that have been so successfully taken to put these principles into effect. The progress has been by evolution, not by revolution. Nothing radical has been done; the action has been both moderate and resolute. Therefore the work will stand. There shall be no backward step. If in the working of the laws it proves desirable that they shall at any point be expanded or amplified, the amendment can be made as its desirability is shown. Meanwhile they are being administered with judgment, but with insistence upon obedience to them; and their need has been emphasized in signal fashion by the events of the past year.

From all sources, exclusive of the postal service, the receipts of the Government for the last fiscal year aggregated \$560,396,674. The expenditures for the same period were \$506,099,007, the surplus for the fiscal year being \$54,297,667. The indications are that the surplus for the present fiscal year will be very small, if indeed there be any surplus. From July to November the receipts from customs were, approximately, nine million dollars less than the receipts from the same source for a

corresponding portion of last year. Should this decrease continue at the same ratio throughout the fiscal year, the surplus would be reduced by, approximately, thirty million dollars. Should the revenue from customs suffer much further decrease during the fiscal year, the surplus would vanish. A large surplus is certainly undesirable. Two years ago the war taxes were taken off with the express intention of equalizing the governmental receipts and expenditures, and though the first year thereafter still showed a surplus, it now seems likely that a substantial equality of revenue and expenditure will be attained. Such being the case it is of great moment both to exercise care and economy in appropriations, and to scan sharply any change in our fiscal revenue system which may reduce our income. The need of strict economy in our expenditures is emphasized by the fact that we can not afford to be parsimonious in providing for what is essential to our national well-being. Careful economy wherever possible will alone prevent our income from falling below the point required in order to meet our genuine needs.

The integrity of our currency is beyond question, and under present conditions it would be unwise and unnecessary to attempt a reconstruction of our entire monetary system. The same liberty should be granted the Secretary of the Treasury to deposit customs receipts as is granted him in the deposit of receipts from other sources. In my Message of December 2, 1902, I called attention to certain needs of the financial situation, and I again ask the consideration of the Congress for these questions.

During the last session of the Congress, at the suggestion of a joint note from the Republic of Mexico and the Imperial Government of China, and in harmony with an act of the Congress appropriating \$25,000 to pay the expenses thereof, a commission was appointed to confer with the principal European countries in the hope that some plan might be devised whereby a fixed rate of exchange could be assured between the gold standard countries and the silver standard countries. This commission has filed its preliminary report, which has been made public. I deem it important that the commission be continued, and that a sum of money be appropriated sufficient to pay the expenses of its further labors.

A majority of our people desire that steps be taken in the interests of American shipping, so that we may once more resume our former position in the ocean carrying trade. But hitherto the differences of opinion as to the proper method of reaching this end have been so wide that it has proved impossible to secure the adoption of any particular scheme. Having in view these facts, I recommend that the Congress direct the Secretary of the Navy, the Postmaster-General, and the Secretary of Commerce and Labor, associated with such a representation from the Senate and House of Representatives as the Congress in its wisdom may designate, to serve as a commission for the purpose of investigating and reporting to the Congress at its next session what legislation is desirable or necessary for the development of the American merchant marine and American commerce, and incidentally of a national ocean mail service of adequate auxiliary naval cruisers and naval reserves. While such a measure is desirable in any event, it is especially desirable at this time, in view of the fact that our present governmental contract for ocean mail with the American Line will expire in 1905. Our ocean mail act was passed in 1891. In 1895 our 20-knot transatlantic mail line was equal to any foreign line. Since then the Germans have put on 23-knot steamers, and the British have contracted for 24-knot steamers. Our service should equal the best. If it does not, the commercial public will abandon it. If we are to stay in the business it ought to be with a full understanding of the advantages to the country on one hand, and on the other with exact knowledge of the cost and proper methods of carrying it on. Moreover, lines of cargo ships are of even more importance than fast mail lines, save so far as the latter can be depended upon to furnish swift auxiliary cruisers in time of war. The establishment of new lines of cargo ships to South America, to Asia, and elsewhere would be much in the interest of our commercial expansion.

We can not have too much immigration of the right kind, and we should have none at all of the wrong kind. The need is to devise some system by which undesirable immigrants shall be kept out entirely, while desirable immigrants are properly distributed throughout the country. At present some

districts which need immigrants have none; and in others, where the population is already congested, immigrants come in such numbers as to depress the conditions of life for those already there. During the last two years the immigration service at New York has been greatly improved, and the corruption and inefficiency which formerly obtained there have been eradicated. This service has just been investigated by a committee of New York citizens of high standing, Messrs. Arthur v. Briesen, Lee K. Frankel, Eugene A. Philbin, Thomas W. Hynes, and Ralph Trautmann. Their report deals with the whole situation at length, and concludes with certain recommendations for administrative and legislative action. It is now receiving the attention of the Secretary of Commerce and Labor.

The special investigation of the subject of naturalization under the direction of the Attorney-General, and the consequent prosecutions, reveal a condition of affairs calling for the immediate attention of the Congress. Forgeries and perjuries of shameless and flagrant character have been perpetrated, not only in the dense centres of population, but throughout the country; and it is established beyond doubt that very many so-called citizens of the United States have no title whatever to that right, and are asserting and enjoying the benefits of the same through the grossest frauds. It is never to be forgotten that citizenship is, to quote the words recently used by the Supreme Court of the United States, an “inestimable heritage,” whether it proceeds from birth within the country or is obtained by naturalization; and we poison the sources of our national character and strength at the fountain, if the privilege is claimed and exercised without right, and by means of fraud and corruption. The body politic can not be sound and healthy if many of its constituent members claim their standing through the prostitution of the high right and calling of citizenship. It should mean something to become a citizen of the United States; and in the process no loophole whatever should be left open to fraud.

The methods by which these frauds—now under full investigation with a view to meting out punishment and providing adequate remedies—are perpetuated, include many variations of procedure by which false certificates of citizenship are forged in their entirety; or genuine certificates

fraudulently or collusively obtained in blank are filled in by the criminal conspirators; or certificates are obtained on fraudulent statements as to the time of arrival and residence in this country; or imposition and substitution of another party for the real petitioner occur in court; or certificates are made the subject of barter and sale and transferred from the rightful holder to those not entitled to them; or certificates are forged by erasure of the original names and the insertion of the names of other persons not entitled to the same.

It is not necessary for me to refer here at large to the causes leading to this state of affairs. The desire for naturalization is heartily to be commended where it springs from a sincere and permanent intention to become citizens, and a real appreciation of the privilege. But it is a source of untold evil and trouble where it is traceable to selfish and dishonest motives, such as the effort by artificial and improper means, in wholesale fashion to create voters who are ready-made tools of corrupt politicians, or the desire to evade certain labor laws creating discriminations against alien labor. All good citizens, whether naturalized or native born, are equally interested in protecting our citizenship against fraud in any form, and, on the other hand, in affording every facility for naturalization to those who in good faith desire to share alike our privileges and our responsibilities.

The Federal grand jury lately in session in New York City dealt with this subject and made a presentment which states the situation briefly and forcibly and contains important suggestions for the consideration of the Congress. This presentment is included as an appendix to the report of the Attorney-General.

In my last annual Message, in connection with the subject of the due regulation of combinations of capital which are or may become injurious to the public, I recommended a special appropriation for the better enforcement of the anti-trust law as it now stands, to be expended under the direction of the Attorney-General. Accordingly (by the legislative, executive, and judicial appropriation act of February 25, 1903, 32 Stat., 854, 904), the Congress appropriated, for the purpose of enforcing the various Federal trust and interstate commerce laws, the sum of five hundred

thousand dollars, to be expended under the direction of the Attorney-General in the employment of special counsel and agents in the Department of Justice to conduct proceedings and prosecutions under said laws in the courts of the United States. I now recommend, as a matter of the utmost importance and urgency, the extension of the purposes of this appropriation, so that it may be available, under the direction of the Attorney-General, and until used, for the due enforcement of the laws of the United States in general and especially of the civil and criminal laws relating to public lands and the laws relating to postal crimes and offences and the subject of naturalization. Recent investigations have shown a deplorable state of affairs in these three matters of vital concern. By various frauds and by forgeries and perjuries, thousands of acres of the public domain, embracing lands of different character and extending through various sections of the country, have been dishonestly acquired. It is hardly necessary to urge the importance of recovering these dishonest acquisitions, stolen from the people, and of promptly and duly punishing the offenders. I speak in another part of this Message of the widespread crimes by which the sacred right of citizenship is falsely asserted and that “inestimable heritage” perverted to base ends. By similar means—that is, through frauds, forgeries, and perjuries, and by shameless briberies—the laws relating to the proper conduct of the public service in general and to the due administration of the Post-Office Department have been notoriously violated, and many indictments have been found, and the consequent prosecutions are in course of hearing or on the eve thereof. For the reasons thus indicated, and so that the government may be prepared to enforce promptly and with the greatest effect the due penalties for such violations of law, and to this end may be furnished with sufficient instrumentalities and competent legal assistance for the investigations and trials which will be necessary at many different points of the country, I urge upon the Congress the necessity of making the said appropriation available for immediate use for all such purposes, to be expended under the direction of the Attorney-General.

Steps have been taken by the State Department looking to the making of bribery an extraditable offence with foreign powers. The need of more effective treaties covering this crime is manifest. The exposures and prosecutions of official corruption in St. Louis, Mo., and other cities and States have resulted in a number of givers and takers of bribes becoming fugitives in foreign lands. Bribery has not been included in extradition

treaties heretofore, as the necessity for it has not arisen. While there may have been as much official corruption in former years, there has been more developed and brought to light in the immediate past than in the preceding century of our country's history. It should be the policy of the United States to leave no place on earth where a corrupt man fleeing from this country can rest in peace. There is no reason why bribery should not be included in all treaties as extraditable. The recent amended treaty with Mexico, whereby this crime was put in the list of extraditable offences, has established a salutary precedent in this regard. Under this treaty the State Department has asked, and Mexico has granted, the extradition of one of the St. Louis bribe givers.

There can be no crime more serious than bribery. Other offences violate one law while corruption strikes at the foundation of all law. Under our form of government all authority is vested in the people and by them delegated to those who represent them in official capacity. There can be no offence heavier than that of him in whom such a sacred trust has been reposed, who sells it for his own gain and enrichment; and no less heavy is the offence of the bribe giver. He is worse than the thief, for the thief robs the individual, while the corrupt official plunders an entire city or State. He is as wicked as the murderer, for the murderer may only take one life against the law, while the corrupt official and the man who corrupts the official alike aim at the assassination of the commonwealth itself. Government of the people, by the people, for the people will perish from the face of the earth if bribery is tolerated. The givers and takers of bribes stand on an evil pre-eminence of infamy. The exposure and punishment of public corruption is an honor to a nation, not a disgrace. The shame lies in toleration, not in correction. No city or State, still less the Nation, can be injured by the enforcement of law. As long as public plunderers when detected can find a haven of refuge in any foreign land and avoid punishment, just so long encouragement is given them to continue their practices. If we fail to do all that in us lies to stamp out corruption we can not escape our share of responsibility for the guilt. The first requisite of successful self-government is unflinching enforcement of the law and the cutting out of corruption.

For several years past the rapid development of Alaska and the establishment of growing American interests in regions theretofore unsurveyed and imperfectly known brought into prominence the urgent necessity of a practical demarcation of the boundaries between the jurisdictions of the United States and Great Britain. Although the treaty of 1825 between Great Britain and Russia, the provisions of which were copied in the treaty of 1867, whereby Russia conveyed Alaska to the United States, was positive as to the control, first by Russia and later by the United States, of a strip of territory along the continental mainland from the western shore of Portland Canal to Mount St. Elias, following and surrounding the indentations of the coast and including the islands to the westward, its description of the landward margin of the strip was indefinite, resting on the supposed existence of a continuous ridge or range of mountains skirting the coast, as figured in the charts of the early navigators. It had at no time been possible for either party in interest to lay down, under the authority of the treaty, a line so obviously exact according to its provisions as to command the assent of the other. For nearly three-fourths of a century the absence of tangible local interests demanding the exercise of positive jurisdiction on either side of the border left the question dormant. In 1878, questions of revenue administration on the Stikine River led to the establishment of a provisional demarcation, crossing the channel between two high peaks on either side about twenty-four miles above the river mouth. In 1899, similar questions growing out of the extraordinary development of mining interests in the region about the head of Lynn Canal brought about a temporary *modus vivendi*, by which a convenient separation was made at the watershed divides of the White and Chilkoot passes and to the north of Klukwan, on the Klehini River. These partial and tentative adjustments could not, in the very nature of things, be satisfactory or lasting. A permanent disposition of the matter became imperative.

After unavailing attempts to reach an understanding through a Joint High Commission, followed by prolonged negotiations, conducted in an amicable spirit, a convention between the United States and Great Britain was signed, January 24, 1903, providing for an examination of the subject by a mixed tribunal of six members, three on a side, with a view to its final disposition. Ratifications were exchanged on March 3 last, whereupon the two governments appointed their respective members. Those on behalf of the United States were Elihu Root, Secretary of War; Henry Cabot Lodge, a

Senator of the United States, and George Turner, an ex-Senator of the United States, while Great Britain named the Right Honorable Lord Alverstone, Lord Chief Justice of England; Sir Louis Amable Jetté, K.C.M.G., retired judge of the Supreme Court of Quebec, and A. B. Aylesworth, K.C., of Toronto. This Tribunal met in London on September 3, under the Presidency of Lord Alverstone. The proceedings were expeditious, and marked by a friendly and conscientious spirit. The respective cases, counter cases, and arguments presented the issues clearly and fully. On the 20th of October a majority of the Tribunal reached and signed an agreement on all the questions submitted by the terms of the Convention. By this award the right of the United States to the control of a continuous strip or border of the mainland shore, skirting all the tide-water inlets and sinuosities of the coast, is confirmed; the entrance to Portland Canal (concerning which legitimate doubt appeared) is defined as passing by Tongass Inlet and to the northwestward of Wales and Pearse Islands; a line is drawn from the head of Portland Canal to the fifty-sixth degree of north latitude; and the interior border line of the strip is fixed by lines connecting certain mountain summits lying between Portland Canal and Mount St. Elias, and running along the crest of the divide separating the coast slope from the inland watershed at the only part of the frontier where the drainage ridge approaches the coast within the distance of ten marine leagues stipulated by the treaty as the extreme width of the strip around the heads of Lynn Canal and its branches.

While the line so traced follows the provisional demarcation of 1878 at the crossing of the Stikine River, and that of 1899 at the summits of the White and Chilkoot passes, it runs much further inland from the Klehini than the temporary line of the later *modus vivendi*, and leaves the entire mining district of the Porcupine River and Glacier Creek within the jurisdiction of the United States.

The result is satisfactory in every way. It is of great material advantage to our people in the Far Northwest. It has removed from the field of discussion and possible danger a question liable to become more acutely accentuated with each passing year. Finally, it has furnished a signal proof of the fairness and good-will with which two friendly nations can approach and determine issues involving national sovereignty and by their nature incapable of submission to a third power for adjudication.

The award is self-executing on the vital points. To make it effective as regards the others it only remains for the two governments to appoint, each on its own behalf, one or more scientific experts, who shall, with all convenient speed, proceed together to lay down the boundary line in accordance with the decision of the majority of the Tribunal. I recommend that the Congress make adequate provision for the appointment, compensation, and expenses of the members to serve on this joint boundary commission on the part of the United States.

It will be remembered that during the second session of the last Congress Great Britain, Germany, and Italy formed an alliance for the purpose of blockading the ports of Venezuela and using such other means of pressure as would secure a settlement of claims due, as they alleged, to certain of their subjects. Their employment of force for the collection of these claims was terminated by an agreement brought about through the offices of the diplomatic representatives of the United States at Caracas and the Government at Washington, thereby ending a situation which was bound to cause increasing friction, and which jeopardized the peace of the continent. Under this agreement Venezuela agreed to set apart a certain percentage of the customs receipts of two of her ports to be applied to the payment of whatever obligations might be ascertained by mixed commissions appointed for that purpose to be due from her, not only to the three powers already mentioned, whose proceedings against her had resulted in a state of war, but also to the United States, France, Spain, Belgium, the Netherlands, Sweden and Norway, and Mexico, who had not employed force for the collection of the claims alleged to be due to certain of their citizens.

A demand was then made by the so-called blockading powers that the sums ascertained to be due to their citizens by such mixed commissions should be accorded payment in full before anything was paid upon the claims of any of the so-called peace powers. Venezuela, on the other hand, insisted that all her creditors should be paid upon a basis of exact equality. During the efforts to adjust this dispute it was suggested by the powers in interest that it should be referred to me for decision, but I was clearly of the opinion that a far wiser course would be to submit the question to the

Permanent Court of Arbitration at The Hague. It seemed to me to offer an admirable opportunity to advance the practice of the peaceful settlement of disputes between nations and to secure for The Hague Tribunal a memorable increase of its practical importance. The nations interested in the controversy were so numerous, and in many instances so powerful, as to make it evident that beneficent results would follow from their appearance at the same time before the bar of that august tribunal of peace.

Our hopes in that regard have been realized. Russia and Austria are represented in the persons of the learned and distinguished jurists who compose the Tribunal, while Great Britain, Germany, France, Spain, Italy, Belgium, the Netherlands, Sweden, and Norway, Mexico, the United States, and Venezuela are represented by their respective agents and counsel. Such an imposing concourse of nations presenting their arguments to and invoking the decision of that high court of international justice and international peace can hardly fail to secure a like submission of many future controversies. The nations now appearing there will find it far easier to appear there a second time, while no nation can imagine its just pride will be lessened by following the example now presented. This triumph of the principle of international arbitration is a subject of warm congratulation and offers a happy augury for the peace of the world.

There seems good ground for the belief that there has been a real growth among the civilized nations of a sentiment which will permit a gradual substitution of other methods than the method of war in the settlement of disputes. It is not pretended that as yet we are near a position in which it will be possible wholly to prevent war, or that a just regard for national interest and honor will in all cases permit of the settlement of international disputes by arbitration; but by a mixture of prudence and firmness with wisdom we think it is possible to do away with much of the provocation and excuse for war, and at least in many cases to substitute some other and more rational method for the settlement of disputes. The Hague Court offers so good an example of what can be done in the direction of such settlement that it should be encouraged in every way.

Further steps should be taken. In President McKinley's annual Message of December 5, 1898, he made the following recommendation:

“The experiences of the last year bring forcibly home to us a sense of the burdens and the waste of war. We desire, in common with most civilized nations, to reduce to the lowest possible point the damage sustained in time of war by peaceable trade and commerce. It is true we may suffer in such cases less than other communities, but all nations are damaged more or less by the state of uneasiness and apprehension into which an outbreak of hostilities throws the entire commercial world. It should be our object, therefore, to minimize, so far as practicable, this inevitable loss and disturbance. This purpose can probably best be accomplished by an international agreement to regard all private property at sea as exempt from capture or destruction by the forces of belligerent powers. The United States Government has for many years advocated this humane and beneficent principle, and is now in a position to recommend it to other powers without the imputation of selfish motives. I therefore suggest for your consideration that the Executive be authorized to correspond with the governments of the principal maritime powers with a view of incorporating into the permanent law of civilized nations the principle of the exemption of all private property at sea, not contraband of war, from capture or destruction by belligerent powers.”

I cordially renew this recommendation.

The Supreme Court, speaking on December 11, 1899, through Peckham, J., said:

“It is, we think, historically accurate to say that this Government has always been, in its views, among the most advanced of the governments of the world in favor of mitigating, as to all non-combatants, the hardships and horrors of war. To accomplish that object it has always advocated those rules which would in most cases do away with the right to capture the private property of an enemy on the high seas.”

I advocate this as a matter of humanity and morals. It is anachronistic when private property is respected on land that it should not be respected at sea. Moreover, it should be borne in mind that shipping represents, internationally speaking, a much more generalized species of private property than is the case with ordinary property on land—that is, property found at sea is much less apt than is the case with property found on land really to belong to any one nation. Under the modern system of corporate

ownership the flag of a vessel often differs from the flag which would mark the nationality of the real ownership and money control of the vessel; and the cargo may belong to individuals of yet a different nationality. Much American capital is now invested in foreign ships; and among foreign nations it often happens that the capital of one is largely invested in the shipping of another. Furthermore, as a practical matter, it may be mentioned that while commerce destroying may cause serious loss and great annoyance, it can never be more than a subsidiary factor in bringing to terms a resolute foe. This is now well recognized by all of our naval experts. The fighting ship, not the commerce destroyer, is the vessel whose feats add renown to a nation's history, and establish her place among the great powers of the world.

Last year the Interparliamentary Union for International Arbitration met at Vienna, six hundred members of the different legislatures of civilized countries attending. It was provided that the next meeting should be in 1904 at St. Louis, subject to our Congress extending an invitation. Like The Hague Tribunal, this Interparliamentary Union is one of the forces tending toward peace among the nations of the earth, and it is entitled to our support. I trust the invitation can be extended.

Early in July, having received intelligence, which happily turned out to be erroneous, of the assassination of our vice-consul at Beirut, I despatched a small squadron to that port for such service as might be found necessary on arrival. Although the attempt on the life of our vice-consul had not been successful, yet the outrage was symptomatic of a state of excitement and disorder which demanded immediate attention. The arrival of the vessels had the happiest result. A feeling of security at once took the place of the former alarm and disquiet; our officers were cordially welcomed by the consular body and the leading merchants, and ordinary business resumed its activity. The government of the Sultan gave a considerate hearing to the representations of our minister; the official who was regarded as responsible for the disturbed condition of affairs was removed. Our relations with the Turkish Government remain friendly; our claims founded on inequitable

treatment of some of our schools and missions appear to be in process of amicable adjustment.

The signing of a new commercial treaty with China, which took place at Shanghai on the 8th of October, is a cause for satisfaction. This act, the result of long discussion and negotiation, places our commercial relations with the great Oriental Empire on a more satisfactory footing than they have ever heretofore enjoyed. It provides not only for the ordinary rights and privileges of diplomatic and consular officers, but also for an important extension of our commerce by increased facility of access to Chinese ports, and for the relief of trade by the removal of some of the obstacles which have embarrassed it in the past. The Chinese Government engages, on fair and equitable conditions, which will probably be accepted by the principal commercial nations, to abandon the levy of “liken” and other transit dues throughout the Empire, and to introduce other desirable administrative reforms. Larger facilities are to be given to our citizens who desire to carry on mining enterprises in China. We have secured for our missionaries a valuable privilege, the recognition of their right to rent and lease in perpetuity such property as their religious societies may need in all parts of the Empire. And, what was an indispensable condition for the advance and development of our commerce in Manchuria, China, by treaty with us, has opened to foreign commerce the cities of Mukden, the capital of the province of Manchuria, and Antung, an important port on the Yalu River, on the road to Korea. The full measure of development which our commerce may rightfully expect can hardly be looked for until the settlement of the present abnormal state of things in the Empire; but the foundation for such development has at last been laid.

I call your attention to the reduced cost in maintaining the consular service for the fiscal year ending June 30, 1903, as shown in the annual report of the Auditor for the State and other Departments, as compared with the year previous. For the year under consideration the excess of expenditures over receipts on account of the consular service amounted to \$26,125.12, as against \$96,972.50 for the year ending June 30, 1902, and \$147,040.16 for the year ending June 30, 1901. This is the best showing in this respect for the consular service for the past fourteen years, and the reduction in the cost of the service to the Government has been made in spite of the fact that the expenditures for the year in question were more than \$20,000 greater than for the previous year.

The rural free-delivery service has been steadily extended. The attention of the Congress is asked to the question of the compensation of the letter carriers and clerks engaged in the postal service, especially on the new rural free-delivery routes. More routes have been installed since the first of July last than in any like period in the Department's history. While a due regard to economy must be kept in mind in the establishment of new routes, yet the extension of the rural free-delivery system must be continued, for reasons of sound public policy. No governmental movement of recent years has resulted in greater immediate benefit to the people of the country districts. Rural free-delivery, taken in connection with the telephone, the bicycle, and the trolley, accomplishes much toward lessening the isolation of farm life and making it brighter and more attractive. In the immediate past the lack of just such facilities as these has driven many of the more active and restless young men and women from the farms to the cities; for they rebelled at loneliness and lack of mental companionship. It is unhealthy and undesirable for the cities to grow at the expense of the country; and rural free-delivery is not only a good thing in itself, but is good because it is one of the causes which check this unwholesome tendency toward the urban concentration of our population at the expense of the country districts. It is for the same reason that we sympathize with and approve of the policy of building good roads. The movement for good roads is one fraught with the greatest benefit to the country districts.

I trust that the Congress will continue to favor in all proper ways the Louisiana Purchase Exposition. This Exposition commemorates the Louisiana Purchase, which was the first great step in the expansion which made us a continental nation. The expedition of Lewis and Clark across the continent followed thereon, and marked the beginning of the process of exploration and colonization which thrust our national boundaries to the Pacific. The acquisition of the Oregon country, including the present States of Oregon and Washington, was a fact of immense importance in our history; first giving us our place on the Pacific seaboard, and making ready the way for our ascendancy in the commerce of the greatest of the oceans. The centennial of our establishment upon the western coast by the expedition of Lewis and Clark is to be celebrated at Portland, Oregon, by an exposition in the summer of 1905, and this event should receive recognition and support from the National Government.

I call your special attention to the Territory of Alaska. The country is developing rapidly, and it has an assured future. The mineral wealth is great and has as yet hardly been tapped. The fisheries, if wisely handled and kept under national control, will be a business as permanent as any other, and of the utmost importance to the people. The forests if properly guarded will form another great source of wealth. Portions of Alaska are fitted for farming and stock-raising, although the methods must be adapted to the peculiar conditions of the country. Alaska is situated in the far north; but so are Norway and Sweden and Finland; and Alaska can prosper and play its part in the New World just as those nations have prospered and played their parts in the Old World. Proper land laws should be enacted; and the survey of the public lands immediately begun. Coal-land laws should be provided whereby the coal-land entryman may make his location and secure patent under methods kindred to those now prescribed for homestead and mineral entrymen. Salmon hatcheries, exclusively under government control, should be established. The cable should be extended from Sitka westward. Wagon roads and trails should be built, and the building of railroads promoted in all legitimate ways. Light-houses should be built along the coast. Attention

should be paid to the needs of the Alaska Indians; provision should be made for an officer, with deputies, to study their needs, relieve their immediate wants, and help them adapt themselves to the new conditions.

The commission appointed to investigate, during the season of 1903, the condition and needs of the Alaskan salmon fisheries, has finished its work in the field, and is preparing a detailed report thereon. A preliminary report reciting the measures immediately required for the protection and preservation of the salmon industry has already been submitted to the Secretary of Commerce and Labor for his attention and for the needed action.

I recommend that an appropriation be made for building light-houses in Hawaii, and taking possession of those already built. The Territory should be reimbursed for whatever amounts it has already expended for light-houses. The Governor should be empowered to suspend or remove any official appointed by him, without submitting the matter to the legislature.

Of our insular possessions, the Philippines and Porto Rico, it is gratifying to say that their steady progress has been such as to make it unnecessary to spend much time in discussing them. Yet the Congress should ever keep in mind that a peculiar obligation rests upon us to further in every way the welfare of these communities. The Philippines should be knit closer to us by tariff arrangements. It would, of course, be impossible suddenly to raise the people of the islands to the high pitch of industrial prosperity and of governmental efficiency to which they will in the end by degrees attain; and the caution and moderation shown in developing them have been among the main reasons why this development has hitherto gone on so smoothly.

Scrupulous care has been taken in the choice of governmental agents, and the entire elimination of partisan politics from the public service. The condition of the islanders is in material things far better than ever before, while their governmental, intellectual, and moral advance has kept pace with their material advance. No one people ever benefited another people more than we have benefited the Filipinos by taking possession of the islands.

The cash receipts of the General Land Office for the last fiscal year were \$11,024,743.65, an increase of \$4,762,816.47 over the preceding year. Of this sum, approximately, \$8,461,493 will go to the credit of the fund for the reclamation of arid land, making the total of this fund, up to the 30th of June, 1903, approximately, \$16,191,836.

A gratifying disposition has been evinced by those having unlawful inclosures of public land to remove their fences. Nearly two million acres so inclosed have been thrown open on demand. In but comparatively few cases has it been necessary to go into court to accomplish this purpose. This work will be vigorously prosecuted until all unlawful inclosures have been removed.

Experience has shown that in the Western States themselves, as well as in the rest of the country, there is widespread conviction that certain of the public-land laws and the resulting administrative practice no longer meet the present needs. The character and uses of the remaining public lands differ widely from those of the public lands which Congress had especially in view when these laws were passed. The rapidly increasing rate of disposal of the public lands is not followed by a corresponding increase in home building. There is a tendency to mass in large holdings public lands, especially timber and grazing lands, and thereby to retard settlement. I renew and emphasize my recommendation of last year that so far as they are available for agriculture in its broadest sense, and to whatever extent they may be reclaimed under the national irrigation law, the remaining public lands should be held rigidly for the home builder. The attention of the Congress is especially directed to the timber and stone law, the desert-land law, and the commutation clause of the homestead law, which in their operation have in many respects conflicted with wise public-land policy. The discussions in the Congress and elsewhere have made it evident that there is a wide divergence of opinions between those holding opposite views on these subjects; and that the opposing sides have strong and convinced representatives of weight both within and without the Congress; the differences being not only as to matters of opinion but as to matters of fact. In order that definite information may be available for the use of the Congress, I have appointed a commission composed of W. A. Richards,

Commissioner of the General Land Office; Gifford Pinchot, Chief of the Bureau of Forestry of the Department of Agriculture, and F. H. Newell, Chief Hydrographer of the Geological Survey, to report at the earliest practicable moment upon the condition, operation, and effect of the present land laws and on the use, condition, disposal, and settlement of the public lands. The commission will report especially what changes in organization, laws, regulations, and practice affecting the public lands are needed to effect the largest practicable disposition of the public lands to actual settlers who will build permanent homes upon them, and to secure in permanence the fullest and most effective use of the resources of the public lands; and it will make such other reports and recommendations as its study of these questions may suggest. The commission is to report immediately upon those points concerning which its judgment is clear; on any point upon which it has doubt it will take the time necessary to make investigation and reach a final judgment.

The work of reclamation of the arid lands of the West is progressing steadily and satisfactorily under the terms of the law setting aside the proceeds from the disposal of public lands. The corps of engineers known as the Reclamation Service, which is conducting the surveys and examinations, has been thoroughly organized, especial pains being taken to secure under the civil-service rules a body of skilled, experienced, and efficient men. Surveys and examinations are progressing throughout the arid States and Territories, plans for reclaiming works being prepared and passed upon by boards of engineers before approval by the Secretary of the Interior. In Arizona and Nevada, in localities where such work is pre-eminently needed, construction has already been begun. In other parts of the arid West various projects are well advanced toward the drawing up of contracts, these being delayed in part by necessities of reaching agreements or understanding as regards rights of way or acquisition of real estate. Most of the works contemplated for construction are of national importance, involving interstate questions or the securing of stable, self-supporting communities in the midst of vast tracts of vacant land. The Nation as a whole is of course the gainer by the creation of these homes, adding as they do to the wealth and stability of the country, and furnishing a home market for the products of the East and South. The reclamation law, while perhaps not ideal, appears at present to answer the larger needs for which it is

designed. Further legislation is not recommended until the necessities of change are more apparent.

The study of the opportunities of reclamation of the vast extent of arid land shows that whether this reclamation is done by individuals, corporations, or the State, the sources of water supply must be effectively protected and the reservoirs guarded by the preservation of the forests at the headwaters of the streams. The engineers making the preliminary examinations continually emphasize this need and urge that the remaining public lands at the headwaters of the important streams of the West be reserved to insure permanency of water supply for irrigation. Much progress in forestry has been made during the past year. The necessity for perpetuating our forest resources, whether in public or private hands, is recognized now as never before. The demand for forest reserves has become insistent in the West, because the West must use the water, wood, and summer range which only such reserves can supply. Progressive lumbermen are striving, through forestry, to give their business permanence. Other great business interests are awakening to the need of forest preservation as a business matter. The Government's forest work should receive from the Congress hearty support, and especially support adequate for the protection of the forest reserves against fire. The forest reserve policy of the Government has passed beyond the experimental stage and has reached a condition where scientific methods are essential to its successful prosecution. The administration features of forest reserves are at present unsatisfactory, being divided between three Bureaus of two Departments. It is therefore recommended that all matters pertaining to forest reserves, except those involving or pertaining to land titles, be consolidated in the Bureau of Forestry of the Department of Agriculture.

The cotton-growing States have recently been invaded by a weevil that has done much damage and threatens the entire cotton industry. I suggest to the Congress the prompt enactment of such remedial legislation as its judgment may approve.

In granting patents to foreigners the proper course for this country to follow is to give the same advantages to foreigners here that the countries in which these foreigners dwell extend in return to our citizens; that is, to extend the benefits of our patent laws on inventions and the like where in return the articles would be patentable in the foreign countries concerned—where an American could get a corresponding patent in such countries.

The Indian agents should not be dependent for their appointment or tenure of office upon considerations of partisan politics; the practice of appointing, when possible, ex-army officers or bonded superintendents to the vacancies that occur is working well. Attention is invited to the widespread illiteracy due to lack of public schools in the Indian Territory. Prompt heed should be paid to the need of education for the children in this Territory.

In my last annual Message the attention of the Congress was called to the necessity of enlarging the safety-appliance law, and it is gratifying to note that this law was amended in important respects. With the increasing railway mileage of the country, the greater number of men employed, and the use of larger and heavier equipment, the urgency for renewed effort to prevent the loss of life and limb upon the railroads of the country, particularly to employees, is apparent. For the inspection of water craft and the Life-Saving Service upon the water the Congress has built up an elaborate body of protective legislation and a thorough method of inspection and is annually spending large sums of money. It is encouraging to observe that the Congress is alive to the interests of those who are employed upon our wonderful arteries of commerce—the railroads—who so safely transport millions of passengers and billions of tons of freight. The Federal inspection of safety appliances, for which the Congress is now making appropriations, is a service analogous to that which the Government has upheld for generations in regard to vessels, and it is believed will prove of great practical benefit, both to railroad employees and the traveling

public. As the greater part of commerce is interstate and exclusively under the control of the Congress the needed safety and uniformity must be secured by national legislation.

No other class of our citizens deserves so well of the Nation as those to whom the Nation owes its very being, the veterans of the Civil War. Special attention is asked to the excellent work of the Pension Bureau in expediting and disposing of pension claims. During the fiscal year ending July 1, 1903, the Bureau settled 251,982 claims, an average of 825 claims for each working day of the year. The number of settlements since July 1, 1903, has been in excess of last year's average, approaching 1,000 claims for each working day, and it is believed that the work of the Bureau will be current at the close of the present fiscal year.

During the year ended June 30 last 25,566 persons were appointed through competitive examinations under the civil-service rules. This was 12,672 more than during the preceding year, and 40 per cent of those who passed the examinations. This abnormal growth was largely occasioned by the extension of classification to the rural free-delivery service and the appointment last year of over 9,000 rural carriers.

A revision of the civil-service rules took effect on April 15 last, which has greatly improved their operation. The completion of the reform of the civil service is recognized by good citizens everywhere as a matter of the highest public importance, and the success of the merit system largely depends upon the effectiveness of the rules and the machinery provided for their enforcement. A very gratifying spirit of friendly co-operation exists in all the Departments of the Government in the enforcement and uniform observance of both the letter and spirit of the civil-service act. Executive orders of July 3, 1902, March 26, 1903, and July 8, 1903, require that appointments of all unclassified laborers, both in the Departments at Washington and in the field service, shall be made with the assistance of the

United States Civil Service Commission, under a system of registration to test the relative fitness of applicants for appointment or employment. This system is competitive, and is open to all citizens of the United States qualified in respect to age, physical ability, moral character, industry, and adaptability for manual labor; except that in case of veterans of the Civil War the element of age is omitted. This system of appointment is distinct from the classified service and does not classify positions of mere laborer under the civil-service act and rules. Regulations in aid thereof have been put in operation in several of the Departments and are being gradually extended in other parts of the service. The results have been very satisfactory, as extravagance has been checked by decreasing the number of unnecessary positions and by increasing the efficiency of the employees remaining.

The Congress, as the result of a thorough investigation of the charities and reformatory institutions in the District of Columbia, by a joint select committee of the two Houses which made its report in March, 1898, created in the act approved June 6, 1900, a board of charities for the District of Columbia, to consist of five residents of the District, appointed by the President of the United States, by and with the advice and consent of the Senate, each for a term of three years, to serve without compensation. President McKinley appointed five men who had been active and prominent in the public charities of Washington, all of whom upon taking office July 1, 1900, resigned from the different charities with which they had been connected. The members of the board have been reappointed in successive years. The board serves under the Commissioners of the District of Columbia. The board gave its first year to a careful and impartial study of the special problems before it, and has continued that study every year in the light of the best practice in public charities elsewhere. Its recommendations in its annual reports to the Congress through the Commissions of the District of Columbia “for the economical and efficient administration of the charities and reformatories of the District of Columbia,” as required by the act creating it, have been based upon the principles commended by the joint select committee of the Congress in its

report of March, 1898, and approved by the best administrators of public charities, and make for the desired systematization and improvement of the affairs under its supervision. They are worthy of favorable consideration by the Congress.

The effect of the laws providing a General Staff for the army and for the more effective use of the National Guard has been excellent. Great improvement has been made in the efficiency of our army in recent years. Such schools as those erected at Fort Leavenworth and Fort Riley and the institution of fall manœuvre work accomplish satisfactory results. The good effect of these manœuvres upon the National Guard is marked, and ample appropriation should be made to enable the guardsmen of the several States to share in the benefit. The Government should as soon as possible secure suitable permanent camp sites for military manœuvres in the various sections of the country. The service thereby rendered not only to the Regular Army, but to the National Guard of the several States, will be so great as to repay many times over the relatively small expense. We should not rest satisfied with what has been done, however. The only people who are contented with a system of promotion by mere seniority are those who are contented with the triumph of mediocrity over excellence. On the other hand a system which encouraged the exercise of social or political favoritism in promotions would be even worse. But it would surely be easy to devise a method of promotion from grade to grade in which the opinion of the higher officers of the service upon the candidates should be decisive upon the standing and promotion of the latter. Just such a system now obtains at West Point. The quality of each year's work determines the standing of that year's class, the man being dropped or graduated into the next class in the relative position which his military superiors decide to be warranted by his merit. In other words, ability, energy, fidelity, and all other similar qualities determine the rank of a man year after year in West Point, and his standing in the army when he graduates from West Point; but from that time on, all effort to find which man is best or worst, and reward or punish him accordingly, is abandoned; no brilliancy, no amount of hard work, no eagerness in the performance of duty, can advance him, and no

slackness or indifference that falls short of a court-martial offence can retard him. Until this system is changed we can not hope that our officers will be of as high grade as we have a right to expect, considering the material upon which we draw. Moreover, when a man renders such service as Captain Pershing rendered last spring in the Moro campaign, it ought to be possible to reward him without at once jumping him to the grade of brigadier-general.

Shortly after the enunciation of that famous principle of American foreign policy now known as the “Monroe Doctrine,” President Monroe, in a special Message to Congress on January 30, 1824, spoke as follows: “The navy is the arm from which our Government will always derive most aid in support of our ... rights. Every power engaged in war will know the strength of our naval power, the number of our ships of each class, their condition, and the promptitude with which we may bring them into service, and will pay due consideration to that argument.”

I heartily congratulate the Congress upon the steady progress in building up the American Navy. We can not afford a let-up in this great work. To stand still means to go back. There should be no cessation in adding to the effective units of the fighting strength of the fleet. Meanwhile the Navy Department and the officers of the navy are doing well their part by providing constant service at sea under conditions akin to those of actual warfare. Our officers and enlisted men are learning to handle the battleships, cruisers, and torpedo boats with high efficiency in fleet and squadron formations, and the standard of marksmanship is being steadily raised. The best work ashore is indispensable, but the highest duty of a naval officer is to exercise command at sea.

The establishment of a naval base in the Philippines ought not to be longer postponed. Such a base is desirable in time of peace; in time of war it would be indispensable, and its lack would be ruinous. Without it our fleet would be helpless. Our naval experts are agreed that Subig Bay is the proper place for the purpose. The national interests require that the work of fortification and development of a naval station at Subig Bay be begun at an

early date; for under the best conditions it is a work which will consume much time.

It is eminently desirable, however, that there should be provided a naval general staff on lines similar to those of the General Staff lately created for the army. Within the Navy Department itself the needs of the service have brought about a system under which the duties of a general staff are partially performed; for the Bureau of Navigation has under its direction the War College, the Office of Naval Intelligence, and the Board of Inspection, and has been in close touch with the General Board of the navy. But though under the excellent officers at their head these boards and bureaus do good work, they have not the authority of a general staff, and have not sufficient scope to ensure a proper readiness for emergencies. We need the establishment by law of a body of trained officers, who shall exercise a systematic control of the military affairs of the navy, and be authorized advisers of the Secretary concerning it.

By the act of June 28, 1902, the Congress authorized the President to enter into treaty with Colombia for the building of the canal across the Isthmus of Panama; it being provided that in the event of failure to secure such treaty after the lapse of a reasonable time, recourse should be had to building a canal through Nicaragua. It has not been necessary to consider this alternative, as I am enabled to lay before the Senate a treaty providing for the building of the canal across the Isthmus of Panama. This was the route which commended itself to the deliberate judgment of the Congress, and we can now acquire by treaty the right to construct the canal over this route. The question now, therefore, is not by which route the Isthmian Canal shall be built, for that question has been definitely and irrevocably decided. The question is simply whether or not we shall have an Isthmian Canal.

When the Congress directed that we should take the Panama route under treaty with Colombia, the essence of the condition, of course, referred not to the government which controlled that route, but to the route itself; to the territory across which the route lay, not to the name which for the moment the territory bore on the map. The purpose of the law was to authorize the

President to make a treaty with the power in actual control of the Isthmus of Panama. This purpose has been fulfilled.

In the year 1846 this Government entered into a treaty with New Granada, the predecessor upon the Isthmus of the Republic of Colombia and of the present Republic of Panama, by which treaty it was provided that the Government and citizens of the United States should always have free and open right of way or transit across the Isthmus of Panama by any modes of communication that might be constructed, while in return our Government guaranteed the perfect neutrality of the above-mentioned Isthmus with the view that the free transit from the one to the other sea might not be interrupted or embarrassed. The treaty vested in the United States a substantial property right carved out of the rights of sovereignty and property which New Granada then had and possessed over the said territory. The name of New Granada has passed away and its territory has been divided. Its successor, the Government of Colombia, has ceased to own any property in the Isthmus. A new republic, that of Panama, which was at one time a sovereign state, and at another time a mere department of the successive confederations known as New Granada and Colombia, has now succeeded to the rights which first one and then the other formerly exercised over the Isthmus. But as long as the Isthmus endures, the mere geographical fact of its existence, and the peculiar interest therein which is required by our position, perpetuate the solemn contract which binds the holders of the territory to respect our right to freedom of transit across it, and binds us in return to safeguard for the Isthmus and the world the exercise of that inestimable privilege. The true interpretation of the obligations upon which the United States entered in this treaty of 1846 has been given repeatedly in the utterances of Presidents and Secretaries of State. Secretary Cass in 1858 officially stated the position of this Government as follows:

“The progress of events has rendered the interoceanic route across the narrow portion of Central America vastly important to the commercial world, and especially to the United States, whose possessions extend along the Atlantic and Pacific coasts, and demand the speediest and easiest modes of communication. While the rights of sovereignty of the states occupying this region should always be respected, we shall expect that these rights be exercised in a spirit befitting the occasion and the wants and circumstances

that have arisen. Sovereignty has its duties as well as its rights, and none of these local governments, even if administered with more regard to the just demands of other nations than they have been, would be permitted, in a spirit of Eastern isolation, to close the gates of intercourse on the great highways of the world, and justify the act by the pretension that these avenues of trade and travel belong to them and that they choose to shut them, or, what is almost equivalent, to encumber them with such unjust relations as would prevent their general use.”

Seven years later, in 1865, Mr. Seward in different communications took the following position:

“The United States have taken and will take no interest in any question of internal revolution in the State of Panama, or any State of the United States of Colombia, but will maintain a perfect neutrality in connection with such domestic altercations. The United States will, nevertheless, hold themselves ready to protect the transit trade across the Isthmus against invasion of either domestic or foreign disturbers of the peace of the State of Panama.... Neither the text nor the spirit of the stipulation in that article by which the United States engages to preserve the neutrality of the Isthmus of Panama, imposes an obligation on this Government to comply with the requisition [of the President of the United States of Colombia for a force to protect the Isthmus of Panama from a body of insurgents of that country]. The purpose of the stipulation was to guarantee the Isthmus against seizure or invasion by a foreign power only.”

Attorney-General Speed, under date of November 7, 1865, advised Secretary Seward as follows:

“From this treaty it can not be supposed that New Granada invited the United States to become a party to the intestine troubles of that government, nor did the United States become bound to take sides in the domestic broils of New Granada. The United States did guarantee New Granada in the sovereignty and property over the territory. This was as against other and foreign governments.”

For four hundred years, ever since shortly after the discovery of this hemisphere, the canal across the Isthmus has been planned. For two score years it has been worked at. When made it is to last for the ages. It is to alter the geography of a continent and the trade routes of the world. We have

shown by every treaty we have negotiated or attempted to negotiate with the peoples in control of the Isthmus and with foreign nations in reference thereto our consistent good faith in observing our obligations; on the one hand to the peoples of the Isthmus, and on the other hand to the civilized world whose commercial rights we are safeguarding and guaranteeing by our action. We have done our duty to others in letter and in spirit, and we have shown the utmost forbearance in exacting our own rights.

Last spring, under the act above referred to, a treaty concluded between the representatives of the Republic of Colombia and of our Government was ratified by the Senate. This treaty was entered into at the urgent solicitation of the people of Colombia and after a body of experts appointed by our Government especially to go into the matter of the routes across the Isthmus had pronounced unanimously in favor of the Panama route. In drawing up this treaty every concession was made to the people and to the Government of Colombia. We were more than just in dealing with them. Our generosity was such as to make it a serious question whether we had not gone too far in their interest at the expense of our own; for in our scrupulous desire to pay all possible heed, not merely to the real but even to the fancied rights of our weaker neighbor, who already owed so much to our protection and forbearance, we yielded in all possible ways to her desires in drawing up the treaty. Nevertheless the Government of Colombia not merely repudiated the treaty, but repudiated it in such manner as to make it evident by the time the Colombian Congress adjourned that not the scantiest hope remained of ever getting a satisfactory treaty from them. The Government of Colombia made the treaty, and yet when the Colombian Congress was called to ratify it the vote against ratification was unanimous. It does not appear that the government made any real effort to secure ratification.

Immediately after the adjournment of the Congress a revolution broke out in Panama. The people of Panama had long been discontented with the Republic of Colombia, and they had been kept quiet only by the prospect of the conclusion of the treaty, which was to them a matter of vital concern. When it became evident that the treaty was hopelessly lost, the people of Panama rose literally as one man. Not a shot was fired by a single man on the Isthmus in the interest of the Colombian Government. Not a life was lost in the accomplishment of the revolution. The Colombian troops

stationed on the Isthmus, who had long been unpaid, made common cause with the people of Panama, and with astonishing unanimity the new republic was started. The duty of the United States in the premises was clear. In strict accordance with the principles laid down by Secretaries Cass and Seward in the official documents above quoted, the United States gave notice that it would permit the landing of no expeditionary force, the arrival of which would mean chaos and destruction along the line of the railroad and of the proposed canal, and an interruption of transit as an inevitable consequence. The de facto Government of Panama was recognized in the following telegram to Mr. Ehrman:

“The people of Panama have, by apparently unanimous movement, dissolved their political connection with the Republic of Colombia and resumed their independence. When you are satisfied that a de facto government, republican in form and without substantial opposition from its own people, has been established in the State of Panama, you will enter into relations with it as the responsible government of the territory and look to it for all due action to protect the persons and property of citizens of the United States and to keep open the isthmian transit, in accordance with the obligations of existing treaties governing the relations of the United States to that territory.”

The Government of Colombia was notified of our action by the following telegram to Mr. Beaupré:

“The people of Panama having, by an apparently unanimous movement, dissolved their political connection with the Republic of Colombia and resumed their independence, and having adopted a government of their own, republican in form, with which the Government of the United States of America has entered into relations, the President of the United States, in accordance with the ties of friendship which have so long and so happily existed between the respective nations, most earnestly commends to the Governments of Colombia and of Panama the peaceful and equitable settlement of all questions at issue between them. He holds that he is bound not merely by treaty obligations, but by the interests of civilization, to see that the peaceful traffic of the

world across the Isthmus of Panama shall not longer be disturbed by a constant succession of unnecessary and wasteful wars.”

When these events happened, fifty-seven years had elapsed since the United States had entered into its treaty with New Granada. During that time the Governments of New Granada and of its successor, Colombia, have been in a constant state of flux. The following is a partial list of the disturbances on the Isthmus of Panama during the period in question, as reported to us by our consuls. It is not possible to give a complete list, and some of the reports that speak of “revolutions” must mean unsuccessful revolutions.

May 22, 1850.—Outbreak; two Americans killed. War vessel demanded to quell outbreak.

October, 1850.—Revolutionary plot to bring about independence of the Isthmus.

July 22, 1851.—Revolution in four Southern provinces.

November 14, 1851.—Outbreak at Chagres. Man-of-war requested for Chagres.

June 27, 1853.—Insurrection at Bogota, and consequent disturbance on Isthmus. War vessel demanded.

May 23, 1854.—Political disturbances; war vessel requested.

June 28, 1854.—Attempted revolution.

October 24, 1854.—Independence of Isthmus demanded by provincial legislature.

April, 1856.—Riot, and massacre of Americans.

May 4, 1856.—Riot.

May 18, 1856.—Riot.

June 3, 1856.—Riot.

October 2, 1856.—Conflict between two native parties. United States forces landed.

December 18, 1858.—Attempted secession of Panama.

April, 1859.—Riots.

September, 1860.—Outbreak.

October 4, 1860.—Landing of United States forces in consequence.

May 23, 1861.—Intervention of the United States forces required, by intendente.

October 2, 1861.—Insurrection and civil war.

April 4, 1862.—Measures to prevent rebels crossing Isthmus.

June 13, 1862.—Mosquera's troops refused admittance to Panama.

March, 1865.—Revolution, and United States troops landed.

August, 1865.—Riots; unsuccessful attempt to invade Panama.

March, 1866.—Unsuccessful revolution.

April, 1867.—Attempt to overthrow Government.

August, 1867.—Attempt at revolution.

July 5, 1868.—Revolution; provisional government inaugurated.

August 29, 1868.—Revolution; provisional government overthrown.

April, 1871.—Revolution; followed apparently by counter revolution.

April, 1873.—Revolution and civil war which lasted to October, 1875.

August, 1876.—Civil war which lasted until April, 1877.

July, 1878.—Rebellion.

December, 1878.—Revolt.

April, 1879.—Revolution.

June, 1879.—Revolution.

March, 1883.—Riot.
May, 1883.—Riot.
June, 1884.—Revolutionary attempt.
December, 1884.—Revolutionary attempt.
January, 1885.—Revolutionary disturbances.
March, 1885.—Revolution.
April, 1887.—Disturbance on Panama Railroad.
November, 1887.—Disturbance on line of canal.
January, 1889.—Riot.
January, 1895.—Revolution which lasted until April.
March, 1895.—Incendiary attempt.
October, 1899.—Revolution.
February, 1900, to July, 1900.—Revolution.
January, 1901.—Revolution.
July, 1901.—Revolutionary disturbances.
September, 1901.—City of Colon taken by rebels.
March, 1902.—Revolutionary disturbances.
July, 1902.—Revolution.

The above is only a partial list of the revolutions, rebellions, insurrections, riots, and other outbreaks that have occurred during the period in question; yet they number 53 for the 57 years. It will be noted that one of them lasted for nearly three years before it was quelled; another for nearly a year. In short, the experience of over half a century has shown Colombia to be utterly incapable of keeping order on the Isthmus. Only the active interference of the United States has enabled her to preserve so much as a semblance of sovereignty. Had it not been for the exercise by the United States of the police power in her interest, her connection with the Isthmus would have been sundered long ago. In 1856, in 1860, in 1873, in

1885, in 1901, and again in 1902, sailors and marines from United States warships were forced to land in order to patrol the Isthmus, to protect life and property, and to see that the transit across the Isthmus was kept open. In 1861, in 1862, in 1885, and in 1900, the Colombian Government asked that the United States Government would land troops to protect its interests and maintain order on the Isthmus. Perhaps the most extraordinary request is that which has just been received and which runs as follows:

“Knowing that revolution has already commenced in Panama [an eminent Colombian] says that if the Government of the United States will land troops to preserve Colombian sovereignty, and the transit, if requested by Colombian chargé d’affaires, this government will declare martial law; and, by virtue of vested constitutional authority, when public order is disturbed, will approve by decree the ratification of the canal treaty as signed; or, if the Government of the United States prefers, will call extra session of the Congress—with new and friendly members—next May to approve the treaty. [An eminent Colombian] has the perfect confidence of vice-president, he says, and if it became necessary will go to the Isthmus or send representative there to adjust matters along above lines to the satisfaction of the people there.”

This despatch is noteworthy from two standpoints. Its offer of immediately guaranteeing the treaty to us is in sharp contrast with the positive and contemptuous refusal of the Congress which has just closed its sessions to consider favorably such a treaty; it shows that the government which made the treaty really had absolute control over the situation, but did not choose to exercise this control. The despatch further calls on us to restore order and secure Colombian supremacy in the Isthmus from which the Colombian Government has just by its action decided to bar us by preventing the construction of the canal.

The control, in the interest of the commerce and traffic of the whole civilized world, of the means of undisturbed transit across the Isthmus of Panama has become of transcendent importance to the United States. We have repeatedly exercised this control by intervening in the course of domestic dissension, and by protecting the territory from foreign invasion. In 1853 Mr. Everett assured the Peruvian minister that we should not hesitate to maintain the neutrality of the Isthmus in the case of war between Peru and Colombia. In 1864 Colombia, which has always been vigilant to

avail itself of its privileges conferred by the treaty, expressed its expectation that in the event of war between Peru and Spain the United States would carry into effect the guarantee of neutrality. There have been few administrations of the State Department in which this treaty has not, either by the one side or the other, been used as a basis of more or less important demands. It was said by Mr. Fish in 1871 that the Department of State had reason to believe that an attack upon Colombian sovereignty on the Isthmus had, on several occasions, been averted by warning from this Government. In 1886, when Colombia was under the menace of hostilities from Italy in the Cerruti case, Mr. Bayard expressed the serious concern that the United States could not but feel, that a European power should resort to force against a sister republic of this hemisphere, as to the sovereign and uninterrupted use of a part of whose territory we are guarantors under the solemn faith of a treaty.

The above recital of facts establishes beyond question: First, that the United States has for over half a century patiently and in good faith carried out its obligations under the treaty of 1846; second, that when for the first time it became possible for Colombia to do anything in requital of the services thus repeatedly rendered to it for fifty-seven years by the United States, the Colombian Government peremptorily and offensively refused thus to do its part, even though to do so would have been to its advantage and immeasurably to the advantage of the State of Panama, at that time under its jurisdiction; third, that throughout this period revolutions, riots, and factional disturbances of every kind have occurred one after the other in almost uninterrupted succession, some of them lasting for months and even for years, while the central government was unable to put them down or to make peace with the rebels; fourth, that these disturbances instead of showing any sign of abating have tended to grow more numerous and more serious in the immediate past; fifth, that the control of Colombia over the Isthmus of Panama could not be maintained without the armed intervention and assistance of the United States. In other words, the Government of Colombia, though wholly unable to maintain order on the Isthmus, has nevertheless declined to ratify a treaty the conclusion of which opened the only chance to secure its own stability and to guarantee permanent peace on, and the construction of a canal across, the Isthmus.

Under such circumstances, the Government of the United States would have been guilty of folly and weakness, amounting in their sum to a crime against the Nation, had it acted otherwise than it did when the revolution of November 3 last took place in Panama. This great enterprise of building the interoceanic canal can not be held up to gratify the whims, or out of respect to the governmental impotence, or to the even more sinister and evil political peculiarities, of people who, though they dwell afar off, yet, against the wish of the actual dwellers on the Isthmus, assert an unreal supremacy over the territory. The possession of a territory fraught with such peculiar capacities as the Isthmus in question carries with it obligations to mankind. The course of events has shown that this canal can not be built by private enterprise, or by any other nation than our own; therefore it must be built by the United States.

Every effort has been made by the Government of the United States to persuade Colombia to follow a course which was essentially not only to our interests and to the interests of the world, but to the interests of Colombia itself. These efforts have failed; and Colombia, by her persistence in repulsing the advances that have been made, has forced us, for the sake of our own honor, and of the interest and well-being, not merely of our own people, but of the people of the Isthmus of Panama and the people of the civilized countries of the world, to take decisive steps to bring to an end a condition of affairs which had become intolerable. The new Republic of Panama immediately offered to negotiate a treaty with us. This treaty I herewith submit. By it our interests are better safeguarded than in the treaty with Colombia which was ratified by the Senate at its last session. It is better in its terms than the treaties offered to us by the Republics of Nicaragua and Costa Rica. At last the right to begin this great undertaking is made available. Panama has done her part. All that remains is for the American Congress to do its part and forthwith this Republic will enter upon the execution of a project colossal in its size and of wellnigh incalculable possibilities for the good of this country and the nations of mankind.

By the provisions of the treaty the United States guarantees and will maintain the independence of the Republic of Panama. There is granted to the United States in perpetuity the use, occupation, and control of a strip ten miles wide and extending three nautical miles into the sea at either terminal,

with all lands lying outside of the zone necessary for the construction of the canal or for its auxiliary works, and with the islands in the Bay of Panama. The cities of Panama and Colon are not embraced in the canal zone, but the United States assumes their sanitation and, in case of need, the maintenance of order therein; the United States enjoys within the granted limits all the rights, power, and authority which it would possess were it the sovereign of the territory to the exclusion of the exercise of sovereign rights by the republic. All railway and canal property rights belonging to Panama and needed for the canal pass to the United States, including any property of the respective companies in the cities of Panama and Colon; the works, property, and personnel of the canal and railways are exempted from taxation as well in the cities of Panama and Colon as in the canal zone and its dependencies. Free immigration of the personnel and importation of supplies for the construction and operation of the canal are granted. Provision is made for the use of military force and the building of fortifications by the United States for the protection of the transit. In other details, particularly as to the acquisition of the interests of the New Panama Canal Company and the Panama Railway by the United States and the condemnation of private property for the uses of the canal, the stipulations of the Hay-Herran treaty are closely followed, while the compensation to be given for these enlarged grants remains the same, being ten millions of dollars payable on exchange of ratifications; and, beginning nine years from that date, an annual payment of \$250,000 during the life of the convention.

THEODORE ROOSEVELT.

WHITE HOUSE,
December 7, 1903.

MESSAGE OF THE PRESIDENT OF THE UNITED STATES, COMMUNICATED TO THE TWO HOUSES OF CONGRESS ON JANUARY 4, 1904

To the Senate and House of Representatives:

I lay before the Congress for its information a statement of my action up to this time in executing the act entitled “An act to provide for the construction of a canal connecting the waters of the Atlantic and Pacific Oceans,” approved June 28, 1902.

By the said act the President was authorized to secure for the United States the property of the Panama Canal Company and the perpetual control of a strip six miles wide across the Isthmus of Panama. It was further provided that “should the President be unable to obtain for the United States a satisfactory title to the property of the New Panama Canal Company and the control of the necessary territory of the Republic of Colombia ... within a reasonable time and upon reasonable terms, then the President” should endeavor to provide for a canal by the Nicaragua route. The language quoted defines with exactness and precision what was to be done, and what as a matter of fact has been done. The President was authorized to go to the Nicaragua route only if within a reasonable time he could not obtain “control of the necessary territory of the Republic of Colombia.” This control has now been obtained; the provision of the act has been complied with; it is no longer possible under existing legislation to go to the Nicaragua route as an alternative.

This act marked the climax of the effort on the part of the United States to secure, so far as legislation was concerned, an interoceanic canal across the Isthmus. The effort to secure a treaty for this purpose with one of the

Central American republics did not stand on the same footing with the effort to secure a treaty under any ordinary conditions. The proper position for the United States to assume in reference to this canal, and therefore to the governments of the Isthmus, had been clearly set forth by Secretary Cass in 1858. In my Annual Message I have already quoted what Secretary Cass said; but I repeat the quotation here, because the principle it states is fundamental:

While the rights of sovereignty of the States occupying this region (Central America) should always be respected, we shall expect that these rights be exercised in a spirit befitting the occasion and the wants and circumstances that have arisen. Sovereignty has its duties as well as its rights, and none of these local governments, even if administered with more regard to the just demands of other nations than they have been, would be permitted, in a spirit of Eastern isolation, to close the gates of intercourse on the great highways of the world, and justify the act by the pretension that these avenues of trade and travel belong to them and that they choose to shut them, or, what is almost equivalent, to encumber them with such unjust relations as would prevent their general use.

The principle thus enunciated by Secretary Cass was sound then and it is sound now. The United States has taken the position that no other government is to build the canal. In 1889, when France proposed to come to the aid of the French Panama Company by guaranteeing their bonds, the Senate of the United States in executive session, with only some three votes dissenting, passed a resolution as follows:

That the Government of the United States will look with serious concern and disapproval upon any connection of any European government with the construction or control of any ship canal across the Isthmus of Darien or across Central America, and must regard any such connection or control as injurious to the just rights and interests of the United States and as a menace to their welfare.

Under the Hay-Pauncefote treaty it was explicitly provided that the United States should control, police, and protect the canal which was to be built, keeping it open for the vessels of all nations on equal terms. The United States thus assumed the position of guarantor of the canal and of its peaceful use by all the world. The guarantee included as a matter of course the building of the canal. The enterprise was recognized as responding to an international need; and it would be the veriest travesty on right and justice to treat the governments in possession of the Isthmus as having the right, in the language of Mr. Cass, "to close the gates of intercourse on the great highways of the world, and justify the act by the pretension that these avenues of trade and travel belong to them and that they choose to shut them."

When this Government submitted to Colombia the Hay-Herran treaty three things were, therefore, already settled.

One was that the canal should be built. The time for delay, the time for permitting the attempt to be made by private enterprise, the time for permitting any government of anti-social spirit and of imperfect development to bar the work, was past. The United States had assumed in connection with the canal certain responsibilities not only to its own people, but to the civilized world, which imperatively demanded that there should no longer be delay in beginning the work.

Second. While it was settled that the canal should be built without unnecessary or improper delay, it was no less clearly shown to be our purpose to deal not merely in a spirit of justice but in a spirit of generosity with the people through whose land we might build it. The Hay-Herran treaty, if it erred at all, erred in the direction of an overgenerosity toward the Colombian Government. In our anxiety to be fair we had gone to the very verge in yielding to a weak nation's demands what that nation was helplessly unable to enforce from us against our will. The only criticisms made upon the Administration for the terms of the Hay-Herran treaty were for having granted too much to Colombia, not for failure to grant enough. Neither in the Congress nor in the public press, at the time that this treaty was formulated, was there complaint that it did not in the fullest and amplest manner guarantee to Colombia everything that she could by any color of title demand.

Nor is the fact to be lost sight of that the rejected treaty, while generously responding to the pecuniary demands of Colombia, in other respects merely provided for the construction of the canal in conformity with the express requirements of the act of the Congress of June 28, 1902. By that act, as heretofore quoted, the President was authorized to acquire from Colombia, for the purposes of the canal, "perpetual control" of a certain strip of land; and it was expressly required that the "control" thus to be obtained should include "jurisdiction" to make police and sanitary regulations and to establish such judicial tribunals as might be agreed on for their enforcement. These were conditions precedent prescribed by the Congress; and for their fulfilment suitable stipulations were embodied in the treaty. It has been stated in public prints that Colombia objected to these stipulations, on the ground that they involved a relinquishment of her "sovereignty"; but in the light of what has taken place, this alleged objection must be considered as an afterthought. In reality, the treaty, instead of requiring a cession of Colombia's sovereignty over the canal strip, expressly acknowledged, confirmed, and preserved her sovereignty over it. The treaty in this respect simply proceeded on the lines on which all the negotiations leading up to the present situation have been conducted. In those negotiations the exercise by the United States, subject to the paramount rights of the local sovereign, of a substantial control over the canal and the immediately adjacent territory, has been treated as a fundamental part of any arrangement that might be made. It has formed an essential feature of all our plans, and its necessity is fully recognized in the Hay-Pauncefote treaty. The Congress, in providing that such control should be secured, adopted no new principle, but only incorporated in its legislation a condition the importance and propriety of which were universally recognized. During all the years of negotiation and discussion that preceded the conclusion of the Hay-Herran treaty, Colombia never intimated that the requirement by the United States of control over the canal strip would render unattainable the construction of a canal by way of the Isthmus of Panama; nor were we advised, during the months when legislation of 1902 was pending before the Congress, that the terms which it embodied would render negotiations with Colombia impracticable. It is plain that no nation could construct and guarantee the neutrality of the canal with a less degree of control than was stipulated for in the Hay-Herran treaty. A refusal to grant such degree of control was necessarily a refusal to make any

practicable treaty at all. Such refusal therefore squarely raised the question whether Colombia was entitled to bar the transit of the world's traffic across the Isthmus.

That the canal itself was eagerly demanded by the people of the locality through which it was to pass, and that the people of this locality no less eagerly longed for its construction under American control, are shown by the unanimity of action in the new Panama Republic. Furthermore, Colombia, after having rejected the treaty in spite of our protests and warnings when it was in her power to accept it, has since shown the utmost eagerness to accept the same treaty if only the status quo could be restored. One of the men standing highest in the official circles of Colombia, on November 6, addressed the American minister at Bogota, saying that if the Government of the United States would land troops to preserve Colombian sovereignty and the transit, the Colombian Government would "declare martial law; and, by virtue of vested constitutional authority, when public order is disturbed, [would] approve by decree the ratification of the canal treaty as signed; or, if the Government of the United States prefers, [would] call extra session of the Congress—with new and friendly members—next May to approve the treaty." Having these facts in view, there is no shadow of question that the Government of the United States proposed a treaty which was not merely just, but generous to Colombia, which our people regarded as erring, if at all, on the side of overgenerosity; which was hailed with delight by the people of the immediate locality through which the canal was to pass, who were most concerned as to the new order of things, and which the Colombian authorities now recognize as being so good that they are willing to promise its unconditional ratification if only we will desert those who have shown themselves our friends and restore to those who have shown themselves unfriendly the power to undo what they did. I pass by the question as to what assurance we have that they would now keep their pledge and not again refuse to ratify the treaty if they had the power; for, of course, I will not for one moment discuss the possibility of the United States committing an act of such baseness as to abandon the new Republic of Panama.

Third. Finally the Congress definitely settled where the canal was to be built. It was provided that a treaty should be made for building the canal across the Isthmus of Panama; and if, after reasonable time, it proved

impossible to secure such treaty, that then we should go to Nicaragua. The treaty has been made; for it needs no argument to show that the intent of the Congress was to ensure a canal across Panama, and that whether the republic granting the title was called New Granada, Colombia, or Panama mattered not one whit. As events turned out, the question of “reasonable time” did not enter into the matter at all. Although, as the months went by, it became increasingly improbable that the Colombian Congress would ratify the treaty or take steps which would be equivalent thereto, yet all chance for such action on their part did not vanish until the Congress closed at the end of October; and within three days thereafter the revolution in Panama had broken out. Panama became an independent state, and the control of the territory necessary for building the canal then became obtainable. The condition under which alone we could have gone to Nicaragua thereby became impossible of fulfilment. If the pending treaty with Panama should not be ratified by the Senate this would not alter the fact that we could not go to Nicaragua. The Congress has decided the route, and there is no alternative under existing legislation.

When in August it began to appear probable that the Colombian Legislature would not ratify the treaty, it became incumbent upon me to consider well what the situation was and to be ready to advise the Congress as to what were the various alternatives of action open to us. There were several possibilities. One was that Colombia would at the last moment see the unwisdom of her position. That there might be nothing omitted, Secretary Hay, through the minister at Bogota, repeatedly warned Colombia that grave consequences might follow from her rejection of the treaty. Although it was a constantly diminishing chance, yet the possibility of ratification did not wholly pass away until the close of the session of the Colombian Congress.

A second alternative was that by the close of the session on the last day of October, without the ratification of the treaty by Colombia and without any steps taken by Panama, the American Congress on assembling early in November would be confronted with a situation in which there had been a failure to come to terms as to building the canal along the Panama route, and yet there had not been a lapse of a reasonable time—using the word reasonable in any proper sense—such as would justify the Administration going to the Nicaragua route. This situation seemed on the whole the most

likely, and as a matter of fact I had made the original draft of my Message to the Congress with a view to its existence.

It was the opinion of eminent international jurists that in view of the fact that the great design of our guarantee under the treaty of 1846 was to dedicate the Isthmus to the purposes of interoceanic transit, and above all to secure the construction of an interoceanic canal, Colombia could not under existing conditions refuse to enter into a proper arrangement with the United States to that end, without violating the spirit and substantially repudiating the obligations of a treaty the full benefits of which she had enjoyed for over fifty years. My intention was to consult the Congress as to whether under such circumstances it would not be proper to announce that the canal was to be dug forthwith; that we would give the terms that we had offered and no others; and that if such terms were not agreed to we would enter into an arrangement with Panama direct, or take what other steps were needful in order to begin the enterprise.

A third possibility was that the people of the Isthmus, who had formerly constituted an independent state, and who until recently were united to Colombia only by a loose tie of federal relationship, might take the protection of their own vital interests into their own hands, reassert their former rights, declare their independence upon just grounds, and establish a government competent and willing to do its share in this great work for civilization. This third possibility is what actually occurred. Every one knew that it was a possibility, but it was not until toward the end of October that it appeared to be an imminent probability. Although the Administration, of course, had special means of knowledge, no such means were necessary in order to appreciate the possibility, and toward the end the likelihood, of such a revolutionary outbreak and of its success. It was a matter of common notoriety. Quotations from the daily papers could be indefinitely multiplied to show this state of affairs; a very few will suffice. From Costa Rica on August 31 a special was sent to the Washington "Post," running as follows:

SAN JOSE, COSTA RICA,
August 31

Travelers from Panama report the Isthmus alive with fires of a new revolution. It is inspired, it is believed, by men who, in Panama and Colon, have systematically engendered the pro-

American feeling to secure the building of the Isthmian Canal by the United States.

The Indians have risen, and the late followers of Gen. Benjamin Herrera are mustering in the mountain villages, preparatory to joining in an organized revolt, caused by the rejection of the canal treaty.

Hundreds of stacks of arms, confiscated by the Colombian Government at the close of the late revolution, have reappeared from some mysterious source, and thousands of rifles that look suspiciously like the Mausers the United States captured in Cuba are issuing to the gathering forces from central points of distribution. With the arms goes ammunition, fresh from factories, showing the movement is not spasmodic, but is carefully planned.

The government forces in Panama and Colon, numbering less than 1,500 men, are reported to be a little more than friendly to the revolutionary spirit. They have been ill paid since the revolution closed, and their only hope of prompt payment is another war.

General Huertes, commander of the forces, who is ostensibly loyal to the Bogota Government, is said to be secretly friendly to the proposed revolution. At least, all his personal friends are open in denunciation of the Bogota Government and the failure of the Colombian Congress to ratify the canal treaty.

The consensus of opinion gathered from late arrivals from the Isthmus is that the revolution is coming, and that it will succeed.

A special despatch to the Washington "Post," under date of New York, September 1, runs as follows:

B. G. Duque, editor and proprietor of the "Panama Star and Herald," a resident of the Isthmus during the past twenty-seven years, who arrived to-day in New York, declared that if the canal treaty fell through a revolution would be likely to follow.

"There is a very strong feeling in Panama," said Mr. Duque, "that Colombia, in negotiating the sale of a canal concession in

Panama, is looking for profits that might just as well go to Panama herself.

“The Colombian Government, only the other day, suppressed a newspaper that dared to speak of independence for Panama. A while ago there was a secret plan afoot to cut loose from Colombia and seek the protection of the United States.”

In the New York “Herald” of September 10 the following statement appeared:

Representatives of strong interests on the Isthmus of Panama, who make their headquarters in this city, are considering a plan of action to be undertaken in co-operation with men of similar views in Panama and Colon to bring about a revolution and form an independent government in Panama opposed to that in Bogota.

There is much indignation on the Isthmus on account of the failure of the canal treaty, which is ascribed to the authorities at Bogota. This opinion is believed to be shared by a majority of the Isthmians of all shades of political belief, and they think it is to their best interest for a new republic to be formed on the Isthmus, which may negotiate directly with the United States a new treaty which will permit the digging of the Panama Canal under favorable conditions.

In the New York “Times,” under date of September 13, there appeared from Bogota the following statement:

A proposal made by Señor Perez y Sotos to ask the Executive to appoint an anti-secessionist governor in Panama has been approved by the Senate. Speakers in the Senate said that Señor Obaldía, who was recently appointed Governor of Panama, and who is favorable to a canal treaty, was a menace to the national integrity. Senator Marroquín protested against the action of the Senate.

President Marroquín succeeded later in calming the Congressmen. It appears that he was able to give them satisfactory reasons for Governor Obaldía’s appointment. He

appears to realize the imminent peril of the Isthmus of Panama declaring its independence.

Señor Deroux, representative for a Panama constituency, recently delivered a sensational speech in the House. Among other things he said:

“In Panama the bishops, governors, magistrates, military chiefs, and their subordinates have been and are foreign to the department. It seems that the government, with surprising tenacity, wishes to exclude the Isthmus from all participation in public affairs. As regards international dangers in the Isthmus, all I can say is that if these dangers exist they are due to the conduct of the national government, which is in the direction of reaction.

“If the Colombian Government will not take action with a view to preventing disaster, the responsibility will rest with it alone.”

In the New York “Herald” of October 26 it was reported that a revolutionary expedition of about 70 men had actually landed on the Isthmus. In the Washington “Post” of October 29 it was reported from Panama that in view of the impending trouble on the Isthmus the Bogota Government had gathered troops in sufficient numbers to at once put down an attempt at secession. In the New York “Herald” of October 30 it was announced from Panama that Bogota was hurrying troops to the Isthmus to put down the projected revolt. In the New York “Herald” of November 2 it was announced that in Bogota the Congress had indorsed the energetic measures taken to meet the situation on the Isthmus and that 6,000 men were about to be sent thither.

Quotations like the above could be multiplied indefinitely. Suffice it to say that it was notorious that revolutionary trouble of a serious nature was impending upon the Isthmus. But it was not necessary to rely exclusively upon such general means of information. On October 15 Commander Hubbard, of the navy, notified the Navy Department that, though things were quiet on the Isthmus, a revolution had broken out in the State of

Cauca. On October 16, at the request of Lieutenant-General Young, I saw Capt. C. B. Humphrey and Lieut. Grayson Mallet-Prevost Murphy, who had just returned from a four months' tour through the northern portions of Venezuela and Colombia. They stopped in Panama on their return in the latter part of September. At the time they were sent down there had been no thought of their going to Panama, and their visit to the Isthmus was but an unpremeditated incident of their return journey; nor had they been spoken to by any one at Washington regarding the possibility of a revolt. Until they landed at Colon they had no knowledge that a revolution was impending, save what they had gained from the newspapers. What they saw in Panama so impressed them that they reported thereon to Lieutenant-General Young, according to his memorandum—

that while on the Isthmus they became satisfied beyond question that, owing largely to the dissatisfaction because of the failure of Colombia to ratify the Hay-Herran treaty, a revolutionary party was in course of organization having for its object the separation of the State of Panama from Colombia, the leader being Dr. Richard Arango, a former governor of Panama; that when they were on the Isthmus arms and ammunition were being smuggled into the city of Colon in piano boxes, merchandise crates, etc., the small arms received being principally the Gras French rifle, the Remington, and the Mauser; that nearly every citizen in Panama had some sort of rifle or gun in his possession, with ammunition therefor; that in the city of Panama there had been organized a fire brigade which was really intended for a revolutionary military organization; that there were representatives of the revolutionary organization at all-important points on the Isthmus; that in Panama, Colon, and the other principal places of the Isthmus police forces had been organized which were in reality revolutionary forces; that the people on the Isthmus seemed to be unanimous in their sentiment against the Bogota Government, and their disgust over the failure of that government to ratify the treaty providing for the construction of the canal, and that a revolution might be expected immediately upon the adjournment of the Colombian Congress without ratification of the treaty.

Lieutenant-General Young regarded their report as of such importance as to make it advisable that I should personally see these officers. They told me what they had already reported to the Lieutenant-General, adding that

on the Isthmus the excitement was seething, and that the Colombian troops were reported to be disaffected. In response to a question of mine they informed me that it was the general belief that the revolution might break out at any moment, and if it did not happen before, would doubtless take place immediately after the closing of the Colombian Congress (at the end of October) if the canal treaty were not ratified. They were certain that the revolution would occur, and before leaving the Isthmus had made their own reckoning as to the time, which they had set down as being probably from three to four weeks after their leaving. The reason they set this as the probable inside limit of time was that they reckoned that it would be at least three or four weeks—say not until October 20—before a sufficient quantity of arms and munitions would have been landed.

In view of all these facts I directed the Navy Department to issue instructions such as would ensure our having ships within easy reach of the Isthmus in the event of need arising. Orders were given on October 19 to the *Boston* to proceed to San Juan del Sur, Nicaragua; to the *Dixie* to prepare to sail from League Island; and to the *Atlanta* to proceed to Guantanamo. On October 30 the *Nashville* was ordered to proceed to Colon. On November 2, when, the Colombian Congress having adjourned, it was evident that the outbreak was imminent, and when it was announced that both sides were making ready forces whose meeting would mean bloodshed and disorder, the Colombian troops having been embarked on vessels, the following instructions were sent to the commanders of the *Boston*, *Nashville*, and *Dixie*:

Maintain free and uninterrupted transit. If interruption is threatened by armed force, occupy the line of railroad. Prevent landing of any armed force with hostile intent, either government or insurgent, at any point within 50 miles of Panama. Government force reported approaching the Isthmus in vessels. Prevent their landing if, in your judgment, the landing would precipitate a conflict.

These orders were delivered in pursuance of the policy on which our Government had repeatedly acted. This policy was exhibited in the following orders, given under somewhat similar circumstances last year,

and the year before, and the year before that. The first two telegrams are from the Department of State to the consul at Panama:

JULY 25, 1900

You are directed to protest against any act of hostility which may involve or imperil the safe and peaceful transit of persons or property across the Isthmus of Panama. The bombardment of Panama would have this effect, and the United States must insist upon the neutrality of the Isthmus as guaranteed by the treaty.

NOVEMBER 20, 1901

Notify all parties molesting or interfering with free transit across the Isthmus that such interference must cease and that the United States will prevent the interruption of traffic upon the railroad. Consult with captain of the *Iowa*, who will be instructed to land marines, if necessary, for the protection of the railroad, in accordance with the treaty rights and obligations of the United States. Desirable to avoid bloodshed, if possible.

The next three telegrams are from and to the Secretary of the Navy:

SEPTEMBER 12, 1902

RANGER, *Panama*:

United States guarantees perfect neutrality of Isthmus and that a free transit from sea to sea be not interrupted or embarrassed.... Any transportation of troops which might contravene these provisions of treaty should not be sanctioned by you nor should use of road be permitted which might convert the line of transit into theatre of hostility.

MOODY.

COLON,
September 20, 1902

SECRETARY NAVY, *Washington*:

Everything is conceded. The United States guards and guarantees traffic and the line of transit. To-day I permitted the exchange of Colombian troops from Panama to Colon, about 1,000 men each way, the troops without arms in train guarded by American naval force in the same manner as other passengers; arms and ammunition in separate train, guarded also by naval force in the same manner as other freight.

McLEAN.

PANAMA,
October 3, 1902

SECRETARY NAVY, *Washington, D. C.:*

Have sent this communication to the American consul at Panama:

“Inform Governor while trains running under United States protection I must decline transportation any combatants, ammunition, arms, which might cause interruption traffic or convert line of transit into theatre hostilities.”

CASEY.

On November 3 Commander Hubbard responded to the above-quoted telegram of November 2, 1903, saying that before the telegram had been received 400 Colombian troops from Cartagena had landed at Colon; that there had been no revolution on the Isthmus, but that the situation was most critical if the revolutionary leaders should act. On this same date the Associated Press in Washington received a bulletin stating that a revolutionary outbreak had occurred. When this was brought to the attention of the Assistant Secretary of State, Mr. Loomis, he prepared the following cablegram to the consul-general at Panama and the consul at Colon:

Uprising on Isthmus reported. Keep Department promptly and fully informed.

Before this telegram was sent, however, one was received from Consul Malmros at Colon, running as follows:

Revolution imminent. Government force on the Isthmus about 500 men. Their official promised support revolution. Fire department, Panama, 441, are well organized and favor revolution. Government vessel, *Cartagena*, with about 400 men, arrived early to-day with new commander-in-chief, Tobar. Was not expected until November 10. Tobar's arrival is not probable to stop revolution.

This cablegram was received at 2.35 P.M., and at 3.40 P.M. Mr. Loomis sent the telegram which he had already prepared to both Panama and Colon. Apparently, however, the consul-general at Panama had not received the information embodied in the Associated Press bulletin, upon which the Assistant Secretary of State based his dispatch; for his answer was that there was no uprising, although the situation was critical, this answer being received at 8.15 P.M. Immediately afterward he sent another dispatch, which was received at 9.50 P.M., saying that the uprising had occurred, and had been successful, with no bloodshed. The Colombian gunboat *Bogota* next day began to shell the city of Panama, with the result of killing one Chinaman. The consul-general was directed to notify her to stop firing. Meanwhile, on November 4, Commander Hubbard notified the Department that he had landed a force to protect the lives and property of American citizens against the threats of the Colombian soldiery.

Before any step whatever had been taken by the United States troops to restore order, the commander of the newly landed Colombian troops had indulged in wanton and violent threats against American citizens, which created serious apprehension. As Commander Hubbard reported in his letter of November 5, this officer and his troops practically began war against the United States, and only the forbearance and coolness of our officers and men prevented bloodshed. The letter of Commander Hubbard is of such interest that it deserves quotation in full, and runs as follows:

U. S. S. NASHVILLE, THIRD RATE,
Colon, U. S. Colombia, November 5, 1903

SIR: Pending a complete report of the occurrences of the last three days in Colon, Colombia, I most respectfully invite the Department's attention to those of the date of Wednesday, November 4, which amounted to practically the making of war against the United States by the officer in command of the Colombian troops in Colon. At 1 o'clock P.M. on that date I was summoned on shore by a preconcerted signal, and on landing met the United States consul, vice-consul, and Colonel Shaler, the general superintendent of the Panama Railroad. The consul informed me that he had received notice from the officer commanding the Colombian troops, Colonel Torres, through the prefect of Colon, to the effect that if the Colombian officers, Generals Tobal and Amaya, who had been seized in Panama on the evening of the 3d of November by the Independents and held as prisoners, were not released by 2 o'clock P.M., he, Torres, would open fire on the town of Colon and kill every United States citizen in the place, and my advice and action were requested. I advised that all the United States citizens should take refuge in the shed of the Panama Railroad Company, a stone building susceptible of being put into good state for defence, and that I would immediately land such body of men with extra arms for arming the citizens, as the complement of the ship would permit. This was agreed to, and I immediately returned on board, arriving at 1.15 P.M. The order for landing was immediately given, and at 1.30 P.M. the boats left the ship with a party of 42 men under the command of Lieut.-Commander H. M. Witzel, with Midshipman J. P. Jackson as second in command. Time being pressing I gave verbal orders to Mr. Witzel to take the building above referred to, to put it into the best state of defence possible, and protect the lives of the citizens assembled there—not firing unless fired upon. The women and children took refuge on the German steamer *Marcomania* and Panama Railroad steamer *City of Washington*, both ready to haul out from dock if necessary. The *Nashville* I got under way and patrolled with her along the water front close in and ready to use either small-arm or shrapnel fire. The Colombians surrounded the building of the railroad company almost immediately after we had taken possession, and for about

one and a half hours their attitude was most threatening, it being seemingly their purpose to provoke an attack. Happily our men were cool and steady, and, while the tension was very great, no shot was fired. At about 3.15 P.M. Colonel Torres came into the building for an interview and expressed himself as most friendly to Americans, claiming that the whole affair was a misapprehension and that he would like to send the alcalde of Colon to Panama to see General Tobal and have him direct the discontinuance of the show of force. A special train was furnished and safe conduct guaranteed. At about 5.30 P.M. Colonel Torres made the proposition of withdrawing his troops to Monkey Hill, if I would withdraw the *Nashville's* force and leave the town in possession of the police until the return of the alcalde on the morning of the 5th. After an interview with the United States consul and Colonel Shaler as to the probability of good faith in the matter, I decided to accept the proposition and brought my men on board, the disparity in numbers between my force and that of the Colombians, nearly ten to one, making me desirous of avoiding a conflict so long as the object in view, the protection of American citizens, was not imperiled.

I am positive that the determined attitude of our men, their coolness and evident intention of standing their ground, had a most salutary and decisive effect on the immediate situation, and was the initial step in the ultimate abandoning of Colon by these troops and their return to Cartagena the following day. Lieutenant-Commander Witzel is entitled to much praise for his admirable work in command on the spot.

I feel that I can not sufficiently strongly represent to the Department the grossness of this outrage and the insult to our dignity, even apart from the savagery of the threat.

Very respectfully,

JOHN HUBBARD,

Commander, U. S. Navy,

Commanding.

THE SECRETARY OF THE NAVY,
Navy Department, Washington, D. C.

In his letter of November 8 Commander Hubbard sets forth the facts more in detail:

U. S. S. NASHVILLE, THIRD RATE,
Porto Bello, U. S. Colombia, November 8, 1903

SIR: 1. I have the honor to make the following report of the occurrences which took place at Colon and Panama in the interval between the arrival of the *Nashville* at Colon on the evening of November 2, 1903, and the evening of November 5, 1903, when by the arrival of the U. S. S. *Dixie* at Colon I was relieved as senior officer by Commander F. H. Delano, U. S. Navy.

2. At the time of the arrival of the *Nashville* at Colon at 5.30 P.M. on November 2 everything on the Isthmus was quiet. There was talk of proclaiming the independence of Panama, but no definite action had been taken and there had been no disturbance of peace and order. At daylight on the morning of November 3 it was found that a vessel which had come in during the night was the Colombian gunboat *Cartagena* carrying between 400 and 500 troops. I had her boarded and learned that these troops were for the garrison at Panama. Inasmuch as the Independent party had not acted and the Government of Colombia was at the time in undisputed control of the Province of Panama, I did not feel, in the absence of any instructions, that I was justified in preventing the landing of these troops, and at 8.30 o'clock they were disembarked. The commanding officers, Generals Amaya and Tobal, with four others, immediately went over to Panama to make arrangements for receiving and quartering their troops, leaving the command in charge of an officer whom I later learned to be Colonel Torres. The Department's message addressed to the care of the United States consul I received at 10.30 A.M.; it was delivered to one of the ship's boats while I was at the consul's and not to the consul as addressed. The message was said to have been received at the cable office at 9.30 A.M. Immediately on deciphering the message I went on shore to see what

arrangements the railroad company had made for the transportation of these troops to Panama, and learned that the company would not transport them except on request of the Governor of Panama, and that the prefect at Colon and the officer left in command of the troops had been so notified by the general superintendent of the Panama Railroad Company. I remained at the company's office until it was sure that no action on my part would be needed to prevent the transportation of the troops that afternoon, when I returned on board and cabled the Department the situation of affairs. At about 5.30 P.M. I again went on shore, and received notice from the general superintendent of the railroad that he had received the request for the transportation of the troops and that they would leave on the 8 A.M. train on the following day. I immediately went to see the general superintendent, and learned that it had just been announced that a provisional government had been established at Panama—that Generals Amaya and Tobal, the Governor of Panama, and four officers, who had gone to Panama in the morning, had been seized and were held as prisoners; that they had an organized force of 1,500 troops and wished the government troops in Colon to be sent over. This I declined to permit, and verbally prohibited the general superintendent from giving transportation to the troops of either party.

It being then late in the evening, I sent early in the morning of November 4 written notification to the general superintendent of the Panama Railroad, to the prefect of Colon, and to the officer left in command of the Colombian troops, later ascertained to be Colonel Torres, that I had prohibited the transportation of troops in either direction, in order to preserve the free and uninterrupted transit of the Isthmus. Copies of these letters are hereto appended; also copy of my notification to the consul. Except to a few people, nothing was known in Colon of the proceedings in Panama until the arrival of the train at 10.45 on the morning of the 4th. Some propositions were, I was later told, made to Colonel Torres by the representatives of the new Government at Colon, with a view to inducing him to re-embark in the *Cartagena* and return to the port of Cartagena, and it was in answer to this

proposition that Colonel Torres made the threat and took the action reported in my letter No. 96, of November 5, 1903. The *Cartagena* left the port just after the threat was made, and I did not deem it expedient to attempt to detain her, as such action would certainly, in the then state of affairs, have precipitated a conflict on shore which I was not prepared to meet. It is my understanding that she returned to Cartagena. After the withdrawal of the Colombian troops on the evening of November 4, and the return of the *Nashville's* force on board, as reported in my letter No. 96, there was no disturbance on shore, and the night passed quietly. On the morning of the 5th I discovered that the commander of the Colombian troops had not withdrawn so far from the town as he had agreed, but was occupying buildings near the outskirts of the town. I immediately inquired into the matter and learned that he had some trivial excuse for not carrying out his agreement, and also that it was his intention to occupy Colon again on the arrival of the alcalde due at 10.45 A.M., unless General Tobal sent word by the alcalde that he, Colonel Torres, should withdraw. That General Tobal had declined to give any instructions I was cognizant of, and the situation at once became quite as serious as on the day previous. I immediately landed an armed force, reoccupied the same building; also landed two 1-pounders and mounted them on platform cars behind protection of cotton bales, and then in company with the United States consul had an interview with Colonel Torres, in the course of which I informed him that I had relanded my men because he had not kept his agreement; that I had no interest in the affairs of either party; that my attitude was strictly neutral; that the troops of neither side should be transported; that my sole purpose in landing was to protect the lives and property of American citizens if threatened, as they had been threatened, and to maintain the free and uninterrupted transit of the Isthmus, and that purpose I should maintain by force if necessary. I also strongly advised that in the interests of peace, and to prevent the possibility of a conflict that could not but be regrettable, he should carry out his agreement of the previous evening and withdraw to Monkey Hill.

Colonel Torres's only reply was that it was unhealthy at Monkey Hill, a reiteration of his love of Americans, and persistence in his intention to occupy Colon, should General Tobal not give him directions to the contrary.

On the return of the *alcalde* at about 11 A.M. the Colombian troops marched into Colon, but did not assume the threatening demeanor of the previous day. The American women and children again went on board the *Marcomania* and *City of Washington*, and through the British vice-consul I offered protection to British subjects as directed in the Department's cablegram. A copy of the British vice-consul's acknowledgment is hereto appended. The *Nashville* I got under way as on the previous day and moved close in to protect the water front. During the afternoon several propositions were made to Colonel Torres by the representatives of the new government, and he was finally persuaded by them to embark on the Royal Mail steamer *Orinoco* with all his troops and return to Cartagena. The *Orinoco* left her dock with the troops—474 all told—at 7.35 P.M. The *Dixie* arrived and anchored at 7.05 P.M., when I went on board and acquainted the commanding officer with the situation. A portion of the marine battalion was landed and the *Nashville*'s force withdrawn.

3. On the evening of November 4 Major William M. Black and Lieut. Mark Brooke, Corps of Engineers, U. S. Army, came to Colon from Culebra and volunteered their services, which were accepted, and they rendered very efficient help on the following day.

4. I beg to assure the Department that I had no part whatever in the negotiations that were carried on between Colonel Torres and the representatives of the provisional government; that I landed an armed force only when the lives of American citizens were threatened, and withdrew this force as soon as there seemed to be no grounds for further apprehension of injury to American lives or property; that I relanded an armed force because of the failure of Colonel Torres to carry out his agreement to withdraw and announced intention of returning, and that my attitude throughout was strictly neutral as between the two parties, my only purpose

being to protect the lives and property of American citizens and to preserve the free and uninterrupted transit of the Isthmus.

Very respectfully,

(Signed) JOHN HUBBARD,
Commander, U. S. Navy, Commanding.

THE SECRETARY OF THE NAVY,
Bureau of Navigation, Navy Department,
Washington, D. C.

This plain official account of the occurrences of November 4 shows that, instead of there having been too much prevision by the American Government for the maintenance of order and the protection of life and property on the Isthmus, the orders for the movement of the American warships had been too long delayed; so long, in fact, that there were but forty-two marines and sailors available to land and protect the lives of American men and women. It was only the coolness and gallantry with which this little band of men wearing the American uniform faced ten times their number of armed foes, bent on carrying out the atrocious threat of the Colombian commander, that prevented a murderous catastrophe. At Panama, when the revolution broke out, there was no American man-of-war and no American troops or sailors. At Colon, Commander Hubbard acted with entire impartiality toward both sides, preventing any movement, whether by the Colombians or the Panamans, which would tend to produce bloodshed. On November 9 he prevented a body of the revolutionists from landing at Colon. Throughout he behaved in the most creditable manner. In the New York "Evening Post," under date of Panama, December 8, there is an article from a special correspondent, which sets forth in detail the unbearable oppression of the Colombian Government in Panama. In this article is an interesting interview with a native Panaman, which runs in part as follows:

... We looked upon the building of the canal as a matter of life or death to us. We wanted that because it meant, with the United States in control of it, peace and prosperity for us. President Marroquin appointed an Isthmian to be governor of Panama; and we looked upon that as of happy augury. Soon we heard that the canal treaty was not likely to be approved at Bogota; next

we heard that our Isthmian Governor, Obaldía, who had scarcely assumed power, was to be superseded by a soldier from Bogota....

Notwithstanding all that Colombia has drained us of in the way of revenues, she did not bridge for us a single river, nor make a single roadway, nor erect a single college where our children could be educated, nor do anything at all to advance our industries.... Well, when the new generals came we seized them, arrested them, and the town of Panama was in joy. Not a protest was made, except the shots fired from the Colombian gunboat *Bogota*, which killed one Chinese lying in his bed. We were willing to encounter the Colombian troops at Colon and fight it out; but the commander of the United States cruiser *Nashville* forbade Superintendent Shaler to allow the railroad to transport troops for either party. That is our story.

I call especial attention to the concluding portion of this interview, which states the willingness of the Panama people to fight the Colombian troops and the refusal of Commander Hubbard to permit them to use the railroad and therefore to get into a position where the fight could take place. It thus clearly appears that the fact that there was no bloodshed on the Isthmus was directly due—and only due—to the prompt and firm enforcement by the United States of its traditional policy. During the past forty years revolutions and attempts at revolution have succeeded one another with monotonous regularity on the Isthmus, and again and again United States sailors and marines have been landed as they were landed in this instance and under similar instructions to protect the transit. One of these revolutions resulted in three years of warfare; and the aggregate of bloodshed and misery caused by them has been incalculable. The fact that in this last revolution not a life was lost, save that of the man killed by the shells of the Colombian gunboat, and no property destroyed, was due to the action which I have described. We, in effect, policed the Isthmus in the interest of its inhabitants and of our own national needs, and for the good of the entire civilized world. Failure to act as the Administration acted would have meant great waste of life, great suffering, great destruction of property; all of which was avoided by the firmness and prudence with which

Commander Hubbard carried out his orders and prevented either party from attacking the other. Our action was for the peace both of Colombia and of Panama. It is earnestly to be hoped that there will be no unwise conduct on our part which may encourage Colombia to embark on a war which can not result in her regaining control of the Isthmus, but which may cause much bloodshed and suffering.

I hesitate to refer to the injurious insinuations which have been made of complicity by this government in the revolutionary movement in Panama. They are as destitute of foundation as of propriety. The only excuse for my mentioning them is the fear lest unthinking persons might mistake for acquiescence the silence of mere self-respect. I think proper to say, therefore, that no one connected with this Government had any part in preparing, inciting, or encouraging the late revolution on the Isthmus of Panama, and that save from the reports of our military and naval officers, given above, no one connected with this Government had any previous knowledge of the revolution except such as was accessible to any person of ordinary intelligence who read the newspapers and kept up a current acquaintance with public affairs.

By the unanimous action of its people, without the firing of a shot—with a unanimity hardly before recorded in any similar case—the people of Panama declared themselves an independent republic. Their recognition by this Government was based upon a state of facts in no way dependent for its justification upon our action in ordinary cases. I have not denied, nor do I wish to deny, either the validity or the propriety of the general rule that a new state should not be recognized as independent till it has shown its ability to maintain its independence. This rule is derived from the principle of non-intervention, and as a corollary of that principle has generally been observed by the United States. But, like the principle from which it is deduced, the rule is subject to exceptions; and there are in my opinion clear and imperative reasons why a departure from it was justified and even required in the present instance. These reasons embrace, first, our treaty rights; second, our national interests and safety; and, third, the interests of collective civilization.

I have already adverted to the treaty of 1846, by the thirty-fifth article of which the United States secured the right to a free and open transit across the Isthmus of Panama, and to that end agreed to guarantee to New Granada

her rights of sovereignty and property over that territory. This article is sometimes discussed as if the latter guarantee constituted its sole object and bound the United States to protect the sovereignty of New Granada against domestic revolution. Nothing, however, could be more erroneous than this supposition. That our wise and patriotic ancestors, with all their dread of entangling alliances, would have entered into a treaty with New Granada solely or even primarily for the purpose of enabling that remnant of the original Republic of Colombia, then resolved into the States of New Granada, Venezuela, and Ecuador, to continue from Bogota to rule over the Isthmus of Panama, is a conception that would in itself be incredible, even if the contrary did not clearly appear. It is true that since the treaty was made the United States has again and again been obliged forcibly to intervene for the preservation of order and the maintenance of an open transit, and that this intervention has usually operated to the advantage of the titular Government of Colombia, but it is equally true that the United States in intervening with or without Colombia's consent, for the protection of the transit, has disclaimed any duty to defend the Colombian Government against domestic insurrection or against the erection of an independent government on the Isthmus of Panama. The attacks against which the United States engaged to protect New Granadian sovereignty were those of foreign powers; but this engagement was only a means to the accomplishment of a yet more important end. The great design of the article was to assure the dedication of the Isthmus to the purposes of free and unobstructed interoceanic transit, the consummation of which would be found in an interoceanic canal. To the accomplishment of this object the Government of the United States had for years directed its diplomacy. It occupied a place in the instructions to our delegates to the Panama Congress during the Administration of John Quincy Adams. It formed the subject of a resolution of the Senate in 1835, and of the House of Representatives in 1839. In 1846 its importance had become still more apparent by reason of the Mexican war. If the treaty of 1846 did not in terms bind New Granada to grant reasonable concessions for the construction of means of interoceanic communication, it was only because it was not imagined that such concessions would ever be withheld. As it was expressly agreed that the United States, in consideration of its onerous guarantee of New Granadian sovereignty, should possess the right of free and open transit on any modes of communication that might be constructed,

the obvious intent of the treaty rendered it unnecessary, if not superfluous, in terms to stipulate that permission for the construction of such modes of communication should not be denied.

Long before the conclusion of the Hay-Herran treaty the course of events had shown that a canal to connect the Atlantic and Pacific Oceans must be built by the United States or not at all. Experience had demonstrated that private enterprise was utterly inadequate for the purpose; and a fixed policy, declared by the United States on many memorable occasions, and supported by the practically unanimous voice of American opinion, had rendered it morally impossible that the work should be undertaken by European powers, either singly or in combination. Such were the universally recognized conditions on which the legislation of the Congress was based, and on which the late negotiations with Colombia were begun and concluded. Nevertheless, when the well-considered agreement was rejected by Colombia and the revolution on the Isthmus ensued, one of Colombia's first acts was to invoke the intervention of the United States; nor does her invitation appear to have been confined to this Government alone. By a telegram from Mr. Beaupré, our minister at Bogota, of the 7th of November last, we were informed that General Reyes would soon leave Panama invested with full powers; that he had telegraphed the President of Mexico to ask the Government of the United States and all countries represented at the Pan-American Conference "to aid Colombia to preserve her integrity"; and that he had requested that the Government of the United States should meanwhile "preserve the neutrality and transit of the Isthmus" and should "not recognize the new government." In another telegram from Mr. Beaupré, which was sent later in the day, this Government was asked whether it would take action "to maintain Colombian right and sovereignty on the Isthmus in accordance with article 35 [of] the treaty of 1846" in case the Colombian Government should be "entirely unable to suppress the secession movement there." Here was a direct solicitation to the United States to intervene for the purpose of suppressing, contrary to the treaty of 1846 as this Government has uniformly construed it, a new revolt against Colombia's authority brought about by her own refusal to permit the fulfilment of the great design for which that treaty was made. It was under these circumstances that the United States, instead of using its forces to destroy those who sought to make the engagements of the treaty a reality, recognized them as the proper custodians of the sovereignty of the Isthmus.

This recognition was, in the second place, further justified by the highest considerations of our national interests and safety. In all the range of our international relations I do not hesitate to affirm that there is nothing of greater or more pressing importance than the construction of an interoceanic canal. Long acknowledged to be essential to our commercial development, it has become, as the result of the recent extension of our territorial dominion, more than ever essential to our national self-defence. In transmitting to the Senate the treaty of 1846, President Polk pointed out as the principal reason for its ratification that the passage of the Isthmus, which it was designed to secure, “would relieve us from a long and dangerous navigation of more than 9,000 miles around Cape Horn, and render our communication with our own possessions on the northwest coast of America comparatively easy and speedy.” The events of the past five years have given to this consideration an importance immeasurably greater than it possessed in 1846. In the light of our present situation, the establishment of easy and speedy communication by sea between the Atlantic and the Pacific presents itself not simply as something to be desired, but as an object to be positively and promptly attained. Reasons of convenience have been superseded by reasons of vital necessity, which do not admit of indefinite delays.

To such delays the rejection by Colombia of the Hay-Herran treaty directly exposed us. As proof of this fact I need only refer to the programme outlined in the report of the majority of the Panama Canal Committee, read in the Colombian Senate on the 14th of October last. In this report, which recommended that the discussion of a law to authorize the government to enter upon new negotiations should be indefinitely postponed, it is proposed that the consideration of the subject should be deferred till October 31, 1904, when the next Colombian Congress should have met in ordinary session. By that time, as the report goes on to say, the extension of time granted to the New Panama Canal Company by treaty in 1893 would have expired, and the new Congress would be in a position to take up the question whether the company had not, in spite of further extensions that had been granted by legislative acts, forfeited all its property and rights. “When that time arrives,” the report significantly declares, “the Republic, without any impediment, will be able to contract, and will be in more clear, more definite, and more advantageous possession, both legally and materially.” The naked meaning of this report is that Colombia proposed to

wait until, by the enforcement of a forfeiture repugnant to the ideas of justice which obtain in every civilized nation, the property and rights of the New Panama Canal Company could be confiscated.

Such is the scheme to which it was proposed that the United States should be invited to become a party. The construction of the canal was to be relegated to the indefinite future, while Colombia was, by reason of her own delay, to be placed in the “more advantageous” position of claiming not merely the compensation to be paid by the United States for the privilege of completing the canal, but also the forty millions authorized by the act of 1902 to be paid for the property of the New Panama Canal Company. That the attempt to carry out this scheme would have brought Colombia into conflict with the Government of France can not be doubted; nor could the United States have counted upon immunity from the consequences of the attempt, even apart from the indefinite delays to which the construction of the canal was to be subjected. On the first appearance of danger to Colombia, this Government would have been summoned to interpose, in order to give effect to the guarantees of the treaty of 1846; and all this in support of a plan which, while characterized in its first stage by the wanton disregard of our own highest interests, was fitly to end in further injury to the citizens of a friendly nation, whose enormous losses in their generous efforts to pierce the Isthmus have become a matter of history.

In the third place, I confidently maintain that the recognition of the Republic of Panama was an act justified by the interests of collective civilization. If ever a government could be said to have received a mandate from civilization to effect an object the accomplishment of which was demanded in the interest of mankind, the United States holds that position with regard to the interoceanic canal. Since our purpose to build the canal was definitely announced, there have come from all quarters assurances of approval and encouragement, in which even Colombia herself at one time participated; and to general assurances were added specific acts and declarations. In order that no obstacle might stand in our way, Great Britain renounced important rights under the Clayton-Bulwer treaty and agreed to its abrogation, receiving in return nothing but our honorable pledge to build the canal and protect it as an open highway. It was in view of this pledge, and of the proposed enactment by the Congress of the United States of legislation to give it immediate effect, that the second Pan-American

Conference, at the City of Mexico, on January 22, 1902, adopted the following resolution:

The Republics assembled at the International Conference of Mexico applaud the purpose of the United States Government to construct an interoceanic canal, and acknowledge that this work will not only be worthy of the greatness of the American people, but also in the highest sense a work of civilization, and to the greatest degree beneficial to the development of commerce between the American States and the other countries of the world.

Among those who signed this resolution on behalf of their respective governments was General Reyes, the delegate of Colombia. Little could it have been foreseen that two years later the Colombian Government, led astray by false allurements of selfish advantage, and forgetful alike of its international obligations and of the duties and responsibilities of sovereignty, would thwart the efforts of the United States to enter upon and complete a work which the nations of America, re-echoing the sentiment of the nations of Europe, had pronounced to be not only “worthy of the greatness of the American people,” but also “in the highest sense a work of civilization.”

That our position as the mandatary of civilization has been by no means misconceived is shown by the promptitude with which the powers have, one after another, followed our lead in recognizing Panama as an independent State. Our action in recognizing the new republic has been followed by like recognition on the part of France, Germany, Denmark, Russia, Sweden, and Norway, Nicaragua, Peru, China, Cuba, Great Britain, Italy, Costa Rica, Japan, and Austria-Hungary.

In view of the manifold considerations of treaty right and obligation, of national interest and safety, and of collective civilization, by which our Government was constrained to act, I am at a loss to comprehend the attitude of those who can discern in the recognition of the Republic of Panama only a general approval of the principle of “revolution” by which a given government is overturned or one portion of a country separated from another. Only the amplest justification can warrant a revolutionary movement of either kind. But there is no fixed rule which can be applied to all such movements. Each case must be judged on its own merits. There

have been many revolutionary movements, many movements for the dismemberment of countries, which were evil, tried by any standard. But in my opinion no disinterested and fair-minded observer acquainted with the circumstances can fail to feel that Panama had the amplest justification for separation from Colombia under the conditions existing, and, moreover, that its action was in the highest degree beneficial to the interests of the entire civilized world by securing the immediate opportunity for the building of the interoceanic canal. It would be well for those who are pessimistic as to our action in peacefully recognizing the Republic of Panama, while we lawfully protected the transit from invasion and disturbance, to recall what has been done in Cuba, where we intervened even by force on general grounds of national interest and duty. When we interfered it was freely prophesied that we intended to keep Cuba and administer it for our own interests. The result has demonstrated in singularly conclusive fashion the falsity of these prophecies. Cuba is now an independent republic. We governed it in its own interests for a few years, till it was able to stand alone, and then started it upon its career of self-government and independence, granting it all necessary aid. We have received from Cuba a grant of two naval stations, so situated that they in no possible way menace the liberty of the island, and yet serve as important defences for the Cuban people, as well as for our own people, against possible foreign attack. The people of Cuba have been immeasurably benefited by our interference in their behalf, and our own gain has been great. So will it be with Panama. The people of the Isthmus, and as I firmly believe of the adjacent parts of Central and South America, will be greatly benefited by the building of the canal and the guarantee of peace and order along its line; and hand in hand with the benefit to them will go the benefit to us and to mankind. By our prompt and decisive action, not only have our interests and those of the world at large been conserved, but we have forestalled complications which were likely to be fruitful in loss to ourselves, and in bloodshed and suffering to the people of the Isthmus.

Instead of using our forces, as we were invited by Colombia to do, for the twofold purpose of defeating our own rights and interests and the interests of the civilized world, and of compelling the submission of the people of the Isthmus to those whom they regarded as oppressors, we shall, as in duty bound, keep the transit open and prevent its invasion. Meanwhile, the only question now before us is that of the ratification of the treaty. For it is to be

remembered that a failure to ratify the treaty will not undo what has been done, will not restore Panama to Colombia, and will not alter our obligation to keep the transit open across the Isthmus, and to prevent any outside power from menacing this transit.

It seems to have been assumed in certain quarters that the proposition that the obligations of article 35 of the treaty of 1846 are to be considered as adhering to and following the sovereignty of the Isthmus, so long as that sovereignty is not absorbed by the United States, rests upon some novel theory. No assumption could be further from the fact. It is by no means true that a state in declaring its independence rids itself of all the treaty obligations entered into by the parent government. It is a mere coincidence that this question was once raised in a case involving the obligations of Colombia as an independent state under a treaty which Spain had made with the United States many years before Spanish-American independence. In that case Mr. John Quincy Adams, Secretary of State, in an instruction to Mr. Anderson, our minister to Colombia, of May 27, 1823, said:

By a treaty between the United States and Spain concluded at a time when Colombia was a part of the Spanish dominions ... the principle that free ships make free goods was expressly recognized and established. It is asserted that by her declaration of independence Colombia has been entirely released from all the obligations by which, as a part of the Spanish nation, she was bound to other nations. This principle is not tenable. To all the engagements of Spain with other nations, affecting their rights and interests, Colombia, so far as she was affected by them, remains bound in honor and in justice. The stipulation now referred to is of that character.

The principle thus asserted by Mr. Adams was afterward sustained by an international commission in respect to the precise stipulation to which he referred; and a similar position was taken by the United States with regard to the binding obligation upon the independent State of Texas of commercial stipulations embodied in prior treaties between the United States and Mexico when Texas formed a part of the latter country. But in the present case it is unnecessary to go so far. Even if it be admitted that prior treaties of a political and commercial complexion generally do not bind a

new state formed by separation, it is undeniable that stipulations having a local application to the territory embraced in the new state continue in force and are binding upon the new sovereign. Thus it is on all hands conceded that treaties relating to boundaries and to rights of navigation continue in force without regard to changes in government or in sovereignty. This principle obviously applies to that part of the treaty of 1846 which relates to the Isthmus of Panama.

In conclusion let me repeat that the question actually before this Government is not that of the recognition of Panama as an independent republic. That is already an accomplished fact. The question, and the only question, is whether or not we shall build an Isthmian Canal.

I transmit herewith copies of the latest notes from the minister of the Republic of Panama to this Government, and of certain notes which have passed between the special envoy of the Republic of Colombia and this Government.

THEODORE ROOSEVELT.

WHITE HOUSE,
January 4, 1904

EXTRACTS FROM THE MESSAGES
OF THEODORE ROOSEVELT AS
GOVERNOR OF THE STATE OF
NEW YORK

MESSAGE OF THE GOVERNOR OF NEW YORK TO THE
LEGISLATURE, JANUARY 2, 1899

STATE OF NEW YORK, EXECUTIVE CHAMBER,
ALBANY, *January 2, 1899*

To the Legislature:

The people of New York, like the people of every other State in the Union, are to be congratulated, because during the past year the Nation has carried to a brilliant triumph one of the most righteous wars of modern times. When last spring it became evident that the interests of humanity and of national honor alike demanded that we should drive Spain from the Western Hemisphere and free from her tyranny the subject peoples of the islands of the sea, New York responded with eager zeal to the call for volunteers, and in the Cabinet, in Congress and in camp, her representatives did all they could to insure the success of the American policy. We are not merely New Yorkers. We are Americans; and the interests of all Americans, whether from the North, the South, the East or the great West, are equally dear to the men of the Empire State. As we grow into a mighty nation, which, whether it will or not, must inevitably play a great part for good or for evil in the affairs of the world at large, the people of New York wish it understood that they look at all questions of American foreign policy from the most thoroughly national standpoint. The tropic islands we have taken must neither be allowed to lapse into anarchy nor to return under the sway of tyranny. War is a grim thing at best, but the war through which we have passed has left us not merely memories of glory won on land and sea, but an even more blessed heritage, the knowledge that it was waged from the highest motives, for the good of others as well as for our own national honor. Above all, we are thankful that it brought home to all of us the fact that the country was indeed one when serious danger confronted it. The men from the East and the West, from the North and the South, the sons of those who wore the blue and of those who wore the gray, the men of means and the men who all their lives long had possessed only what day by day they toiled to earn, stood shoulder to shoulder in the fight, met the same dangers, shared the same hardships and won the same ultimate triumph.

In our domestic affairs, the State is to be congratulated on the gradual return of prosperity. Though temporarily checked by the war this return has been on the whole steady. The capitalist finds constantly greater business

opportunities; the wage-worker, in consequence, is more steadily employed; the farmer has a better market.

TAXATION

No other question is of such permanent importance in the domestic economy of our State as the question of taxation. At present our system of taxation is in utter confusion, full of injustices and of queer anomalies. It is an exceedingly difficult subject, one well worthy the attention of our best men, the men with most highly trained minds and the broadest practical experience; men who are able to approach the subject from the standpoints alike of the farmer, the merchant, and the manufacturer. Not only is it necessary to consider whether any kind of tax ought, if practicable, to be levied, but whether it is in fact practicable to levy it. We should discourage the building up of non-taxable interests, and yet we should discourage driving property out of the State by unwise taxation, or levying a tax which is in effect largely a tax upon honesty. I most earnestly commend the whole matter to your special attention.

MESSAGE OF THE GOVERNOR OF NEW YORK TO THE
LEGISLATURE, MAY 22, 1899

STATE OF NEW YORK, EXECUTIVE CHAMBER,
ALBANY, *May 22, 1899*

To the Legislature:

I have called you together in extraordinary session for the purpose of considering the subject of the taxation of franchises.

My message to the Legislature of March 27, 1899, ran in part as follows:

“At present the farmers, the market gardeners, and the mechanics and tradesmen having small holdings are paying an improper and excessive portion of the general taxes, while at the same time many of the efforts to remedy this state of affairs, notably in the direction of taxing securities, are not only unwise, but inefficient, and often serve merely to put a premium upon dishonesty.”

“There is evident injustice in the light taxation of corporations. I have not the slightest sympathy with the outcry against corporations as such, or against prosperous men of business. Most of the great material works by which the entire country benefits have been due to the action of individual men, or of aggregates of men, who made money for themselves by doing that which was in the interest of the people as a whole. From an armor plant to a street railway no work which is really beneficial to the public can be performed to the best advantage of the public save by men of such business capacity that they will not do the work unless they themselves receive ample reward for doing it. The effort to deprive them of an ample reward, merely means that they will turn their energies in some other direction; and the public will be by just so much the loser. Moreover, to tax corporations or men of means in such a way as to drive them out of the State works great

damage to the State. To drive out of a community the men of means and the men who take the lead in business enterprises would probably entail, as one of its first results, the starvation of a considerable portion of the remainder of the population.

“But while I freely admit all this, it yet remains true that a corporation which derives its powers from the State should pay to the State a just percentage of its earnings as a return for the privileges it enjoys. This should be especially true for the franchises bestowed upon gas companies, street railroads and the like. The question of the municipal ownership of these franchises can not be raised with propriety until the governments of all municipalities show greater wisdom and virtue than has been recently shown, for instance, in New York City; and the question of laying and assessing the tax for franchises of every kind throughout the State should in my opinion be determined by the State itself. I need not point out to you that in foreign communities a very large percentage of the taxes comes from corporations which use the public domain for pipes, tracks and the like.”

I stated that the power of assessing the tax on franchises should be left with the State authorities—not the local authorities—because in my view this was desirable both for the sake of providing against improper favoritism of or discrimination against corporations by the local authorities, for the sake of working equity as between the franchises in different localities, and finally for the sake of providing for the cases where a railroad or telephone or telegraph line runs through several different communities.

Many representatives of corporations owning franchises heartily approve of having them properly taxed; and I am confident that, in the end, this will be of positive benefit to the franchise owners, and in no way oppressive to them, save as all taxes are oppressive to all owners of property.

The line of cleavage between good and bad citizenship does not follow the line dividing the men who represent corporate interests from the men who do not; it runs at right angles to it. We are bound to recognize this fact, to remember that we should stand for good citizenship in every form, and

should neither yield to demagogic influence on the one hand, nor to improper corporate influence on the other. There is no intention of oppressing people who have put their money into franchises. We recognize that, as in the case of all legitimate business, they benefit not only themselves but the community at large. If a franchise is worth very little, it should be taxed very little; but where the franchise is of great value, it certainly should be heavily taxed; and the value is of course based upon the use of the city's or State's real estate. Such use of the public real estate should not be given without substantial returns; returns not only in the way of service to the public, which of course a street railway or a gas company gives, precisely as the proprietor of a grocery or dry goods store gives it, but also in the way of bearing a just share of the burden of taxation; again, precisely as the owner of the grocery or dry goods store bears his share, the difference being that a railroad company, for instance, owes infinitely more than the proprietor of a big business establishment does, to the real estate itself. Of course, this value differs greatly in different places. Where population is dense, as in New York City, the real estate along which the tracks are laid on Broadway may be worth an immense amount for every lineal foot, exactly as the real estate fronting this portion of Broadway is worth an immense amount for every lineal foot. In sparsely settled districts, however, the value of the real estate of the railroad will diminish greatly, just as the value of the realty through which it runs diminishes.

I am perfectly well aware that as Chief Justice Marshall says: "The power of taxation is the power of destruction." But this applies to every species of property. If demagogues or ignorant enthusiasts who are misled by demagogues could succeed in destroying wealth, they would of course simply work the ruin of the entire community; and first of all, of the unfortunates for whom they profess to feel an especial interest. But the very existence of unreasoning hostility to wealth should make us all the more careful in seeing that wealth does nothing to justify such hostility. We are the true friends of the men of means, we are the true friends of the lawful corporate interests which do good work for the community, when we insist that the man of means and the great corporation shall pay their full share of taxes and bear their full share of the public burdens. If this is done, then sooner or later will follow public recognition of the fact that it is done; and when there is no legitimate basis for discontent, the American public is sure sooner or later to cease to feel discontent.

The Legislature passed, and there is now before me, a bill for the taxation of franchises by treating them as realty. After watching the progress of this bill I became convinced that the opposition to it was less to its particular features than to the general principle of taxing franchises in any way; in other words, I became convinced that any really effective measure of taxation aimed at franchises would be vigorously opposed. It therefore became of the utmost importance to secure this year some statutory enactment which would distinctly recognize the principle which we seek to establish. Toward the end of the session it became evident that the influences against the taxation of franchises would be content with nothing save the defeat of any measure of substantial relief; and a measure of less than substantial relief I would not accept. Finally it became evident that the Legislature could pass only one bill and that without amendment. I therefore sent in a special message asking for the passage of this bill. It was passed on the last day of the session. It represents a long stride in the right direction, and one from which there must be no retrogression.

Nevertheless, it can be greatly bettered if amended in two important particulars. In its essential principle, that of taxing franchises as realty, it is right and proper. After much study of the question, I am convinced that in this way we can come nearer to doing justice than in any other which has as yet been proposed. It is no new thing to treat franchises as realty. They are so treated in Washburn's work on real property, and by Chancellor Kent; but under the laws of New York as they are now a franchise can not be taxed except by special statute, and as a matter of fact this extremely valuable species of property is in very many, if not in most, cases untaxed or taxed far below its value in comparison with other kinds of real estate. Local franchises are granted for various purposes and under varying conditions; sometimes by special statute and sometimes by the municipal authorities under a general statute. The value of the franchise of course varies widely in different localities, depending upon a variety of circumstances; but a great part of its value is dependent upon the same causes which operate to make other kinds of real estate more valuable in one locality than in another. The franchise is inseparable from the property of the corporation in the street, whether this property consists of poles, pipes, or tracks, above the ground, under the ground, or on the ground. The right to lay a railroad track and operate a railroad in a public street can not be separated or dissociated from the railroad itself. This is equally true of the right to lay water and gas

mains and the like. The franchise is a necessary and inevitable element of value and is a proper subject of consideration in determining the taxable value of the real property of the corporation enjoying it. The right to occupy a street should not be classed as an intangible something, distinct from the other property of the company, but should be treated as a necessary incident to the tangible property and one to be considered in measuring the value of the whole property. The Nichols law in Ohio which provides for the taxation of certain kinds of corporations such as telegraph and telephone companies and the like, doing business in the public streets, proceeds along these lines, and has in practice been found to work admirably. It is possible that further experience may enable us to find some better method of taxing franchises, but with our present knowledge it is certainly wisest to tax them as realty.

Under the bill before me the assessment will be levied by the local authorities. This would result in many cases in a dozen different sets of local authorities assessing the value of different parts of the same franchise. It is on every account far better that this assessment should be delegated to the State authorities who will necessarily ascertain all the conditions affecting the franchise and obtain information which will enable them to judge of the value of the franchise in the different localities in which it is exercised. The Board of State Tax Commissioners can collate the facts, compare conditions and determine values as a result of a wider range of observation and experience than can be obtained by local officers, and under them the system of assessment will tend to produce justice, harmony and uniformity. This is the system adopted under the Nichols law and it has worked well in practice.

Furthermore, the bill before me fails to take account of the fact that, in a very unequal and irregular way, many corporations do already pay a certain, though usually an utterly inadequate sum in taxes. Some pay nothing at all to the local municipalities, but others pay sums varying from one to five per cent on their gross earnings. The amounts have been determined in the most haphazard manner and bear no proportion whatever to the value of the franchises or to their earning capacity. It is obviously unjust, when introducing a system under which we believe that these franchises will for the first time be fully and fairly taxed according to their respective values, not to allow for this existing and inequitable taxation. Accordingly it should

be provided that from the sum assessed by the State authorities as the tax which a corporation must pay because of its local franchise, there shall be deducted the amount already annually paid by it to the locality for such franchise. In no other way is it possible to tax these corporations with uniformity and equity. It is contended by the advocates of the bill that in reaching the value of the franchise under the new law the amount thus paid away in taxes must be allowed for and deducted anyhow; but it is not certain that this would be done, and in any event the principal should be definitely established by the law itself. There can be no possible opposition to putting it in the law by any man who is anxious to tax corporations as other property is taxed, and who believes that this end can be attained by taxing them as realty. Either by taxing them as realty we shall tax them at their full value, or we shall not; if, as we hold, the former is the case, it would be unjust to tax them for more than their full value, and this would happen were not these existing taxes deducted.

If it is claimed that the particular method of assessment by the State Tax Commission may be improper or unjust, provision can be made for the same appeal to the courts that now lies in the case of any assessment on other kinds of property.

Accordingly, I recommend the enactment of a law which shall tax all these franchises as realty, which shall provide for the assessment of the tax by the Board of State Tax Commissioners, and which shall further provide that from the tax thus levied for the benefit of each locality there shall be deducted the taxes now paid by the corporation in question. Furthermore, as the time for assessing the largest and wealthiest corporations, those of New York and Buffalo, has passed for this year, and as it will be preferable not to have the small country corporations taxed before the larger corporations of the cities are taxed, I suggest that the operations of the law be deferred until October first, of this year.

THEODORE ROOSEVELT.

MESSAGE OF THE GOVERNOR OF NEW YORK TO THE
LEGISLATURE, JANUARY 3, 1900

STATE OF NEW YORK, EXECUTIVE CHAMBER,
ALBANY, *January 3, 1900*

To the Legislature:

It is a very genuine pleasure to congratulate the Legislature upon the substantial sum of achievement in legislation and administration of the past year. Laws of the utmost usefulness to the community have been enacted, and there has been a steady betterment throughout the year in the methods and results of the administration of the government.

The whole problem of taxation is now, as it has been at almost all times and in almost all places, one of extreme difficulty. It has become more and more evident in recent years that existing methods of taxation, which worked well enough in a simpler state of society, are not adequate to secure justice when applied to the conditions of our complex and highly specialized modern industrial development. At present the real estate owner is certainly bearing an excessive proportion of the tax burden. Men who have made a special study of the theory of taxation and men who have had long experience in its practical application are alike in conflict among themselves as to the best general system. Absolute equality, absolute justice in matters of taxation will probably never be realized; but we can approximate it much more closely than at present. The last Legislature most wisely appointed a committee to consider the feasibility of a thorough and far-reaching change in our tax laws; and there is good reason to believe that their forthcoming report will present a scheme which will receive the support of substantially all classes of taxpayers, and which will be of such a character as to commend itself to the most careful consideration of your body upon broad lines.

The law must not only be correct in the abstract; it must work well in the concrete. Experience shows that certain classes or symbols of property which in theory ought to be taxed can not under the present practice be reached. Some kinds of taxes are so fertile in tempting to perjury and sharp dealing that they amount to taxes on honesty—the last quality on which we should impose a needless burden. Moreover, where the conditions and

complexity of life vary widely as between different communities, the desirability and possibility of certain taxes may seem or be so different that it is hard to devise a common system that will work. If possible the State tax should be levied on classes of property, and in a manner which will render it collectible with entire fairness in all sections of the community, as for instance the corporation or collateral inheritance tax is now collected. So far as possible we should divorce the State and municipal taxes, so as to render unnecessary the annual equalization of values between the several counties which has proved so fertile a source of friction between the city and the country.

There is a constant influx into New York State of capital oftentimes previously incorporated under the laws of other States, and an increasing number of men of means from other parts of the country, non-residents of New York, come into this State to sojourn and to conduct and be at the head of various business enterprises which are drawn to New York as the financial centre of the whole country. This calls for legislation which shall provide, in a broad and fair spirit, for taxing foreign capital in this State, whether in corporate or individual form, exactly as we tax domestic capital doing business along the same lines.

I call your attention to the fact that the great burden of taxation is local, not State. In the large cities the heavy local charges are mainly due to the action of the local authorities themselves. For this the local authorities are of course responsible. But sometimes taxation is added to by legislative enactment.

On certain points the failure of the tax laws has become so evident that it is possible to provide more or less complete remedies without waiting for a general scheme of reorganization. Again and again in recent years this has been recognized, and through legislative enactment certain species of property which had escaped taxation have been made to pay their proper share of the public burdens. The collateral inheritance tax offers a case in point. The corporation tax offers another. In all these matters of taxation, however, it is necessary to proceed with extreme caution, the path never being so simple and clear as the advocates of any particular measure invariably believe. Every wealthy corporation that perpetrates or is allowed to perpetrate a wrong helps to produce or inflame a condition of angry excitement against all corporations, which in its turn may in the end harm

alike the honest and the dishonest agents of public service and thereby do far-reaching damage to the whole body politic. Much of the outcry against wealth, against the men who acquire wealth, and against the means by which it is acquired, is blind, unreasoning and unjust; but in too many cases it has a basis in real abuses; and we must remember that every act of misconduct which affords any justification for this clamor is not only bad because of the wrong done but also because the justification thus given inevitably strengthens movements which are in reality profoundly anti-social and anti-civic. Our laws should be so drawn as to protect and encourage corporations which do their honest duty by the public; and to discriminate sharply against those organized in a spirit of mere greed, or for improper speculative purposes.

There is plenty of misconduct, plenty of selfish disregard of the rights of others, and especially of the weak. There is also plenty of honorable and disinterested effort to prevent such misconduct or to minimize its effects. Any rational attempt to prevent or counteract the evils, by legislation or otherwise, is deserving of hearty support; but it can not be too deeply impressed upon us that such attempts can result in permanent good only in proportion as they are made in a sane and wholesome spirit, as far removed as possible from whatever is hysterical or revolutionary. It is infinitely better when needed social and civic changes can be brought about as the result of natural and healthy growth than when they come with the violent dislocation and widespread wreck and damage inevitably attendant upon any movement which is revolutionary in its nature.

At the same time a change should never be shirked on the ground of its being radical, when the abuse has become flagrant and no other remedy appears possible. This was the case with the taxation of local franchises in this State. For years most of these franchises escaped paying their proper share of the public burdens. The last Legislature placed on the statute book a law requiring them to be treated as real estate for the purposes of taxation, the tax to be assessed and collected by the State Assessors for the benefit of the localities concerned. This marks an immense stride in advance. Of course at first serious difficulties are sure to arise in enforcing it. The means for carrying it into effect are very inadequate. There may be delay before we get from it the substantial additions to the revenue which will finally accrue, and there may be disappointment to the enthusiasts who are so apt

to hope too much from such legislation. But it will undoubtedly add largely to the public revenues as soon as it is fairly in operation, and the amount thus added will increase steadily year by year. The principle which this law establishes has come to stay. There will doubtless have to be additional legislation from time to time to perfect the system as its shortcomings are made evident in actual practice. But the corporations owning valuable public franchises must pay their full and proper share of the public burdens.

The franchise tax law is framed with the intent of securing exact and equal justice, no more and no less. It is not in any way intended as a means for persecuting or oppressing corporations. It is not intended to cut down legitimate dividends; still less to cut down wages or to prevent a just return for the far-sighted business skill of some captain of industry who has been able to establish a public service greatly to the advantage of the localities concerned, where before his time men of less business capacity had failed. But it is intended that property which derives its value from the grant of a privilege by the public, shall be taxed proportionately to the value of the privilege granted. In enforcing this law, much tact, patience, resolution and judgment will be needed. All these qualities the State Board of Tax Commissioners have thus far shown. Their salaries are altogether inadequate, for the new law has immensely increased not only their responsibilities, but their work. They should be given not only the needed increase for themselves, but also an appropriation for an additional number of clerks and experts.

During the year 1899 not a single corporation has received at the hands of the State of New York one privilege of any kind, sort or description, by law or otherwise, to which it was not entitled, and which was not in the public interest; nor has corporate influence availed against any measure which was in the public interest. At certain times, and in certain places, corporations have undoubtedly exerted a corrupting influence in political life; but in this State for this year it is absolutely true, as shown by the history of every measure that has come before the Legislature from the franchise tax down, that no corporate influence has been able to prevail against the interests of the public.

It has become more and more evident of late years that the State will have to act in its collective capacity as regards certain subjects which we have been accustomed to treat as matters affecting the private citizen only,

and that furthermore, it must exercise an increasing and more rigorous control over other matters which it is not desirable that it should directly manage. It is neither possible nor desirable to lay down a general hard and fast rule as to what this control should be in all cases. There is no possible reason in pure logic why a city, for instance, should supply its inhabitants with water, and allow private companies to supply them with gas, any more than there is why the general government should take charge of the delivery of letters but not of telegrams. On the other hand, pure logic has a very restricted application to actual social and civic life, and there is no possible reason for changing from one system to the other simply because the change would make our political system in theory more symmetrical. Obviously it is undesirable that the government should do anything that private individuals could do with better results to the community. Everything that tends to deaden individual initiative is to be avoided, and unless in a given case there is some very evident gain which will flow from State or municipal ownership, it should not be adopted. On the other hand, when private ownership entails grave abuses, and where the work is of a kind that can be performed with efficiency by the State or municipality acting in its collective capacity, no theory or tradition should interfere with our making the change. There is grave danger in attempting to establish invariable rules; indeed it may be that each case will have to be determined upon its own merits. In one instance a private corporation may be able to do the work best. In another the State or city may do it best. In yet a third, it may be to the advantage of everybody to give free scope to the power of some individual captain of industry.

On one point there must be no step backward. There is a consensus of opinion that New York must own its own water supply. Any legislation permitting private ownership should be annulled.

Nothing needs closer attention, nothing deserves to be treated with more courage, caution and sanity, than the relations of the State to corporate wealth, and indeed to vast individual wealth. For almost every gain there is a penalty, and the great strides in the industrial upbuilding of the country, which have on the whole been attended with marked benefit, have also been attended by no little evil. Great fortunes are usually made under very complex conditions both of effort and of surrounding, and the mere fact of the complexity makes it difficult to deal with the new conditions thus

created. The contrast offered in a highly specialized industrial community between the very rich and the very poor is exceedingly distressing, and while under normal conditions the acquirement of wealth by an individual is necessarily of great incidental benefit to the community as a whole, yet this is by no means always the case. In our great cities there is plainly in evidence much wealth contrasted with much poverty, and some of the wealth has been acquired, or is used, in a manner for which there is no moral justification.

A profound political and social thinker has recently written: "Wealth which is expended in multiplying and elaborating real comforts, or even in pleasures which produce enjoyment at all proportionate to their cost, will never excite serious indignation. It is the colossal waste of the means of human happiness in the most selfish and most vulgar forms of social advertisement and competition that gives a force to passions which menace the whole future of our civilization." But in continuance this writer points out that the only effectual check lies in the law of public opinion. Any attempt to interfere by statute in moral questions of this kind, by fettering the freedom of individual action, would be injurious to a degree far greater than is the evil aimed at. Probably the large majority of the fortunes that now exist in this country have been amassed, not by injuring mankind, but as an incident to the conferring of great benefits on the community—whatever the conscious purpose of those amassing them may have been. The occasional wrongs committed or injuries endured are on the whole far outweighed by the mass of good which has resulted. The true questions to be asked are: Has any given individual been injured by the acquisition of wealth by any man? Were the rights of that individual, if they have been violated, insufficiently protected by law? If so, these rights, and all similar rights, ought to be guaranteed by additional legislation. The point to be aimed at is the protection of the individual against wrong, not the attempt to limit and hamper the acquisition and output of wealth.

It is almost equally dangerous either to blink evils and refuse to acknowledge their existence or to strike at them in a spirit of ignorant revenge, thereby doing far more harm than is remedied. The need can be met only by careful study of conditions, and by action which, while taken boldly and without hesitation, is neither heedless nor reckless. It is well to remember on the one hand that the adoption of what is reasonable in the

demands of reformers is the surest way to prevent the adoption of what is unreasonable; and on the other hand that many of the worst and most dangerous laws which have been put upon the statute books have been put there by zealous reformers with excellent intentions.

This problem has a hundred phases. The relation of the capitalist and the wage-worker makes one; the proper attitude of the State toward extreme poverty another; the proper attitude of the State toward the questions of the ownership and running of so-called “public utilities,” a third. But among all these phases, the one which at this time has the greatest prominence is the question of what are commonly termed “trusts,” meaning by the name those vast combinations of capital, usually flourishing by virtue of some monopolistic element, which have become so startlingly common a feature in the industrial revolution which has progressed so rapidly during recent years.

Every new feature of this industrial revolution produces hardship because in its later stages it has been literally a revolution instead of an evolution. The new inventions and discoveries and the new methods of taking advantage of the business facilities afforded by the extraordinary development of our material civilization have caused the changes to proceed with such marvelous rapidity, that at each stage some body of workers finds itself unable to accommodate itself to the new conditions with sufficient speed to escape hardship. In the end the accommodation of the class takes place; at times too late for the well-being of many individuals. The change which would be unaccompanied by hardship if it came slowly, may be fraught with severe suffering if it comes too fast, even when it is in the end beneficial. Occasionally, moreover, the change is positively deleterious, and very often, even when it is on the whole beneficial, it has features which are the reverse. In some cases, while recognizing the evil, it is impossible with our present knowledge to discover any remedy. In others, a remedy can be applied, but as yet only at a cost that would make it worse than the trouble itself. In yet others it is possible, by acting with wisdom, coolness and fearlessness, to apply a remedy which will wholly or in great part remove the evil while leaving the good behind. We do not wish to discourage enterprise. We do not desire to destroy corporations; we do desire to put them fully at the service of the State and the people.

The machinery of modern business is so vast and complicated that great caution must be exercised in introducing radical changes for fear the unforeseen effects may take the shape of widespread disaster. Moreover, much that is complained about is not really the abuse so much as the inevitable development of our modern industrial life. We have moved far away from the old simple days when each community transacted almost all its work for itself and relied upon outsiders for but a fraction of the necessities, and for not a very large portion even of the luxuries, of life. Very many of the anti-trust laws which have made their appearance on the statute books of recent years have been almost or absolutely ineffective because they have blinked the all-important fact that much of what they thought to do away with was incidental to modern industrial conditions, and could not be eliminated unless we were willing to turn back the wheels of modern progress by also eliminating the forces which had brought about these industrial conditions. Not only trusts, but the immense importance of machinery, the congestion of city life, the capacity to make large fortunes by speculative enterprises, and many other features of modern existence could be thoroughly changed by doing away with steam and electricity; but the most ardent denouncer of trusts would hesitate to advocate so drastic a remedy. What remains for us to do, as practical men, is to look the conditions squarely in the face and not to permit the emotional side of the question, which has its proper place, to blind us to the fact that there are other sides. We must set about finding out what the real abuses are, with their causes, and to what extent remedies can be applied.

That abuses exist, and that they are of a very grave character, it is worse than idle to deny. Just so long as in the business world unscrupulous cunning is allowed the freerein which, thanks to the growth of humanity during the past centuries, we now deny to unscrupulous physical force, then just so long there will be a field for the best effort of every honest social and civic reformer who is capable of feeling an impulse of generous indignation and who is far-sighted enough to appreciate where the real danger to the country lies. The effects are bad enough when the unscrupulous individual works by himself. They are much worse when he works in conjunction with his fellows through a giant corporation or trust. Law is largely crystallized custom, largely a mass of remedies which have been slowly evolved to meet the wrongs with which humanity has become thoroughly familiar. In a simple society only simple forms of wrong can be committed. There is

neither the ability nor the opportunity to inflict others. A primitive people provides for the punishment of theft, assault and murder, because the conditions of the existing society allow the development of thieves and murderers and the commission of deeds of violence; but it does not provide for the punishment of forgery because there is nothing to forge, and therefore, no forgers. The gradual growth of humanitarian sentiment, often unconscious or but semi-conscious, combined with other causes, step by step emancipated the serf from bodily subjection to his over-lord; he was then protected in his freedom by statute; but when he became a factory hand the conditions were new and there were no laws which prevented the use of unguarded machinery in the factories, or the abuses of child labor, forced upon the conscientious employers by the unscrupulous until legislation put them on an equality. When new evils appear there is always at first difficulty in finding the proper remedy; and as the evils grow more complex, the remedies become increasingly difficult of application. There is no use whatever in seeking to apply a remedy blindly; yet this is just what has been done in reference to trusts.

Much of the legislation not only proposed but enacted against trusts is not one whit more intelligent than the mediæval bull against the comet, and has not been one particle more effective. Yet there can and must be courageous and effective remedial legislation.

To say that the present system of haphazard license and lack of supervision and regulation, is the best possible, is absurd. The men who endeavor to prevent the remedying of real abuses, not only show callous disregard for the suffering of others, but also weaken those who are anxious to prevent the adoption of indiscriminate would-be remedies which would subvert our whole industrial fabric. The chicanery and the dishonest, even though not technically illegal, methods through which some great fortunes have been made, are scandals to our civilization. The man who by swindling or wrongdoing acquires great wealth for himself at the expense of his fellow, stands as low morally as any predatory mediæval nobleman and is a more dangerous member of society. Any law, and any method of construing the law which will enable the community to punish him, either by taking away his wealth or by imprisonment, should be welcomed. Of course, such laws are even more needed in dealing with great corporations or trusts than with individuals. They are needed quite as much for the sake

of honest corporations as for the sake of the public. The corporation that manages its affairs honestly has a right to demand protection against the dishonest corporation. We do not wish to put any burden on honest corporations. Neither do we wish to put an unnecessary burden of responsibility on enterprising men for acts which are immaterial; they should be relieved from such burdens, but held to a rigid financial accountability for acts that mislead the upright investor or stockholder, or defraud the public.

The first essential is knowledge of the facts, publicity. Much can be done at once by amendment of the corporation laws so as to provide for such publicity as will not work injustice as between business rivals.

The chief abuses alleged to arise from trusts are probably the following: Misrepresentation or concealment regarding material facts connected with the organization of an enterprise; the evils connected with unscrupulous promotion; overcapitalization; unfair competition, resulting in the crushing out of competitors who themselves do not act improperly; raising of prices above fair competitive rates; the wielding of increased power over the wage-earners. Of course none of these abuses may exist in a particular trust, but in many trusts, as well as in many corporations not ordinarily called trusts, one or more of them are evident. Some of these evils could be partially remedied by a modification of our corporation laws; here we can safely go along the lines of the more conservative New England States, and probably not a little farther. Such laws will themselves provide the needed publicity, and the needed circumstantiality of statement. We should know authoritatively whether stock represents actual value of plants, or whether it represents brands or good will; or if not, what it does represent, if anything. It is desirable to know how much was actually bought, how much was issued free; and to whom; and, if possible, for what reason. In the first place, this would be invaluable in preventing harm being done as among the stockholders, for many of the grossest wrongs that are perpetrated are those of promoters and organizers at the expense of the general public who are invited to take shares in business organizations. In the next place, this would enable us to see just what the public have a right to expect in the way of service and taxation. There is no reason whatever for refusing to tax a corporation because by its own acts it has created a burden of charges under which it staggers. The extravagant man who builds a needlessly large house

nevertheless pays taxes on the house; and the corporation which has to pay great sums of interest owing to juggling transactions in the issue of stocks and bonds has just as little right to consideration. But very great hardship may result to innocent purchasers; and publicity by lessening the possibility of this would also serve the purpose of the State.

Where a trust becomes a monopoly the State has an immediate right to interfere. Care should be taken not to stifle enterprise or disclose any facts of a business that are essentially private; but the State for the protection of the public should exercise the right to inspect, to examine thoroughly all the workings of great corporations just as is now done with banks; and wherever the interests of the public demand it, it should publish the results of its examination. Then, if there are inordinate profits, competition or public sentiment will give the public the benefit in lowered prices; and if not, the power of taxation remains. It is therefore evident that publicity is the one sure and adequate remedy which we can now invoke. There may be other remedies, but what these others are we can only find out by publicity, as the result of investigation. The first requisite is knowledge, full and complete.

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The index was not checked for proper alphabetization or correct page references.

Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Some hyphens in words have been silently removed, some added, when a predominant preference was found in the original book.

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained.

[Pg 524](#): "crinimal" replaced by "criminal"

[Pg 627](#): "foregn" replaced by "foreign"

[Pg 640](#): "commertial" replaced by "commercial"

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